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CITY OF BERKELEY

BERKELEY CITY COUNCIL SPECIAL MEETING

JULY 23, 2025

>> MAYOR ISHII: OKAY. WELL, HI EVERYONE. GOOD EVENING. I AM GOING TO CALL US TO ORDER. TODAY IS WEDNESDAY JULY 23RD, 2025. I AM CALLING TO ORDER THE SPECIAL MEETING OF THE BERKELEY CITY COUNCIL. CAN YOU PLEASE TAKE THE ROLL?

>> COUNCILMEMBER KESARWANI.

>> R. KESARWANI: HERE.

>> TAPLIN.

>> T. TAPLIN: PRESENT.

>> BARTLETT APPEARS TO BE ABSENT. TREGUB.

>> I. TREGUB: PRESENT.

>> O'KEEFE IS ABSENT. BLACKABY. COUNCILMEMBER BLACKABY ON THE ROLL?

>> B. BLACKABY: I AM HERE.

>> CITY CLERK: THANK YOU. LUNAPARRA.

>> C. LUNAPARRA: HERE.

>> CITY CLERK: MAYOR ISHII.

>> MAYOR ISHII: HERE. YOU ARE OFF MUTE. THANK YOU. TODAY IS A

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SPECIAL MEETING, BUT WE DO HAVE A BRIEF ANNOUNCEMENT, SO I WILL ASK THAT YOU COME FORWARD AND SHARE. YOU CAN GIVE YOUR PUBLIC COMMENT.

>> THAT YOU CAN, APPRECIATE IT. GOOD EVENING MAYOR AND COUNCIL. SO AFTER TWO YEARS OF EXTENSIVE REVIEW AND UPDATING OF OUR BUS NETWORK, AND ROBUST PUBLIC OUTREACH, WE ARE ABOUT TO LAUNCH AC TRANSIT'S REALIGN SERVICE CHANGE ON AUGUST 10TH. SO AS A REMINDER, THIS IS A RESPONSE TO POST PANDEMIC ERA, CHANGES IN RIDERSHIP, DUE TO HYBRID WORK AND REMOTE WORK AND THAT SORT OF THING. AND WE ARE DOING SO WITH THE UNDERSTANDING THAT WE HAVE A CONSTRAINED BUDGET DUE TO LOWER REVENUES AND INCREASING COSTS. AND WE HAVE WEIGHED ALL OF OUR DECISIONS THROUGH A FILTER OF GUIDING PRINCIPLES OF RELIABILITY, EQUITY AND FREQUENCY WHILE ALSO ENSURING THAT WE HAVE SUFFICIENT WORKFORCE TO DELIVER RELIABLE SERVICE TO THE COMMUNITY AT LARGE, BUT IN PARTICULAR, LOW INCOME AND TRANSIT-DEPENDENT COMMUNITIES. SO RIGHT NOW WE HAVE GONE LIVE ON OUR WEBSITE. THAT'S KIND OF OUR CENTRAL HUB FOR ALL THE ROUTE PROFILES AND NEW SCHEDULES AND THE LIKE. WE ARE ALSO GOING TO HAVE ON-BUS MATERIALS, ADVERTISEMENTS, BROCHURES, AND CAR CARDS. WE ARE ALSO PUSHING OUT DIGITAL THROUGH ENEWS AND SOCIAL MEDIA AND THE LIKE. AND SO I JUST WANTED TO REMIND EVERYBODY WE ARE ALSO DOING AMBASSADORSHIPS AT VARIOUS BUS STOPS THROUGHOUT THE NETWORK SO THAT PEOPLE ARE

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AWARE, NOT CAUGHT OFF GUARD BEFORE THEY GO INTO EFFECT AUGUST 10TH. SO APPRECIATE THE TIME. WE ARE ALSO BAGGING STOPS. THERE ARE 1500 THAT WE ARE TOUCHING, SO IT MAY TAKE A LITTLE BIT OF TIME BEFORE THE SPECIFIC CHANGES FOR YOUR BUS STOP TO ACTUALLY GET FLAGGED WITH SIGNAGE, SO I ENCOURAGE EVERYBODY TO GO TO WWW DOUBT AC TRANSIT DOT ORG SLASH REALIGN. I ALSO LEFT SOME BROCHURES WITH ROSE, SO THANK YOU SO MUCH. APPRECIATE IT.

>> MAYOR ISHII: WE GOT THEM. THANK YOU VERY MUCH, APPRECIATE YOUR COMMENT AND YOUR TIME TO COME HERE TO SPEAK WITH US ABOUT THIS. MOVING ON, SO WE ARE MOVING ON TO ITEM NUMBER 1, WHICH IS THE LANDMARKS PRESERVATION COMMISSION APPEAL FOR 2425 DURANT. LANDMARK APPLICATION #LMIN2024-0008. AND I AM GOING TO OPEN THE PUBLIC HEARING AND PASS IT ON TO STAFF.

>> STAFF: THANKS, MAYOR ISHII, AND COUNCILMEMBERS. I AM JORDAN KLEIN AND PRESENTING ON ALL THREE ITEMS THIS EVENING WILL BE ROBERT RIVERA, SENIOR PLANNER. I THINK HE'S PULLING UP THE SLIDE DECK NOW FOR ITEM 1.

>> STAFF: YEP, LET ME PULL UP THE SLIDES AND I WILL SHARE IT TO OUR ZOOM. GREAT. SHOULD BE AVAILABLE. GOOD EVENING, COUNCIL, MADAM MAYOR. MY NAME IS ROBERT RIVERA. I AM A SENIOR PLANNER WITH THE LAND USE PLANNING DIVISION. BEFORE YOU, THIS EVENING IS AN APPEAL OF A LANDMARKS PRESERVATION COMMISSION DECISION TO DESIGNATE THE SUBJECT PROPERTY AT 2425 DURANT AVENUE AS A CITY

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LANDMARK. I WILL PROVIDE SPECIFIC SUPPOSED TO BE DETAILS BEFORE ADDRESSING THE APPEAL. THE UPCOMING SLIDES PROVIDE A SUMMARY OF THE RELEVANT PERMIT AND LANDMARK REVIEW MILESTONES. ON NOVEMBER 18TH, 2024, THE CITY RECEIVED A PRELIMINARY USE PERMIT APPLICATION PURSUANT TO SB330. THE APPLICATION WAS SUBMITTED ON NOVEMBER TWENTY-FIRST, THEN ON DECEMBER 13TH, THE PRELIMINARY USE PERMIT APPLICATION WAS DEEMED COMPLETE AND VESTED TO THE DATE OF SUBMITTAL NOVEMBER 21ST. DECEMBER 31ST -- WHICH INITIATED FORMAL CONSIDERATION OF THE SITE FOR HISTORIC DESIGNATION. ON JANUARY 13TH, 2025, PUBLIC HEARING NOTICES WERE MAILED TO PROPERTY OWNERS AND OCCUPANTS WITHIN 300 FEET OF THE SITE AS WELL AS TO INTERESTED NEIGHBORHOOD ORGANIZATIONS. AND THEN ON MARCH 6, THE LPC HELD THE PUBLIC HEARING. AFTER REVIEWING THE RECORD AND RECEIVING PUBLIC COMMENT, THE COMMISSION VOTED TO DESIGNATE THE PROPERTY LOCATED AT 2421 DURANT AVENUE AS A CITY LANDMARK. ON MARCH 13TH, THE USE PERMIT APPLICATION WAS THEN COMPLETE. ON APRIL 15TH, 2025, THE APPELLANT FILED AN APPEAL OF THE LPC'S DECISION, WHICH BRINGS US TO TODAY'S HEARING. BEFORE I PRESENT THE PROJECT LOCATION AND DETAILS, I WANT TO CORRECT AN ERROR WITH REGARD TO THE LPC'S NOTICE OF DECISION. THE LPC'S NOTICE OF DECISION THAT WAS MAILED TO THE APPLICANT INCORRECTLY INCLUDED ALL PROPERTIES. THE NOTICE OF THE DECISION SHOULD HAVE EXCLUDED 2425 DURANT AVENUE AND THE

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RARE COTTAGE. THE LPC'S DECISION IS NARROWLY FOCUSED ON 2124 DURANT AVENUE. A SUPPLEMENTAL MEMO WAS INCLUDED WITH A REVISED NOTICE OF DECISION, INCLUDES A RED LINE STRIKE THROUGH FORMAT TO REFLECT THE REMOVAL OF THOSE BUILDINGS. THE APPELLANT WAS MADE AWARE OF THE ERROR AND SELECTED TO CONTINUE THE HEARING OF THE APPEAL REGARDLESS OF THE NEW NARROWER SCOPE. MOVING ON TO THE PROJECT LOCATION. THIS SLIDE SHOWS THE ZONING DESIGNATION AND LOCATION OF 2425 DURANT AVENUE. THE PROPERTY IS LOCATED IN THE SMU RESIDENTIAL SOUTH SIDE ZONING DISTRICT WHICH ALLOWS FOR A MIX OF THE RESIDENTIAL AND COMMERCIAL USES AND ENCOURAGES HIGH DENSITY MULTISTORY DEVELOPMENTS CLOSER TO MAJOR SHOP AND TRANSPORTATION. THE SUBJECT PROPERTY SURROUNDED BY MULTIPLE DESIGNATED HISTORIC STRUCTURES INCLUDING THE CAMBRIDGE APARTMENTS, FRED TURNER BUILDING AND BARDS FIELD AND THE ALBRU. THESE UPCOMING SLIDES SHOW A STREET LEVEL VIEW OF THE SUBJECT PROPERTY. IT'S A TWO TO THREE STORY OVER BASEMENT VICTORIAN WITH A TOWER ROOF. IT'S A STICK STYLE INCLUDES HORIZONTAL AND VERTICAL BAND DETAILS AND DECORATIVE TRUSS AND GABLES AND OVERHANGING EAVES WITH EXPOSED RAFTER ENDS. IT WAS CONSTRUCTED IN 1886. 2425 DURANT AVENUE, WHICH IS EXCLUDED FROM THE LANDMARK DESIGNATION WAS BUILT IN 1905. THIS SHOWS THE RARE COTTAGE, WHICH WAS ALSO EXCLUDED FROM THE LANDMARK DESIGNATION. IT WAS BUILT IN 1906 AND IS A SIMPLE CRAFTSMAN STYLE TWO-STORY COTTAGE.

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MOVING ON TO THE MAIN APPEAL ISSUES -- I WOULD LIKE TO BRIEFLY SUMMARIZE THE KEY APPEAL ISSUES AND A MORE DETAILED DISCUSSION CAN BE FOUND IN THE STAFF REPORT. THE APPELLANT'S CLAIM THAT THE LANDMARK DESIGNATION IS PROHIBITED BY SB330 AND HOUSING ACCOUNTABILITY ACT CLAIMS IT PUTS THE HOUSING AT RISK. UNDER STATE LAW, ONCE AN SB330 PRELIMINARY APPLICATION FOR A HOUSING DEVELOPMENT PROJECT IS SUBMITTED AND DEEMED COMPLETE, IT IS PROTECTED FROM THE APPLICATION OF NEW POLICIES OR STANDARDS, WHICH INCLUDE HISTORIC DESIGNATION. THE LPC DESIGNATED THE SITE AS A HISTORIC LANDMARK ON MARCH 6TH 2025 AFTER THE VESTED RIGHTS HAD BEEN ESTABLISHED. WHICH IN THIS CASE THE PRELIMINARY APPLICATION HAD BEEN DEEMED COMPLETE ON NOVEMBER 21ST, 2024. ANY SUBSEQUENT CHANGES TO ZONING OR LOCAL REGULATIONS INCLUDING THE DISCRETIONARY DECISIONS ARE NOT APPLICABLE TO THE HOUSING DEVELOPMENT PROJECT AND ACCORDINGLY STAFF RECOMMENDS REVERSING THE DESIGNATION BECAUSE IT CANNOT BE APPLIED TO THE PROPOSED PROJECT UNDER STATE LAW. STAFF RECOMMENDS THAT THEY COUNCIL CONDUCT A PUBLIC HEARING AND ADOPT A RESOLUTION REVERSING THE LPC'S DECISION TO DESIGNATE THE PROPERTY AT 2124 DURANT AVENUE AS A CITY LANDMARK. OR REMAND THE MATTER BACK TO THE LPC. THIS CONCLUDES STAFF'S PRESENTATION AND I AM AVAILABLE FOR ANY QUESTIONS.

>> MAYOR ISHII: THANK YOU. I AM WONDERING IF WE SHOULD TAKE

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QUESTIONS NOW OR IF THERE ARE OTHER PRESENTATIONS? YEAH.

>> YEAH, I THINK TYPICALLY, WE GO STRAIGHT TO THE FIVE MINUTE PRESENTATION.

>> MAYOR ISHII: YEAH, LET'S DO THAT.

>> SO, IN THIS CASE. THE APPELLANT IS GOING TO BE THE BERKELEY ARCHITECTURAL HERITAGE ASSOCIATION AND THEN IT LOOKS LIKE OUR APPELLANT IS ALREADY COMING FORWARD.

>> THANKS.

>> AND SO LANDMARK WHO IS SPEAKING TODAY?

>> STAFF: THE APPLICANT IS BAJA AND THE APPLICATION WAS SUBMITTED BY ANTHONY BRUCE, BUT I BELIEVE THERE IS ANOTHER PERSON HERE TO PRESENT ON BEHALF OF BAJA.

>> WHO IS SPEAKING? [ INDISCERNIBLE ]

>> SOMEONE SPEAKING VIRTUALLY. SORRY, THAT WAS MY QUESTION. THANK YOU.

>> I CAN GET YOU THAT NAME.

>> IS IT ISAAC?

>> STAFF: YES.

>> ISAAC IS ON.

>> OKAY. YOU HAVE YOUR FIVE MINUTES.

>> THANK YOU VERY MUCH. GOOD EVENING MAYOR AND MEMBERS OF THE COUNCIL, STAFF AND HAPPY SUMMER. I WANT TO ONCE AGAIN THANK THE STAFF FOR SUCH A THOROUGH APPEAR SUCCINCT RESPONSE TO THIS

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ISSUE. LANDMARK'S COMMISSION, I HOPE IS GOING TO BE IN BETTER ALIGNMENT WITH STATE LAW AFTER THIS, AND I REGRET THAT BAJA INVITED FOLKS OUT TONIGHT BECAUSE THIS IS A LEGAL ISSUE AND NOT A POLITICAL ISSUE. THESE ARE REALLY COOL OLD BUILDINGS, NO DOUBT ABOUT IT AND EVERY BUILDING IN BERKELEY HAS A HISTORY, BUT THAT DOESN'T MAKE THEM HISTORIC RESOURCES. THESE BUILDINGS ARE OTHERWISE, SOMEWHAT UNREMARKABLE, BUT NONE OF THAT MATTERS TONIGHT. WHAT MATTERS IS THAT THE LANDMARKING, THE DESIGNATION SHOULDN'T HAVE OCCURRED IN THE FIRST PLACE AND WE ARE OPPOSED TO THAT DESIGNATION UNDER ANY CIRCUMSTANCES, THE PROPERTY, THE PROPERTY AND THE BUILDINGS ETC. AND THEIR HISTORIES, BY THE WAY, ARE NOW VERY WELL DOCUMENTED AND RECORDED IN THE RECORD HERE TONIGHT. I ONLY HAVE THREE REQUESTS TO LEAVE WITH YOU HERE. FIRST, ADOPT THE STAFF RECOMMENDATIONS AS THEY ARE WRITTEN. IT'S TAKEN US SOME TIME TO GET HERE AND THESE UNDERSTANDING AND ALSO, BY THE WAY, FOR THE NEXT PROJECT, WHICH IS IN A SIMILAR CIRCUMSTANCES. I WOULD LIKE TO REQUEST A REFUND OF OUR APPEAL FEES IF THAT'S POSSIBILITY. I WOULD LIKE TO POINT OUT HAVING BEEN A LANDMARK SECRETARY IN THE PAST, THE LANDMARK ORDINANCE WAS WRITTEN IN THE LATE 1970S. IT HAS NOT BEEN SUBSTANTIALLY UPDATED SINCE THEN. WHEN ARE WE GOING TO CREATE A NEW LANDMARK'S PRESERVATION ORDINANCE THAT BETTER ALIGNS WITH OUR CITY'S IDEALS AND HOW WE KNOW THAT WE NEED TO ADDRESS HOUSING TODAY? BECAUSE I

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THINK THAT IF WE WERE TO DO THAT, WE WOULDN'T HAVE SITUATIONS LIKE THIS IN FRONT OF THAT I THINK ARE GENERALLY, UNNECESSARY, SO THANK YOU VERY MUCH. HAPPY TO ANSWER ANY QUESTIONS YOU MIGHT HAVE.

>> MAYOR ISHII: THANK YOU. AND THEN OUR NEXT SPEAKER IS ONLINE, AND WE WILL CALL YOU BACK FOR QUESTIONS, TOO.

>> ALRIGHT. SO ISAAC IS ON AND ISAAC, YOU SHOULD BE ABLE TO SPEAK.

>> YEAH, I SEE MY TIME. I AM PRESENT.

>> MAYOR ISHII: SO THEY HAVE FIVE MINUTES TO SPEAK, SO THAT'S HOW LONG THEY WILL HAVE. THANK YOU.

>> GOOD EVENING, EVERYONE. GOOD EVENING, COUNCIL. MY NAME IS ISAAC -- I AM A BERKELEY RESIDENT. AND I AM SPEAKING TONIGHT ON BEHALF OF THE BERKELEY ARCHITECTURAL HERITAGE ASSOCIATION, OF WHICH I AM A BOARD MEMBER. THE HISTORY OF THE SOUTH SIDE NEIGHBORHOOD IS ONE OF CONTINUAL TRANSFORMATION. AND SO, TOO IS THE HISTORY OF THIS PROPERTY ON WHICH ONE STRUCTURE AFTER ANOTHER WAS ADDED OVER THE YEARS. THESE ADDITIONS INCREASED THE DENSITY OF THE PROPERTY MORE THAN TEN-FOLD, BUT THE HISTORY OF THE SITE REMAINS PERFECTLY LEGIBLE IN THE ENSEMBLE OF BUILDINGS. LET THIS BE A LESSON FOR THE CITY AT LARGE. THE HISTORY OF ITS DEVELOPMENT NEEDS TO BE.EDU IN ITS BUILDING STOCK. AND I ACTUALLY HAD A QUESTION FOR THE STAFF OR FOR THE CLERK. I

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SUBMITTED A COUPLE OF SLIDES TO PRESENT. I WONDER IF THOSE ARE ON-HAND?

>> STAFF: YOU AS A PANELIST, IF YOU HAVE THE SLIDES AVAILABLE CAN SHARE YOUR SCREEN TO SHARE THOSE, BUT WE DO NOT HAVE THOSE READILY AVAILABLE.

>> MAYOR ISHII: CAN WE PAUSE HIS TIME? I AM SORRY.

>> I AM SORRY, I WASN'T AWARE THAT I NEED TO PRESENT. JUST A SECOND. I DO HAVE THEM ON THIS COMPUTER.BLACKABY ALRIGHT. I WILL CONTINUE. SO 242 ON DURANT THE ONLY STRUCTURE NOTED AND FEATURES TO BE PRESERVED BY THE LPC IS NOTED IN THE APPLICANT'S HISTORICALLY IS ONE OF THE LAST RESIDENCE IN ITS VICINITY. HERE IS AN IMAGE OF THE HOUSE SOON AFTER IT WAS CONSTRUCTED AT THE TIME WHEN BERKELEY'S UNIVERSITY NEIGHBORHOOD ASSOCIATED WAS ONLY JUST STARTING TO FILL IN. THERE IS A HOUSE IN FRONT OF IT, BUT OTHERWISE THE BLOCK THAT IT'S ON IS LARGELY EMPTY. THE VERY FACT THAT THE APPLICANT'S HISTORICAL PROPERTY CONSIDERS IT VESTIGIAL IS WHAT -- THE REAL PITY IS THAT THE LANDMARK DESIGNATION UNDER CONSIDERATION LEAVES PLENTY OF ROOM FOR DRAMATIC REDEVELOPMENT. ALTHOUGH WE AT BAJA BELIEVE THE ENTIRE ENSEMBLE OF BUILDINGS HAD HISTORICAL SIGNIFICANCE, AS A RESULT THE REST OF THE PARCEL COULD EASILY BE USED FOR NEW HOUSING MUCH LIKE THE HOUSING GOING UP AT THE LANDMARK LATRELL HOUSE ONLY A FEW BLOCKS ON THE BLOCKS AWAY, THAT'S THE IMAGE ON THE RIGHT. PRESERVE THE SIGNIFICANCE

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OF THE PARCEL AS AN EDUCATIONAL FORCE. COUNCILMEMBERS YOU MIGHT SAY THAT YOUR HANDS ARE TIED BY STATE LAW AND THAT WE SIMPLY AREN'T ALLOWED TO LANDMARK THIS PROPERTY. TO THAT I SAY THESE THINGS, THE CITY PREVIOUSLY INTERPRETED STATE LAW SO THAT LANDMARKING WOULD HAVE SYMBOLIC VALUE AND PROTECT -- THIS REMAINS AND NOW ASSISTS A REASONABLE INTERPRETATION OF STATE LAW AND SOMETHING THE COUNCIL SHOULD GET TO THE BOTTOM OF TONIGHT. AND SECOND, EVEN IF YOUR HANDS ARE TIED TODAY, THIS LANDMARK DESIGNATION AND APPEAL IS A SHAMEFUL REMINDER IS THAT CITY HAS NOT FURLOUGHED ITS OBLIGATION UNDER THE LAW TO PLAN COMPREHENSIVELY FOR HISTORIC RESERVATION. THE CITY REPEATEDLY PROMISED TO MAKE -- LET ME REMIND THE COUNCIL THE CITY IS REQUIRED TO UNDERTAKE THIS AS PART OF ITS HOUSING ELEMENT IN EIR. CRUCIAL PROPERTIES LIKE THIS WOULDN'T FALL THROUGH THE CRACKS AND MOREOVER THEY CAN BE DESIGNATED PROACTIVELY BEFORE THEY ARE THREATENED BY REDEVELOPMENT. EVERY YEAR THAT PASSES WITHOUT SUCH A SURVEY WILL RESULT IN MORE LOSS OF PROPERTIES LIKE THIS AND LITTLE BY LITTLE BERKELEY'S BUILDING STOCK WILL NO LONGER TELL ITS HISTORY. LET ME ADD THAT HISTORIC PRESERVATION IS IMPORTANT BECAUSE THE HISTORY MIGHT BE EXIST IN THE WRITTEN RECORD AS THE APPLICANT INDICATED TONIGHT, BUT THAT HISTORY IS NOT EXPERIENCED ORGANIC DAILY BASIS AND IT'S NOT SOMETHING THE AVERAGE BERKELEY RESIDENT CAN APPRECIATE. THE VALUE OF THE

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HISTORIC PRESERVATION IS THAT THERE IS A SENSE OF A HISTORY OF A PLACE IN THE COURSE OF ITS BUILT ENVIRONMENT. IT'S IMPORTANT FOR THE CITY, GIVEN THESE UNFORTUNATE, LIKE, SCHEDULES AND STATED LAW COINCIDENCE ANDS ALL OF THESE THINGS THAT ARE COMING TOGETHER THAT MAKE PROTECTION DIFFICULT IN THIS CASE, DESPITE ALL THAT, IT'S IMPORTANT FOR THE CITY TO TAKE THIS LESSON AND MOVE FORWARD PROACTIVELY TO PRESERVE THE HIT OF THE CITY. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBERS, DO YOU HAVE ANY QUESTIONS? YES, GO AHEAD, COUNCILMEMBER. I WILL TURN THIS ON.

>> T. TAPLIN: THANK YOU, MADAM MAYOR. I JUST HAVE ONE QUESTION FOR STAFF. HAD THE LPC BEEN APPRIZED OF STATE LAW AND THE IMPLICATION OF THEIR LANDMARK OF THIS PROPERTY AFTER THEIR APPLICATION HAD BEEN SUBMITTED?

>> YES, THE LPC, WHEN THEY LOOK AT APPLICATIONS THAT HAVE AN SB330 VESTING ARE MADE AWARE OF THAT.

>> T. TAPLIN: THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU. I ALSO HAVE A QUESTION FOR STAFF. THIS IS IN RESPONSE TO ONE OF THE -- WELL, COMMENTS THAT WAS JUST MADE, I DON'T KNOW IF IT WAS AN APPEAL POINT. BUT THE COMPREHENSIVE HISTORICAL SURVEY THAT WAS REFERENCED SOMETHING TO THE EFFECT OF THE CITY PREVIOUSLY MADE A COMMITMENT OR ALLEGEDLY

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MADE A COMMITMENT TO DO THAT AS PART OF ITS HOUSING ELEMENT, CAN YOU EXPAND ON THIS PARTICULAR ELEMENT? I AM NOT SURE I HAVE BEEN MADE FAMILIAR WITH THIS PARTICULAR POINT.

>> STAFF: SURE, THANK YOU. I CAN FIELD THAT. THE ENVIRONMENTAL IMPACT REPORT THAT THE CITY COMPLETED IN ASSOCIATION WITH THE ADOPTION OF THE 2023 TO 2031 HOUSING ELEMENT IDENTIFIED SOME SIGNIFICANT UNAVOIDABLE IMPACT. AND ONE OF THOSE WAS THE POTENTIAL LOSS OF HISTORIC RESOURCES IN BERKELEY. ONE OF THE MITIGATION MEASURES THAT THE CITY IDENTIFIED TO MITIGATE THE IMPACTS OF THIS WAS THE DEVELOPMENT OF A CITYWIDE HISTORIC CONTEXT STATEMENT. AND I DO WANT TO -- IT'S A LITTLE DIFFERENT THAN A COMPREHENSIVE SURVEY, BUT A CITYWIDE HISTORIC CONTEXT STATEMENT TO HELP INFORM POLICYMAKING AND DECISIONS AROUND HISTORIC PRESERVATION IN BERKELEY. AND THAT IS STILL AN OUTSTANDING ACTION.

>> I. TREGUB: UM, THANK YOU. I DON'T WANT TO GET TOO FAR AFIELD FROM WHAT IS BEFORE US, BUT CAN YOU JUST IN GENERAL TERMS STATE HOW IS THAT TO BE DELIVERED ITEM? HOW IS IT BEING TRACKED? IS IT SOMETHING THAT THE PLANNING DEPARTMENT IS WORKING ON OR PLANS TO WORK ON OR IS IT PART OF A REFERRAL? CAN YOU JUST KIND OF PROVIDE A GENERAL STATEMENT OF WHERE THIS IS HOUSED?

>> STAFF: ABSOLUTELY. THAT IS IN THE PLANNING DEPARTMENT'S WORK PLAN AND IT IS SOMETHING THAT WE ARE SEEKING FUNDING FOR,

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WHETHER THROUGH GRANT FUNDING OR AN ALLOCATION OF GENERAL FUNDS OR OTHER POTENTIAL FUNDING SOURCES, SO THAT IS PART OF OUR WORK PLAN.

>> MAYOR ISHII: OKAY. COUNCILMEMBER BLACKABY.

>> B. BLACKABY: THANKS, MADAM MAYOR. I JUST HAVE TWO QUICK QUESTIONS FOR STAFF, PROCESS QUESTIONS AS I UNDERSTAND. IF THIS PROPERTY HAD BEEN LANDMARKED PRIOR TO NOVEMBER 18TH, 2024, AND THE PLANNING DEPARTMENT RECEIVED AN SB330 APPLICATION, HOW WOULD THAT HAVE UNFOLDED AT THAT POINT?

>> STAFF: YEAH, IF THE PROPERTY HAD BEEN LANDMARKED PRIOR TO APPLICATION FILING, IT WOULD BE CONSIDERED A CULTURAL RESOURCE UNDER CEQA AND IT WOULD HAVE GONE THROUGH PRESUMABLY A FOCUSED AND ENVIRONMENTAL IMPACT REPORT TO EVALUATE THE LOSS OF THE RESOURCE.

>> B. BLACKABY: OKAY. AND SO THE PROCESS OBVIOUSLY, WOULD HAVE BEEN -- UNFOLDED VERY DIFFERENTLY. THERE WOULD BE MORE REVIEW OT IMPACT OF THAT RESOURCE AND A DETERMINATION MADE AT THAT POINT.

>> STAFF: THAT'S CORRECT.

>> B. BLACKABY: OKAY. AND LOOKING FORWARD BECAUSE WE KNOW THAT NOT ALL OF THESE HOUSING PROJECTS THAT ARE -- THAT REACH THIS POINT NECESSARILY PROCEED AND CONCLUDE, IS THERE A POINT AT WHICH AS THE COUNCIL DECIDED TONIGHT TO REVERSE THE LANDMARKING STATUS, AND AT SOME POINT THIS PROJECT DID NOT -- WAS NOT

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COMPLETED, COULD IT BE LANDMARKED? HOW WOULD THAT UNFOLD DOWN THE ROAD DOWNSTREAM?

>> STAFF: SURE. IF -- SO IF THIS PROJECT WERE TO NOT PROCEED, YOU KNOW, THERE ARE CERTAIN TIMELINES IN WHICH THE PROJECT HAS TO BE COMPLETED AND IF THE PROJECT WERE TO LOSE ITS ENTITLEMENT OR ACTUALLY, IT'S NOT YET ENTITLED, IF IT NOT BECOME ENTITLED, IF THE PROJECT WERE CANCELED, THEN THERE WOULD BE AN OPPORTUNITY FOR THE VESTED RIGHTS UNDER THE PRELIMINARY SB330 APPLICATION WOULD EXPIRE. AND SUBSEQUENT TO THAT EXPIRATION, THERE COULD BE AN OPENING FOR A NEW LANDMARK APPLICATION TO PROCEED.

>> B. BLACKABY: OKAY. THANK YOU. THOSE ARE HELPFUL IN THE PROCESS TONIGHT. THANKS.

>> MAYOR ISHII: OKAY. THANK YOU. COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: THANK YOU. I HAVE A QUESTION FOR THE APPELLANT. I AM CURIOUS IF THE APPELLANT CAN LAY OUT ANY DESIGN FEATURES THAT THEY ARE PLANNING TO PRESERVE IN THE NEW DEVELOPMENT?

>> STAFF: THANK YOU FOR THE QUESTION, COUNCILMEMBER. WE ARE NOT PLANNING TO PRESERVE ANY OF THEM BECAUSE IT'S BEING REPLACED BY APPROXIMATELY PROPOSED TO BE REPLACED BY A QUITE LARGE APARTMENT BUILDING AND THERE AREN'T FEATURES ON THESE BUILDING THAT WOULD BE WORTH PRESERVING TOWARDS THAT END.

>> C. LUNAPARRA: OKAY. THANK YOU. THAT'S MY QUESTION. I ALSO

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HAVE A QUESTION FOR STAFF, AND SOMETHING I KIND OF WANTED TO CLEAR UP BECAUSE I ASKED MY COMMISSIONER ABOUT HOW THE LPC GENERALLY GOES ABOUT PROJECTS LIKE THIS WHERE THE -- THE APPLICATION FOR LANDMARK STATUS IS SUBMITTED AFTER PREVIOUS'S PAPERS ARE PULLED, AND IT IS HAA, IT'S COVERED BY THE HAA. THEY SAID THE LPC ESSENTIALLY TAKES A POSITION OF, YOU KNOW, VIEWING THE LANDMARK ON ITS MERIT AND KNOWING THAT THE HAA PROTECTS THE PROJECT REGARDLESS OF WHETHER IT'S CONSIDERED A LANDMARK OR NOT. AND SO I AM CURIOUS I GUESS, IF YOU HAVE ANY THOUGHTS ON THAT OR IF YOU AGREE WITH THAT READ OF HOW THE LPC OPERATES?

>> STAFF: I THINK THE EXPLANATION THAT YOU WERE PROVIDED BY YOU LPC MEMBER SOUNDS CONSISTENT WITH THEIR PRACTICE AND HOW THIS HAS PROCEEDED ON OTHER APPLICATIONS.

>> C. LUNAPARRA: OKAY. THANK YOU. AND DO YOU KNOW IF THIS HAS BEEN AN ISSUE IN OTHER PROJECTS RECENTLY?

>> DO YOU MEAN SPECIFICALLY THE LANDMARKING AFTER VESTING?

>> C. LUNAPARRA: YEAH, AS IN IF THE LANDMARKING STOPS THE PROJECT FROM HAPPENING, ESSENTIALLY?

>> NO, THE LANDMARKING HAS NOT STOPPED PROJECTS FROM PROGRESSED.

>> C. LUNAPARRA: OKAY. I AM CURIOUS IF THE APPELLANT CAN SPEAK TO WHY THIS LANDMARK STATUS WOULD STOP THIS PROJECT OR WOULD PREVENT THIS PROJECT FROM PROGRESSED? SORRY TO CALL YOU BACK UP.

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>> NO, THAT'S OKAY. I AM GLAD TO JUMP IN HERE AS MUCH AS POSSIBLE. YOU WILL HEAR MORE ABOUT IT FROM THE NEXT APPELLANT WHO IS IN A SIMILAR 6. I WOULD LIKE TO SAY WE HAVE BEEN DELAYED NOW AS A RESULT OF WHAT'S GOING. THEY SET THIS PROJECT HERE BACK IN MARCH. IT'S NOW JULY. WE HAVE BEEN HELD UP THIS AMOUNT OF TIME ON THIS ISSUE. THE STATE LAW IS PRETTY CLEAR WHERE RESPECT TO WHAT HAS HAPPENED AFTER A PRELIMINARY APPLICATION HAS BEEN SUBMITTED. ONE OF THE EFFECTS WITH LANDMARKING DOES WITH THIS, IT CHILLS THE ABILITY OF US, OUR CLIENT, AND OUR DEVELOPERS TO GET FUNDING FOR THE PROJECT. THE INSURANCE COMPANIES AND LENDERS LOOK VERY, VERY CAREFULLY OF THESE THINGS. YOU ARE TAKING YOURSELF OUT OF THE A CATEGORY AND PUTTING YOURSELF IN THE C CATEGORY IF WE FETTER A PROJECT WITH SOMETHING LIKE THIS. THAT'S WHY THE STATE LAW WAS PASSED THE WAY IT WAS. BERKELEY HAD A REPUTATION IN THE PAST IT WAS QUITE NOTORIOUS AROUND THIS ISSUE IN THE EARLY 2000S AND EARLY '90S, AND SO THIS STATE LAW IS AN ATTEMPT TO STOP THAT KIND OF PROCESS ABUSE RELEVANT TO HOUSING PRODUCTION.

>> C. LUNAPARRA: THANK YOU. AND MY FINAL QUESTION IS IF YOU ARE CONFIDENT THAT THIS PROJECT CAN MOVE FORWARD AS PLANNED IF THIS APPEAL IS GRANTED?

>> I AM QUITE CONFIDENT. WE ARE WATCHING THE MARKET VERY, VERY CAREFULLY. YOU KNOW OUR POLICY VICTORIES THE LAST FEW YEARS HAVE

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LED TO AN INCREDIBLE AMOUNT OF NOW HOUSING OPENS THE LAST COUPLE OF YEARS. SOME PROJECTS WILL NOT MOVE FORWARD. THIS PROJECT IS IN A LOCATION THAT WE ABSOLUTELY PLAN TO MOVE FORWARD WITH AND LOOK FORWARD TO PROVIDING A GREAT DEAL OF NEW HOUSING RIGHT CLOSE TO THE EDGE OF THE SOUTH EDGE CAMPUS WHERE IT BELONGS.

>> C. LUNAPARRA: OKAY. GREAT. THANK YOU SO MUCH, THOSE ARE ALL OF MY QUESTIONS.

>> MAYOR ISHII: THANK YOU. I JUST WANT TO CHECK BEFORE I GO BACK TO COUNCILMEMBER TREGUB TO SEE IF ANYONE ELSE HAS QUESTIONS. OKAY. COUNCILMEMBER TREGUB.

>> I. TREGUB: SORRY, MARK, CAN YOU COME BACK UP? YOU MIGHT AS WELL JUST STAY THERE.

>> IT'S OKAY. I DON'T HAVE MY STEPS IN YET TODAY.

>> I. TREGUB: THIS MIGHT HELP. I KNOW THAT IN THE PAST, I AM GOING TO USE THE WORLD OLDER HOUSING STOCK BECAUSE I KNOW HISTORICAL HOUSING STOCK HAS A PARTICULAR CONTEXT, SOMETIMES HAS BEEN RELOCATED TO OTHER PARTS OF CITY WHERE THEY NOW CONTINUE TO BE AND REMAIN PRESERVED. I WAS CURIOUS IF ANY CONSIDERATION HAS BEEN GIVEN TO AT LEAST EXPLORE POSSIBLE RELOCATION OF THIS SUBJECT PROPERTY?

>> I APPRECIATE THAT QUESTION AND I HAVE BEEN ON BOTH SIDES OF IT A FEW TIMES HERE IN BERKELEY, AND IT'S WORKED A COUPLE OF TIMES. SO, YOU KNOW, IT'S NOT A MITIGATION THAT CAN BE APPLIED

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TO THE PROJECT IN THIS PROCESS, BUT I WILL MAYBE GO OUT ON A LITTLE BIT OF A LIMB WITH RESPECT TO MY CLIENT, BUT I WOULD COMMITMENT TO YOU THAT WE WOULD DO SOMETHING SIMILAR THAT'S BEEN DONE IN THE PAST, OFFER THE STRUCTURES FOR A DOLLAR TO SEE IF THERE IS REAL INTEREST IN THE COMMUNITY OF MOVING THEM. WE ENGAGED IN A COUPLE OF THESE IN THE PAST WHERE THERE IS A LOT OF ENTHUSIASM FOR A POTENTIAL MOVER TO MOVE A PROJECT, BUT IT ENDED COSTING THE PROJECT MONTHS TO REALIZE THAT WASN'T GOING TO HAPPEN. WE WILL MAKE AN EARNEST EFFORT TO DO SO. WE WILL REACH OUT TO BAJA IF THEY WANTED TO AND ALLOW THEM TO ADVERTISE THAT FACT. WE WOULD WORK SOMETHING UP LIKE WE HAVE DONE IN THE PAST.

>> I. TREGUB: OKAY. THANK YOU. AND THEN A QUESTION FOR STAFF -- SHOULD THERE BE THE POSSIBILITY OF MOVING SUCH A PROPERTY TO A DIFFERENT SITE SHOULD ONE BE AVAILABLE AND FEASIBLE, SPEAKING GENERALLY, WHAT KIND OF -- I KNOW THAT EVERYTHING HAS TO GO THROUGH A PROCESS, SO I AM JUST ASKING IF CONSIDERATION CAN BE GIVEN BY STAFF OR WHAT HAS BEEN DONE IN THE PAST TO TRY TO FACILITATE AROUND YOUR HONOR APPROVALS SHOULD SOMETHING BE AVAILABLE TO BE MOVED AND FEASIBLE TO DO? WHAT CAN THE CITY DO ON THAT SIDE?

>> STAFF: CERTAINLY. I CAN SAY THAT I HAVE ACTUALLY WORKED ON HELPING FACILITATE THE PERMITTING OF THE HOUSE MOVE OFF OF THE SITE WHERE CURRENTLY THE NORTHEAST CORNER OF HASTE AND

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TELEGRAPH, WHERE ONE OF THE MOST INTERESTING BUILDINGS IN BERKELEY CURRENTLY STANDS. YES, WE WOULD DO WHAT WE CAN TO FACILITATE A PERMITTING TO FACILITATE A HOUSE MOVE.

>> I. TREGUB: THANK YOU.

>> MAYOR ISHII: COUNCILMEMBER LUNAPARRA HAS ANOTHER QUESTION.

>> C. LUNAPARRA: THANK YOU, YEAH, I APPRECIATE THE COMMENT ABOUT THE HASTE AND TELEGRAPH BUILDING. SORRY, I MEANT TO ASK THIS EARLIER, BUT I AM NOT FEELING WELL AND NOT IN THE RIGHT MIND. I AM CURIOSITY IF YOU CAN SPEAK TO THE STATUS OF THE BUILDING ON THE INSIDE? HOW MANY UNITS ARE ON THE INSIDE AND WHAT IS THE GENERAL STRUCTURAL STATUS AND INHABITABILITY OF IT?

>> I THINK THAT'S A QUESTION FOR ME.

>> C. LUNAPARRA: YES. FOR THE APPELLANT.

>> I HAVEN'T BEEN INSIDE THE BUILDING PERSONALLY, BUT FOCUSING HAVE LIVED THERE MORE OR LESS RECENTLY, AND OF COURSE, THOSE FOLKS HAVE BEEN INFORMED OF THE PROJECT AND, YOU KNOW, THERE IS A NUMBER OF UNITS. I CAN'T REMEMBER OFF THE TOP OF MY HEAD, MAYBE NINE OR 11, MIGHT BE AS MANY AS 19 IN THIS CASE THAT WOULD ALL GET REPLACED AS A PART OF THE FUTURE PROJECT.

>> C. LUNAPARRA: IT'S SUBJECT TO THE NEW DEMOLITION ORDINANCE, CORRECT? SORRY, I DIDN'T MEAN TO INTERRUPT?

>> I CANNOT RECALL OFF -- I DIDN'T PREPARE. THAT'S A ZONING ADJUSTMENT BOARD KIND OF QUESTION. I DIDN'T PREPARE FOR THAT,

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BUT I CAN FIGURE THAT OUT IF YOU WOULD LIKE. STAFF MAY HAVE THAT INFORMATION AT HAND RIGHT NOW.

>> MAYOR ISHII: I THINK OUR STAFF ARE DISCUSSING THAT TO ANSWER THAT QUESTION FOR YOU. ONCE WE GET THE ANSWER, WE CAN CIRCLE BACK TO IT UNLESS JORDAN MAYBE YOU HAVE.

>> STAFF: I WOULD LIKE TO AVOID ASKING SPECIFIC QUESTIONS ABOUT THE DEVELOPMENT PROJECT BECAUSE THE DEVELOPMENT PROJECT IS NOT WHAT IS BEFORE? CONSIDERATION BEFORE DEVELOPMENT PROJECT IS NOT WHAT IS BEFORE. IT'S STRICTLY LIMITED TO THE LANDMARK DESIGNATION.

>> MAYOR ISHII: OKAY. WE DON'T HAVE QUORUM, SO WE HAVE TO TAKE A MINUTE. I AM SORRY. WE ARE LIMITED BECAUSE WE HAVE FOLKS THAT ARE ONLINE, NOT IN THE AREA, SO AND COUNCILMEMBER, I SEE YOU HAVE YOUR HANDS UP, SO WHEN WE COMEBACK, THEN I WILL GO TO YOU. THANK YOU.

>> C. LUNAPARRA: THANK YOU.

>> MAYOR ISHII: I AM SORRY. I WOULD LIKE TO ASK THE FOLKS TO LEAVE STAFF ALONE SINCE THEY ARE PRESENTING AND THEY ARE SITTING UP THERE, THEY NEED TO BE, YOU KNOW, PAYING ATTENTION WHAT THEY ARE DOING. IF YOU HAVE QUESTIONS, YOU ARE WELCOME TO ASK THE CLERK. THANK YOU.

>> MAYOR ISHII: OKAY. WE HAVE QUORUM AGAIN. VERY GOOD. THANK YOU. NO WORRIES. IT'S JUST HARD BECAUSE WE HAVE A LOT OF FOLKS

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ONLINE AND THEY ARE NOT IN THE CITY, SO, OKAY. SO ANY OR THE QUESTIONS BEFORE WE MOVE ON? OKAY. YES, BEN, I THINK. COUNCILMEMBER BARTLETT, I AM SORRY. DO YOU HAVE A QUESTION?

>> B. BARTLETT: YES, PLEASE, THANK YOU. MY QUESTION IS FOR STAFF. QUESTION -- SO CAN YOU HELP ME UNDERSTAND AND I GUESS THE AUDIENCE AS WELL, WHEN MR. ROWENS MENTIONED THIS THING BEING A LEGAL ISSUE AS MUCH AS A PRESERVATION ISSUE. WHAT EXACTLY IS THE LEGAL ISSUE AT PLAY?

>> STAFF: I GUESS I SOMEHOW DISAGREE IT'S A LEGAL ISSUE. IT'S REALLY A POLICY CALL. SO I CAN ELABORATE ON THE POLICY QUESTIONS, BUT THE STAFF REPORT, AND JORDAN'S REPORT AND ANNE AND OTHERS HAVE SORT OF DELVED INTO THAT. IT'S NOT REALLY A LEGAL ISSUE BECAUSE AS MENTIONED EARLIER, I THINK, BY THE APPELLANT AND STAFF WOULD AGREE WITH THAT DESIGNATION DOESN'T APPLY TO THIS HOUSING PROJECT. THE DESIGNATION HAS BEEN MADE, BUT IT'S SYMBOLIC AND IT DOESN'T APPLY TO THIS PROJECT.

>> B. BARTLETT: OKAY.

>> STAFF: DOES THAT ANSWER THE QUESTION AND JORDAN, FEEL FREE TO --

>> STAFF: YEAH, THAT WASN'T QUITE THE ANGLE, BUT GO AHEAD.

>> MAYOR ISHII: FOLKS, IF YOU HAVE A CONSTITUTION, TAKE IT OUTSIDE SO WE CAN FOCUS ON WHAT'S GOING ON HERE.

>> STAFF: YEAH, I WOULD ADD TO THE CITY ATTORNEY'S COMMENTS AND

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I WANT TO ACKNOWLEDGE THAT STAFF CHANGED OUR RECOMMENDATION ON THIS ITEM FROM THE RECOMMENDATION TO LPC TO THE RECOMMENDATION TO CITY COUNCIL AFTER FURTHER CONSIDERATION OF THE STATUTE, THE TIMING OF THE APPLICATIONS AS WELL AS THE -- OF THE DESIGNATION TO PROPOSE A CONSTRAINT ON HOUSING PRODUCTION AS DESCRIBED BY THE APPELLANT IN THEIR COMMENTS. SO THOSE ARE ALL OF THE PIECES OF INFORMATION THAT INFORM STAFF'S DECISION TO CHANGE OUR RECOMMENDATION TO CITY COUNCIL, AND, YOU KNOW, THE CITY ATTORNEY HAS FRAMED IT AS A POLICY QUESTION FOR COUNCIL TO CONSIDER. YOU KNOW, AND WE ARE HERE TO ANSWER ANY OTHER QUESTIONS THAT YOU HAVE THAT CAN INFORM YOUR DECISION.

>> B. BARTLETT: OKAY. THANK YOU. THAT'S ALL.

>> MAYOR ISHII: COUNCILMEMBER TAPLIN.

>> T. TAPLIN: YEAH, I JUST WANTED TO FOLLOW UP. SO IS IT THAT STAFF CHANGED THE RECOMMENDATION TO COUNCIL GIVEN THAT THE LPC DESIGNATION WOULD IMPOSE A CONSTRAINT UPON THE PROJECT THAT MIGHT CONFLICT WITH SB330?

>> STAFF: YEAH, I THINK -- NOT -- SO THERE IS THE SB330 CONSIDERATIONS, SO SB330 BARS US FROM DESIGNATING, ATTACHING A DESIGNATION THAT COULD IMPACT A PROJECT, RIGHT? AND THAT IS CLEAR. I THINK THERE IS ALSO OTHER PROHIBITIONS IN THE GOVERNMENT CODE FROM MUNICIPALITIES TAKING ACTIONS TO -- [ INDISCERNIBLE ] THE PRODUCTION OF HOUSING AND THAT ALSO INFORM'S

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STAFF'S RECOMMENDATION ON THIS MATTER.

>> T. TAPLIN: UNDERSTOOD, THANK YOU. AND THEN FOR THE APPELLANT, EARLIER, YOU SPOKE ABOUT THE CHILLING EFFECT THAT THE LPC DESIGNATION HAS HAD ON THIS PROJECT. COULD YOU ELABORATE ON THAT?

>> IT'S ALREADY COST US FOUR MONTHS OF TIME IN A PUBLIC HEARING, AND HAVING THE PROJECT'S ENTITLEMENT IMPROVED. IF THE LANDMARKS QUESTIONS IS TO STAND, WE FACE A FUTURE UNCERTAINTY FROM LENDERS BECAUSE OF THE LANDMARK STATUS AND WE FACE A POTENTIAL UNCERTAINTY FROM INSURANCE PROVIDERS AS WELL. THIS HAS THE CHILLING EFFECT THAT IS VERY MUCH A VIOLATION OF STATE LAW AS STATED IN THE STATE DENSITY BONUS LAW, IN OUR OPINION, AND IN THE OPINION OF THE ATTORNEY FOR THE NEXT PROJECT AS WELL WHOSE LETTER I AM SURE YOU HAVE READ. SAME SET OF CIRCUMSTANCES. WE VERY MUCH BELIEVE THIS TO BE A PRIMA FACIE LEGAL ISSUE.

>> TRANSLATOR: THANK YOU.

>> MAYOR ISHII: I WOULD LIKE TO ASK THE CITY ATTORNEY TO EXPAND UPON WHAT SHE WAS SAYING.

>> STAFF: YEAH, SO I GUESS I HAVE TO SAY I DISAGREE WITH THE DEVELOPER'S ATTORNEY LETTER AND THE DEVELOPER THAT IT'S A PRIMA FACIE LEGAL ISSUE. IT'S REALLY A POLICY ISSUE BECAUSE THE DESIGNATION IS SYMBOLIC AND IT DOESN'T APPLY TO THE PROJECT. THE PROJECT IS VESTED, BUT THE CITY COUNCIL AND THIS IS SOMETHING

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THAT THE STAFF HAS LAID OUT VERY COHERENTLY BEFORE YOU IN THE STAFF REPORT AND IN THE PRESENTATION, HAS THE OPTION TO REVERSE COURSE AND FROM A POLICY PERSPECTIVE, DECIDE THAT FOR VARIOUS OTHER REASONS THE APPELLANT HAS MENTIONED FOR EXAMPLE, THE CHILLING EFFECT, MAYBE THERE ARE FINANCING ISSUES, THERE ARE OTHER CIRCUMSTANCES THAT BOLSTER THE ARGUMENT WHY THE DESIGNATION SHOULDN'T STAND. SO I THINK IT'S IMPORTANT TO SORT OF BE CRISP ABOUT OUR THINKING THAT YOU ARE NOT LEGALLY PROHIBITED. THE DESIGNATION HAS BEEN MADE, BUT IT DOESN'T HAVE A LEGAL EFFECT BECAUSE IT DOESN'T APPLY TO THE PROJECT. THE PROJECT IS VESTED. ITS RIGHTS ARE FROZEN IN TIME. AND I APOLOGIZE IF THIS IS TOO TECHNICAL, BUT I THINK IT'S WORTH BEING CLEAR ABOUT IT.

>> MAYOR ISHII: YEAH. I GUESS THE REASON I WAS CONFUSED IS BECAUSE IT SAYS ON ONE OF THE SLIDES THAT THE STAFF RECOMMENDS REVERSING THE DESIGNATION BECAUSE IT CANNOT BE APPLIED TO THE PROPOSED PROJECT UNDER STATE LAW, AND I GUESS THAT WAS WHY I HAD UNDERSTOOD IT TO BE THIS PART OF IT AS A LEGAL ISSUE.

>> STAFF: THAT'S CORRECT. THAT STATEMENT IS CORRECT.

>> MAYOR ISHII: GREAT.

>> STAFF: I GUESS ONE WAY TO THINK ABOUT IT IS THAT THE DESIGNATION IS JUST SYMBOLIC. AND JORDAN, DO YOU WANT TO ELABORATE?

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>> STAFF: YES. THE DESIGNATION CAN'T APPLY TO THE PROJECT. AND SO I THINK THAT'S WHY IF IT ONLY APPLIES TO THE PARCEL, THEN THAT'S WHY IT'S CALLED SYMBOLIC BECAUSE THE PARCEL, LIKE THE PROJECT IS STILL FREE TO COME IN AND DEMOLISH THE BUILDING, RIGHT? BECAUSE THE DESIGNATION CAN'T APPLY TO THE PROJECT.

>> MAYOR ISHII: YEAH, THANK YOU. OKAY. ALRIGHT, SO I THINK THEN IN THAT CASE, WE CAN MOVE ON FROM COUNCIL QUESTIONS AND GO TO PUBLIC COMMENT. SO IF YOU HAVE PUBLIC COMMENT, YOU CAN COME UP HERE TO THE SIDE.

>> GOOD EVENING. I AM A RESIDENT.

>> MAYOR ISHII: COULD YOU MOVE THE MIC CLOSER TO YOU.

>> OKAY.

>> MAYOR ISHII: THERE YOU GO.

>> GOOD EVENING. MY NAME IS BONNIE. I AM A RESIDENT AT 2421. I APPRECIATE YOU GIVING ME THE CHANCE FOR PUBLIC TO SPEAK OUT THIS MATTER. I WANT TO ASK THE HISTORICAL VALUE DOES THAT INCLUDE CULTURAL VALUE OR CIVIC VALUE GIVEN THAT THIS LOCATION IS RIGHT NEXT TO UC BERKELEY CAMPUS AND THE STREET IS NAMED AFTER THE FIRST UC BERKELEY PRESIDENT? THE REASON WHY I BRING THIS UP IS PREVIOUSLY THE PARTY FOR THE PRESERVATION SUCH A SYMBOLIC DESIGNATION ALREADY SHOW YOU THAT THE PREVIOUS OWNER OF THIS LOCATION HAD PUT DOWN THE VISION AND WANT AWARD FOR ITS AESTHETIC APPEAL FOR THIS BUILDING. SO RIGHT NOW I AM ASKING THE

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QUESTION ABOUT DO WE PRESERVE CERTAIN KIND OF A CULTURAL CIVIC OR MORAL VALUE OF THIS BUILDING OR THE CURRENT, THE LANDLORD WHO WILL BE BUILDING A 20-FLOOR BUILDING AT THE CURRENT LOCATION WHO CURRENTLY EVERY 13TH FROM LAST TIME I HEARD, RESIDENT, TENANTS OF BERKELEY IS HIS. AND THIS TENANT -- THIS LANDLORD, IN CONTRAST PREVIOUS LANDLORD WAS A GENEROUS KIND. THIS CURRENT OWNER WHEN HE TOOK OVER THE OWNERSHIP, THEN RIGHT WHEN COVID HITS, MOST OF THE, MANY OF THE LANDLORDS OF BERKELEY AUTOMATICALLY JUST OFFERING THE RENT DEDUCTION GIVEN THAT SUCH A DIFFICULT TIME FOR EVERYONE REMOTE AND EVERYTHING, BUT AT THIS LOCATION, IT RAISED TO THE LEGAL MAXIMUM. NOT ONLY THAT THEY DIDN'T PROVIDE ANY SAFETY CHECK EVERY YEAR FOR SEVEN YEARS THAT THEY PURCHASED THIS LOCATION AND DIDN'T --

>> MAYOR ISHII: THANK YOU. I AM SORRY YOUR TIME IS UP. THANKS FOR YOUR PUBLIC COMMENT.

>> THEY DIDN'T --

>> MAYOR ISHII: NO, I AM SORRY YOU CAN'T SPEAK ANYMORE.

>> CARBON MONOXIDE DETECTOR.

>> MAYOR ISHII: I AM SORRY, YOUR TIME IS UP, SO YOUR COMMENT IS OVER. THANK YOU. ARE THERE OTHER COMMENTS? FOLKS, IF YOU HAVE A PUBLIC COMMENT, CAN YOU JUST LINE UP OVER HERE SO I KNOW HOW MANY PEOPLE ARE SPEAKING? IS ANYONE ELSE SPEAKING ON THIS MATTER? OKAY. CAN YOU GO OVER THERE, PLEASE? YOU ARE WELCOME TO

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SIT ON THE OTHER SIDE, BUT JUST, YOU KNOW, OKAY.

>> YES, MARK AND I WERE ON THE LANDMARKS COMMISSION AT THE SAME TIME, AND AT THAT TIME IT WAS VERY IMPORTANT AS EACH BUILDING WAS DESIGNATED AND WE CONSIDERED EACH DESIGNATION AS A SINGLE. IN THIS CASE, IT'S A LAST STANDING IN THE SOUTH OF CAMPUS, THE SOUTH OF CAMPUS, MY FRIENDS. PEOPLE WHO ARE TAKING CARE OF BERKELEY NOW IS BECOMING NAMELESS, SOULLESS, AND A HOUSING PLACE THAT HAS LOTS OF FOR LEASE SIGNS. AND MARK KNOWS ABOUT BUILDING. I AM SURE BUILDING NOW HAS A LOT MORE RISKS TO IT. IS IT GOING TO BE RENTED? THIS WOMAN SPOKE AT THE LANDMARKS COMMISSION. IT WAS VERY HEARTFELT AND SHE LIVES IN THE BUILDING. PEOPLE HAVE LIVED IN THOSE TWO BUILDINGS FOR MANY, MANY YEARS AND I AM SURE PROBABLY THE UNITS ARE MORE HOSPITABLE THAN WHAT MIGHT BE BUILT IN THE EIGHT STORIES, TEN STORIES. IT'S NOT JUST ONE. ANTHONY BRUCE LANDMARKED IT BECAUSE IT WAS WHAT WAS LEFT. GOING UP DURANT IN THE SOUTH CAMPUS AREA ON TELEGRAPH, THE HOUSING, THE BUILDING, ARE YOU WORKING FOR MONEY OR ARE YOU WORKING FOR THE FUTURE OF OUR TOWN TO HAVE A SOUL AND TO HAVE A PLACE? BECAUSE MONEY IS DRIVING THE YIMBY MANTRA. MONEY THAT THERE ARE FOR LEASE SIGNS EVERYWHERE IN BERKELEY AND WE ARE EVEN ON THE PRECIPICE OF STUDENTS NOT COMING INTERNATIONALLY INTO OUR TOWN THAT WERE THE REASON THE BANK OF AMERICA SITE WAS TORN DOWN FOR THE FIRST ASIAN STUDENTS TO COME OVER. REALLY, WE ARE IN A TURN

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OF EVENTS, A NEW TIME AND LET'S -- IT'S IRREPLACEABLE -- [ INDISCERNIBLE ]

>> MAYOR ISHII: THANKS.

>> ANTHONY.

>> MAYOR ISHII: THANK YOU.

>> AND THE LANDMARKS COMMISSION ENDORSED.

>> MAYOR ISHII: MA'AM. THANK YOU. FOLKS, I AM A STICKLER FOR TIME, SO YOU ARE GOING TO HAVE YOUR TWO MINUTES AND THAT'S WHAT YOU WILL GET. I AM SORRY. WE HAVE A LOT OF THINGS TO COVER TONIGHT. YOU HAVE TWO MINUTES.

>> GOOD EVENING, COUNCILMEMBERS. I AM STEVE FINNIC AND I AM A MEMBER OF THE LANDMARKS COMMISSION AND THE APPOINTEE OF THE DISTINGUISHED COUNCILOR FROM DISTRICT 4. I THINK I AM THE ONLY LPC MEMBER HERE TONIGHT, SO IF YOU HAVE ANY QUESTIONS ABOUT WHAT THE LPC DOES OR HOW THE PROCESS WORKS, I AM HAPPY TO TRY TO ANSWER THOSE. I CAME UP BECAUSE COUNCILMEMBER TAPLIN ASKED A QUESTION EARLIER AND CORRECT ME IF I DIDN'T UNDERSTAND IT RIGHT, BUT YOU ASKED IF THE COMMISSION KNEW WHAT IT WAS DOING IN CONTEXT OF SB330 WHEN IT LANDMARKED THE PROPERTY? IS THAT RIGHT? [ INDISCERNIBLE ]. PARDON? WE DON'T RESPOND TO COMMENTS.

>> I UNDERSTAND. SO I WANTED TO CLARIFY THE COMMISSION HAS BEEN OPERATING THE PAST THREE YEARS OR SO UNDER A LETTER FROM THE CITY ATTORNEY BASICALLY THAT SAYS BASICALLY, WHAT THE STAFF HAS

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EXPLAINED THAT YOU HAVE, IF A PROPERTY IS LANDMARKED AFTER THE SB330 PROJECT APPLICATION IS VESTED, THEN THE LANDMARKING CAN PROCEED, BUT IT DOESN'T APPLY TO THAT PROJECT. THAT'S WHAT THE COMMISSION VOTED, WHAT OUR UNDERSTANDING WAS WHEN WE VOTED ON DESIGNATING THIS PROPERTY AND IT WAS A UNANIMOUS VOTE FROM THE COMMISSION. AFTERWARDS, THE CHANGE IN POLICY WHICH THE CITY SPOKE TO IS VERY, VERY RECENT. WE DIDN'T LEARN ABOUT IT UNTIL OUR MEETING AT THE BARTLETT OF THIS MUCH. I JUST WANTED TO CLARIFY THAT WE WERE IN LINE ON WHAT CITY ATTORNEY AND CITY STAFF ADVISED ON POLICY AND PROCEDURE. DOES THAT MAKE SENSE, EVERYBODY? I HOPE SO. I AM HAPPY TO ANSWER ANY OTHER QUESTIONS. THANK YOU.

>> MAYOR ISHII: THANK YOU. ARE THERE ANY COMMENTS ONLINE?

>> CITY CLERK: YES, WE HAVE ONE RAISED HAND AND KELLY, YOU SHOULD BE ABLE TO SPEAK.

>> HELLO. IT'S REALLY QUITE A STUNNING HOUSE, AND IT WOULD BE A SHAME TO LOSE IT. AND IT'S A SHAME THAT THEY CAN'T JUST DESIGN A PROJECT AROUND IT AND LEAVE IT SO THAT WE CAN HAVE WHAT WAS HISTORY IN BERKELEY AND WE CAN HAVE WHAT IS NEW IN BERKELEY AND IT WOULD BE A SHAME TO JUST MOW EVERYTHING DOWN AND ONLY HAVE WHAT'S NEW AND NOT HAVE A VARIETY OF BUILDINGS. THE DESIGNATION IS SYMBOLIC, WHICH MEANS THAT THEY CAN STILL TEAR IT DOWN ANYWAY, BUT IT REALLY WOULD BE A SHAME. IT WOULD BE SO MUCH

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BETTER TO BUILD AROUND IT AND SAVE IT. THERE WAS A ROADS PROJECT THAT I READ ABOUT IN THE PAPER. YOU KNOW, WE WERE ALL SUPPOSED TO GET THIS PROJECT OF THE CALIFORNIA THEATER AND THAT'S NOW DEAD. I WALK DOWNTOWN TODAY AND I WALKED BY THE BIG HOLE IN THE GROUND OF A BUILDING PROJECT, WHICH SEEMS TO BE DEAD. IT DOES HAVE A PRETTY FENCE AROUND IT, BUT IT DOESN'T APPEAR TO BE GOING ANYWHERE. I GO TO THE DESIGN REVIEW COMMITTEE MEETINGS. I GO TO THE ZONING ADJUSTMENT BOARD MEETINGS AND WHAT I SEE YEAR AFTER YEAR IS PROJECTS GET APPROVED THAT JUST NEVER SEEM TO GO ANYWHERE, SO IT WOULD BE A SHAME TO LOSE THIS HOUSE AND THEN JUST HAVE ANOTHER HOLE IN THE GROUND BECAUSE WE HEAR THERE CAN'T BE ENOUGH MONEY MADE ON THE PROJECT, WHICH IS WHAT WE HEARD ABOUT THE CALIFORNIA THEATER ABOUT A WEEK AND A HALF OR TWO WEEKS AGO. SO I WOULD REALLY ENCOURAGE YOU TO DISMISS THE APPEAL. LET THE HISTORICAL DESIGNATION STAY. IT'S NOT GOING TO -- IT WOULD BE GREAT IF WE COULD DO THAT AND WE WOULD HAVE A VARIETY OF BUILDINGS IN THE CITY. THANK YOU.

>> MAYOR ISHII: THANKS, KELLY. OTHER COMMENTS ONLINE?

>> CITY CLERK: YES. OUR NEXT SPEAKER IS KRISHNA. KRISHNA, YOU SHOULD BE ABLE TO SPEAK.

>> HELLO. I WOULD LIKE TO FEED MY TIME TO ISAAC IF THAT'S POSSIBLE.

>> MAYOR ISHII: ISAAC ALREADY SPOKE DURING THE PERIOD FOR THE

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APPELLANT, HOWEVER, IF YOU WOULD LIKE TO SPEAK DURING THIS TIME, YOU MAY.

>> SURE. I JUST WANT TO SAY I AM A STUDENT AT BERKELEY AND I THINK IT'S PEOPLE LIKE ME WHO ARE POSSIBLY THE MOST IMMENSELY AFFECTED BY DECISIONS LIKE THIS, BUT WE ARE NOT A PART OF THE DECISION MAKING PROCESS, SO I WANTED TO COME HERE AND VOICE MY OPINION AND LET YOU KNOW THAT WE WANT TO LIVE IN A BEAUTIFUL NEIGHBORHOOD. WE DON'T WANT BIG HIGHRISE BUILDINGS WHERE WE CANNOT SEE PAST THEM. WE ARE ALREADY HAVING SO MANY UNIVERSITY HOUSING UNITS COMING UP. WE HAD ONE MORE NEW UNIT COME UP JUST VERY RECENTLY AND THEY ARE FINDING IT VERY DIFFICULT TO FILL THAT HOUSING IN THE FIRST PLACE. SO WE TRULY APPRECIATE IF WE CAN HAVE A MORE BEAUTIFUL SURROUNDING TO BE AROUND BECAUSE IT REALLY HELPS OUR MENTAL HEALTH. [ APPLAUSE ]

>> MAYOR ISHII: THANK YOU. ARE THERE OTHER COMMENTS ONLINE?

>> CITY CLERK: THAT WAS OUR LAST RAISED HAND.

>> MAYOR ISHII: OKAY. WE ARE GOING TO GO TO OUR COMMENTS. ACTUALLY, YEAH, I WAS GOING TO SAY IS THERE A MOTION TO CLOSE THE PUBLIC HEARING.

>> I MOVE.

>> I SECOND.

>> MAYOR ISHII: CAN YOU TAKE THE ROLL, PLEASE?

>> CITY CLERK: PARTICULAR, PRIOR TO CLOSING THE PUBLIC HEARING

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WOULD COUNCILMEMBERS LIKE TO DISCLOSE E PART AYE COMMUNICATIONS.

>> MAYOR ISHII: COUNCILMEMBER?

>> I. TREGUB: SOMETIME IN THE FALL OF 2024, I WAS CONTACTED BY THE APPELLANT ABOUT THIS PROJECT. AT THAT TIME THE DISCUSSION WAS LIMITED TO LEGAL IMPLICATIONS UNDER SB330.

>> MAYOR ISHII: OKAY. ANYONE ELSE? ALRIGHT IN THAT CASE, CAN YOU TAKE THE ROLL PLEASE, CLERK.

>> COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> TAPLIN.

>> T. TAPLIN: AYE.

>> BARTLETT.

>> B. BARTLETT: YES.

>> TREGUB.

>> I. TREGUB: AYE.

>> O'KEEFE IS ABSENT. BLACKABY.

>> B. BLACKABY: YES.

>> LUNAPARRA.

>> LUNAPARRA: YES.

>> HUMBERT.

>> M. HUMBERT: YES.

>> MAYOR ISHII.

>> MAYOR ISHII: YES. OKAY. COUNCILMEMBER HUMBERT.

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>> M. HUMBERT: THANK YOU, MADAM MAYOR. I HAVE GOT A FAIRLY LENGTHY SET OF COMMENTS ON THIS ITEM AND I WOULD ASK YOUR INDENTS FOR ME MAYBE TO EXCEED FIVE MINUTES ON THIS ONE. I WILL -- MY COMMENTS ON THE SUCCEEDING ITEMS WILL BE MUCH SHORTER.

>> MAYOR ISHII: THAT'S FINE. MAYBE GO AHEAD AND TURN THAT OFF BECAUSE IT WILL BEEP IN THE MIDDLE OF YOUR COMMENTS.

>> M. HUMBERT: THEN I WILL JUMP. IN MY VIEW, THERE ARE IN FACT, TWO MAIN ISSUES AT HAND AND I THINK THESE WILL ALSO APPLY TO ITEM 2, THE KITTREDGE PROJECTS. FIRST QUESTION AND I THINK IT'S WORTH GOING TO IS ONE OF THE MERITS. DO THE STRUCTURES AT 2421 AND 2425 DURANT AND I GUESS THE ONLY THE MORE ELABORATE ON THAT ONE IS THE ONE THAT THE DESIGNATION IS PURPORTEDLY SYMBOLICALLY ATTACHED TO, DO THEY MEET THE CRITERIA FOR A LANDMARK DESIGNATION? SECOND ONE OF COURSE IS ONE OF PROCESS. CAN AND SHOULD THE CITY DESIGNATE LANDMARK ON-SITES THAT HAVE PRELIMINARY APPLICATIONS AND THUS HAVE VESTED UNDER STATE LAW? I HAVE TO SAY ON THIS PARTICULAR PROJECT ON DURANT, I HAVE STRUGGLED WITH THESE QUESTIONS LANDMARK DESIGNATION AND APPEAL ALTHOUGH I DON'T HAVE THE 2425 STRUCTURE PARTICULARLY NOTEWORTHY, IT'S NICE, I FIND THE HOUSE AT 2421 IS BEAUTIFUL, I APPRECIATE THE STORY. IT TELLS THE HISTORY OF THE BLOCK AND IT WOULD BE SAD TO SEE IT GO. IF I COULD WAVE A MAGIC WAND AND PUT

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IT ON A PROJECT, I MIGHT PRESERVE IT OR DOUBLE THE SITE. BUT THE DESPITE MY PERSONAL FEELINGS, I THINK WE HAVE TO OPERATE WITHIN THE BOUNDS OF THE MUNICIPAL CODE AND STATE LAW AND OUR BROADER CIRCUMSTANCES THAT ARE IN PLAY RIGHT NOW. IN REALITY, MY PREFERRED MAGICAL OPTIONS ARE LIKELY INFEASIBLE AND WE CONTINUE TO FACE A SEVERE HOUSING CRISIS. DESPITE RENTS THAT REMAIN UNAFFORDABLY HIGH, BERKELEY IS SEEING A SLOW DOWN IN HOME BUILDING BECAUSE OF THE COSTS AND INTEREST RATES AND THE BURDEN WE IMPOSE LOCALLY, THE CITY DOES. IF WE CONSIDER HISTORIC VALUES IN PURE ISOLATION, WE WOULD LANDMARK EVERYTHING BECAUSE PRETTY MUCH EVERYTHING HAS A HISTORIC VALUE GREATER THAN ZERO AND PERHAPS, THAT'S WHAT SOME PEOPLE WANT, BUT THAT'S NOT WHAT THEY PEOPLE WHO VOTED US INTO OFFICE EXPECT OF US. THEY EXPECT US TO LOOK AT THE BIG PICTURE AND FOLLOW THE LAW. WE WEIGH THE HISTORIC VALUE OF EXISTING BUILDINGS. AS MUCH AS WE TRY TO INSIST THAT LANDMARKING DECISIONS ARE BASED ON PURELY OBJECTIVE CRITERIA, IT'S JUST NOT THE CASE. IT'S UNAVOIDABLY TRUE IT WILL ULTIMATELY COME DOWN TO SUBJECT VALUE JUDGMENTS. WIT SUBJECT TO CRITERIA OF INCLUSION ON STATE OR FEDERAL REGISTRIES, WHICH ISN'T APPLICABLE HERE. EVERY LANDMARKING DESIGNATION INCLUDES VALUE IN ITS LANGUAGE. THERE WILL ALWAYS BE CONTEXTUAL. SO WHILE I BELIEVE THAT AT LEAST 2421 HAS NONZERO HISTORIC VALUE, I DON'T THINK THAT VALUE RISES TO THE LEVEL THAT WOULD JUSTIFY A

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LANDMARK DESIGNATION FOR THE PROPERTY. FOR THE -- I WILL GO THROUGH THE CRITERIA. FOR THE CRITERION OF ARCHITECTURAL MERIT, THE MUNICIPAL CODE ESTABLISHES THREE TESTS, PROPERTY THAT IS THE FIRST, LAST, ONLY OR MOST SIGNIFICANT ARCHITECTURAL PROPERTY OF ITS TYPE IN THE REGION. THE REGION THIS PROPERTY DOES NOT APPEAR TO MEET THIS CRITERIA. THERE ARE NUMEROUS SIMILAR STRUCTURES IN OUR REGION. I HAVE NOT SEEN EVIDENCE THAT THIS IS FIRST, LAST, ONLY OR MOST SIGNIFICANT. AND I DON'T THINK THE ARGUMENT CAN BE MADE THAT THE NEIGHBORHOOD IS THE REGION BECAUSE THE WORD NEIGHBORHOOD IS USED ELSEWHERE IN THE SAME CRITERION SECTION. IN THIS PARTICULAR TEST, IF THIS PARTICULAR TEST WAS MEANT TO BE BASED ON NEIGHBORHOOD, IT WOULD HAVE SAID NEIGHBORHOOD. B, PROPERTIES THAT ARE PROTOTYPES OF OR OUTSTANDING EXAMPLES OF PERIOD STYLES, ARCHITECTURAL MOVEMENTS OR CONSTRUCTION OR EXAMPLES OF THE MORE NOTABLE WORKS OF THE BEST SURVIVING WORK IN A REGION OF AN ARCHITECT, DESIGNER OR MASTER BUILDER. AGAIN, I THINK THE BUILDING IS LOVELY, BUT IT'S NOT PROTOTYPICAL AND I DON'T THINK IT RISES TO THE LEVEL OF BEING ABOUT OUTSTANDING LEVEL. AGAIN THE NOTION OF SOMETHING BEING OUTSTANDING IS INHERENTLY SUBJECTIVE. THERE ARE IN FACT, OTHER EVEN MORE IMPRESSIVE EXAMPLES OF THIS STYLE OF ARCHITECTURE ACROSS THE CITY AND IN THE REGION. I DON'T THINK THIS CRITERION IS MET. AND ONCE AGAIN I DON'T THINK THE REGIONAL STANDARD IS BEING MET. FOR

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EXAMPLE, THE BAJAS WEBSITE HAS AN ENTIRE PAGE OF SURVIVING AND BETTER EXAMPLES OF THIS PARTICULAR ARCHITECT'S WORK IN SAN FRANCISCO. THIS IS CLEARLY NOT THE BEST OR LAST REMAINING OF HIS EXAMPLE OF THIS WORK IN THE REGION. IT'S NOT EVEN THE LAST EXAMPLE OF HIS WORK IN BERKELEY SINCE AS I UNDERSTAND IT THE MASONIC TEMPLE WAS DESIGNED BY HIM AND IS IN FACT, AN EXISTING LANDMARK. SO THE NEXT ITEM IS ARCHITECTURAL EXAMPLES CRITERION WORTH PRESERVING FOR THE EXCEPTIONAL VALUES THEY ADD AS PART OF THE NEIGHBORHOOD FABRIC. OF COURSE, THIS IS THE ONE THAT I STRUGGLED WITH THE MOST. I THINK THE 2421 STRUCTURE ADDS VALUE TO THE NEIGHBORHOOD FABRIC, BUT I DON'T THINK WE CAN CALL IT EXCEPTIONAL. AS MUCH AS I LOVE THIS HOME AND THE HISTORY IT PROPERTIES ME TO IMAGINE, I DON'T THINK THE STRUCTURE REPRESENTS EXCEPTIONAL VALUE FOR OVERWHELMING MAJORITY OF RESIDENTS AND PASSERS BY. I AM WILLING TO BET FEW IF ANY PEOPLE THOUGHT OF THESE TWO BUILDINGS. WHILE I AM SURE THAT MANY PEOPLE WOULD AGREE THE BUILDING IS LOVELY, 2421, I DOUBT MANY WOULD IDENTIFY IT AS INTEGRAL TO THE NEIGHBORHOOD. FINALLY, SINCE THESE STRUCTURES ARE NOT LISTED ON STATE OR FEDERAL REGISTRIES, THAT CRITERIA IS MOOT. THAT'S THE OTHER CRITERIA; ALL THE REMAINING CRITERIA RELATE EXPLICITLY TO NON-ARCHITECTURAL VALUES. FOR CULTURAL OR EDUCATIONAL VALUE I DON'T THINK THESE STRUCTURES MEET THE STANDARDS. NEITHER IS ASSOCIATED WITH A SPECIFIC

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CULTURAL MOVEMENT AND I DON'T THINK EITHER SERVES AS AN EDUCATIONAL FORCE, WHICH IS AN AMORPHOUS STANDARD IN MY VIEW. HIGH VALUE IS ANOTHER CRITERION AND THAT'S THE LAST ONE. IT MEANS TO EM BODY AND EXPRESS THE HISTORY OF BERKELEY, ALAMEDA COUNTY AND CALIFORNIA OR THE UNITED STATES. THIS IS ANOTHER HIGHLY, YOU KNOW, SUBJECTIVE, AMORPHOUS AND ELASTIC STANDARD SINCE EVERY STRUCTURE EMBODIES AND EXPRESSES STRUCTURE TO SOME DEGREE. THE LANDMARK APPLICATION APPEARS TO ARGUE IS THAT STRUCTURES EMBODY AND EXPRESS HISTORY BECAUSE THEY ARE REPRESENTATIVE OF AN EARLY PATTERN OF RESIDENTIAL DEVELOPMENT AND REPRESENTATIVE OF THE CONTINUING RESIDENTIAL DEVELOPMENT IN THIS AREA. AND I DON'T THINK THAT'S COMPELLING SETTING THE BAR SO LOW FOR HISTORIC VALUE MEANS THAT ALMOST ANY RESIDENTIAL STRUCTURE WOULD BE REPRESENTATIVE OF AN EARLY PATTERN OF RESIDENTIAL DEVELOPMENT OR OF CONTINUING RESIDENTIAL DEVELOPMENT. INDEED BUILDING THE PROPOSED PROJECT WOULD ALSO BE REPRESENTATIVE OF CONTINUED RESIDENTIAL DEVELOPMENT, WHICH ILLUSTRATES THE INCREDIBLE LOOSENESS OF THIS JUSTIFICATION. AN ARGUMENT FOR HISTORIC VALUE THAT SEEMS TO MATERIALIZE NOT INDEPENDENTLY, BUT ALSO AT THE SAME TIME A PROJECT IS PROPOSED SHOULD BE TREATED WITH SOME SCRUTINY. NOBODY SOUGHT TO LANDMARK IT BEFORE THE DEVELOPMENT APPLICATION WAS SUBMITTED. IN MY VIEW, THE FACT THAT THIS PROPERTY WAS NOT THE SUBJECT OF SUCH A

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LANDMARKING DESIGNATION PRIOR TO PROJECT APPLICATION DESPITE BERKELEY'S VERY LIBERAL APPROACH TO THE DESIGNATION OF LANDMARKS IS A TELLING FARTHER. FOR ALL OF THESE REASONS I BELIEVE THE LANDMARKS PRESERVATION COMMISSION COMMITTED ERROR IN DESIGNATING THIS LANDMARK ON THE MERITS OF THE QUESTION. AND NOW TURNING TO PROCESS, I THINK IT'S FAIRLY CUT AND DRY. FOR ANY PROPOSED PROJECT THAT SUBMITS A PRELIMINARY APPLICATION, STATE LAW SAYS THAT WE CAN ONLY APPLY THE ORDINANCES, POLICIES AND STANDARDS ADOPTED AND IN EFFECT AT THE TIME THE APPLICATION WAS SUBMITTED. LANDMARKING THIS PROPERTY AT THIS TIME AND ATTEMPTING TO APPLY RESULTING STANDARDS WOULD CLEARLY IN MY VIEW, MAYBE THE CITY ATTORNEY DISAGREES WITH ME, BUT IN MY VIEW, IS THAT IT'S A VIOLATION OF STATE LAW. AND IT IS BECAUSE OF THE BURDEN THAT IT PLACES. IT SEEMS TO ME IT'S NOT ENTIRELY SYMBOLIC BECAUSE IT PLACES A BURDEN ON THIS PROPERTY. YOU KNOW, THEORETICALLY, WE COULD ADOPT THE LANDMARK AND NOT APPLY THE STANDARDS, BUT I MEAN, IT SEEMS KIND OF MOOT TO DO SO. I DO WORRY ABOUT A LIABILITY EXPOSING THE CITY TO LIABILITY FROM THE DEVELOPER, THE CITY OF BERKELEY APPELLANT AND FROM THE STATE. IF THE STATE BELIEVES THAT SIMPLY ADOPTING A LANDMARK REPRESENTS THE ATTEMPTING IMPOSITION OF A NEW STANDARD, THEY COULD COME AFTER US. I AM NOT CONVINCED THAT SB330 ALLOWS SYMBOLIC REQUIREMENTS, ESPECIALLY IF THOSE SYMBOLIC REQUIREMENTS CONSTITUTE A BURDEN ON

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DEVELOPING THE PROPERTY. SO FOR ALL OF THESE REASONS I THINK APPROVING THIS LANDMARK AT THIS TIME WOULD REPRESENT A BREACH OF PROCESS AND AN UNACCEPTABLE RISK FOR THIS CITY. I INTEND TO VOTE IN FAVOR OF GRANTING THE PROPERTY OWNER'S APPEAL AND OVERTURNING THE DECISION OF THE LANDMARKS PRESERVATION COMMISSION DECISION. THANK YOU.

>> MAYOR ISHII: THANK YOU. AND JUST TO BE TRANSPARENT MY COUNCILMEMBER HUMBERT HAD ASKED EARLIER AND THAT'S WHY I GAVE HIM EXTRA TIME, BUT I KNOW WE ARE TRYING TO KEEP WITHIN OUR FIVE MINUTE. THANK YOU, I APPRECIATE YOU CHECKING IN. COUNCILMEMBER TAPLIN.

>> TRANSLATOR: THANK YOU VERY MUCH. I WILL BE SPEAKING EXTEMPORANEOUSLY. FEEL FREE TO TIME ME. I WILL BE FAR LESS ELOQUENT. I WAS NOT PLANNING TO SPEAK TONIGHT AND I DO APPRECIATE GETTING THE BACKGROUND OF THIS BUILDING. I DO FEEL THAT I MUST SAY THAT NEITHER THE CITY -- WELL, LIKE, THERE ARE STRUCTURES IN SOCIETIES THAT PREDATE BOTH THE CITY AND THE UNIVERSITY. OUR HISTORY DID NOT BARTLETT IN THE 1800S. AND, YOU KNOW, I DO HAVE A DEEP LOVE FOR THE CITY'S HISTORY. I REALLY APPRECIATE LEARNING ABOUT IT, I JUST ALSO WISHING THAT WE WOULD BRING FORWARD OUR HISTORY AT OTHER TIMES THAN WHEN THERE MIGHT BE A NEW BUILDING HAPPENING BECAUSE NOT LIKING TALL BUILDINGS OR NEW BUILDINGS, SEEING FOR LEASE SIGNS DO NOT MAKE THIS STRUCTURE

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WORTHY OF A LANDMARKING STATUS IN MY OPINION. AND I HAVE TRIED ALL OF THESE YEARS TO REALLY HOLD ON TO THE BELIEF THAT WE ARE UTILIZING OUR POWER TO LANDMARK BECAUSE WE VALUE OUR HISTORY, AND THAT'S NOT TYING UP THINGS IN PROCESS OR BLOCKING NEW HOUSING, BUT I, YOU KNOW, RESPECTFULLY WHAT I HEARD TONIGHT IS MAKING THAT HARDER TO MAINTAIN AS A BELIEF. AND I WILL ALSO BE VOTING TO UPHOLD THE APPEAL. I HAD ALL OF THESE AMAZING THINGS TO SAY, BUT I AM LOSING THOSE. BUT I WILL LEAVE IT THERE UNLESS -- [ INDISCERNIBLE ] FURTHER, BUT I THINK YOU KNOW. MR. HUMBERT, MY COLLEAGUE REALLY KIND OF TOOK THE WORDS OUT OF MY MOUTH. YEAH.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB AND THEN WE ARE GOING TO GO ONLINE TO COUNCILMEMBER BARTLETT.

>> I. TREGUB: THANK YOU. I WORK FOR BIKE CONSTITUENTS AND A LITTLE OVER $85,000, IF THAT'S CONSIDERED WORKING FOR MONEY, SO BE IT. I HAVE A FEW COMMENTS. FIRST OF ALL, THIS IS REALLY -- I ANTICIPATE WE ARE GOING TO BE AS STAFF AS NOTED IN THEIR MATERIALS, WE ANTICIPATE SEEING MORE OF THESE KINDS OF PROJECTS EITHER COME BEFORE US AND/OR THE LPC POST SB330. AND THERE ARE TWO IMPORTANT VALUES TO KEEP IN MIND -- THAT ALL OF US ARE STRIVING TO BALANCE. ONE AROUND HISTORICAL PRESERVATION, AND THE OTHER AROUND MEETING OUR HOUSING -- MEETING AND HOPEFULLY EXCEEDING OUR LOCAL AND REGIONAL AFFORDABILITY GOALS. I, TOO,

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HAVE STRUGGLED MIGHTILY WITH THIS PARTICULAR APPEAL. I DO AGREE WITH THE COMMENTS OF MY COLLEAGUE ON MY RIGHT. I AM NOT SURE THAT I COULD MAKE THE CLAIM THAT THIS HAS SPECIAL SIGNIFICANCE, BUT THAT IS NOT TO SAY THAT I APPRECIATE VERY MUCH BOTH THE VALUE OF THE ARCHITECTURE AND THE HISTORY BEHIND THIS PROJECT. TO THAT END, THE CHALLENGE IS ON. I HOPE THAT THERE IS AN OPPORTUNITY TO MOVE THIS BUILDING SOMEWHERE. AND WHEN I WAS SERVING ON THE ZONING BOARD, WE APPROVED A FEW, NOT MANY, BUT SEVERAL SUCH RELOCATIONS. I BELIEVE SOME OF THEM ARE NOW PROUDLY STANDING IN MY DISTRICT. AND I WOULD LOVE TO SEE SOMETHING HAPPEN IF AT ALL POSSIBLE. WITH THAT SAID, I THINK STATE LAW IS QUITE CLEAR ON THIS POINT, AND JUST ON THAT BASIS ALONE I FEEL THAT I HAVE NO CHOICE BUT TO SUPPORT THE STAFF RECOMMENDATION, AND WHAT I WILL SAY TO THE DEMOLITION CONCERNS, THIS WAS MY VERY FIRST VOTE ON THE COUNCIL LAST YEAR. I AM PROUD TO HAVE BEEN A PART OF A COUNCIL THAT APPROVED I BELIEVE TO BE ONE OF THE STRONGEST DEMOLITION ORDINANCES IN THE NATION. TO BE CLEAR, THAT DOES NOT KEEP BUILDINGS FROM BEING DEMOLISHED. BUT WHAT IT DOES IS IT ENSURES ROBUST AND LASTING PROTECTIONS FOR SITTING TENANTS. AND WHILE THIS IS NOT BEFORE US TODAY, I JUST WANTED TO JUST REFERENCE THAT. THANK YOU FOR THIS OPPORTUNITY.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER BARTLETT.

>> B. BARTLETT: THANK YOU. IT'S INTERESTING DIVINE TIMING HERE

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BECAUSE WHEN I WAKE UP LATER WHEN THE DAY STARTS I WILL BE VISITING SITES ASSOCIATED WITH ALEXANDER THE GREAT, SO INTERESTING THE TIMING. SO THE COMMITTEE, I APPRECIATE YOUR WORK AND YOUR EFFORTS. WE DO HAVE A BEAUTIFUL CITY AND LOTS OF ARCHITECTURAL MARVELS AND HISTORICAL IMPORT TIED TO DIFFERENT PLACES, BUT UNFORTUNATELY, I DON'T THINK THIS IS THE PLACE. I THINK IF IT HAD, YOU WOULD HAVE DONE IT BEFORE THE AFFECTS THE BUILDING. I THINK IT'S IMPORTANT WHEN IT COMES TO THESE PROCESSES THAT WE HAVE TO BEAUTIFY OUR CITY AND PROTECT OUR CULTURE THAT IT'S USED WITH THOUGHT AND NOT USED AS A TOOL OF WEAPON TO STOP DEVELOPMENT. AND YOUR POINT ABOUT THE FOR RENT SIGNS, THAT'S GOOD. LOTS OF FOR RENT SIGNS ARE GOOD. IT MEANS LANDLORDS ARE COMPETING FOR TENANTS AND WHEN YOU COMPETE FOR TENANTS, THEN THE RENT IS FALLING. I WILL VOTE TO UPHOLD THE APPEAL. I DO THINK WE NEED TO COME TO GRIPS HERE AND SORT OF RE-EVALUATE OUR TOOLS FOR PRESERVING OUR LANDMARKS AND DETERMINING THEM. I THINK A NEW CRITERIA THAT'S ROOTED IN COMMUNITY INTEREST, COMMUNITY VALUE, MORE SPECIFIC COMMUNITY VALUE THAT'S EXPRESSED THROUGH A LEGACY OF CULTURE, WHETHER IT'S PHYSICAL OR OTHERWISE. BECAUSE OTHERWISE, WE ARE KIND OF GOING INTO THE CEQA ABUSE TERRITORY AND WE SAW WHERE THE STATE HAS CURTAILED THE USE OF CEQA BECAUSE IT WAS ABUSED. WE WILL AVOID THAT AND GET OUR HOUSE IN ORDER AND GET ABOUT THE BUSINESS OF

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BEAUTY.

>> MAYOR ISHII: AFTER COUNCILMEMBER KESARWANI, THEN COUNCILMEMBER LUNAPARRA AND BLACKABY SINCE HE HASN'T GONE YET AND THEN TAPLIN.

>> R. KESARWANI: THANK YOU, MAYOR, THANK YOU FOR THE PLANNING STAFF AND THANK YOU TO THE APPELLANT AND COMMENTS OF MEMBERS OF THE PUBLIC. I DO WANT TO LEVEL I THINK OUR STAFF AND OUR CITY ATTORNEY HAS AS WELL, THE LANDMARKING, IF WE WERE TO PROCEED WITH THAT AND AGREE WITH THE LANDMARKS PRESERVATION COMMISSION, IT WOULD BE PURELY SYMBOLIC, MEANING IT WOULD HAVE NO PRACTICAL EFFECT ON THE FUTURE PROJECT ASIDE FROM ASIDE SOME OF THE FINANCING ISSUES, IT WOULD NOT CAUSE THE PROJECT TO BE REQUIRED TO PRESERVE ANY ELEMENT OF THAT VERY CHARMING OLD HOME, CORRECT? CORRECT, OKAY. SO WHEN WE WERE BEING ASKED TO DO THAT, REMEMBER, THERE IS NO PRACTICAL EFFECT FOR TAKING THAT SYMBOLIC ACTION, BUT THE PRACTICAL EFFECT THAT THE WE INVITE LEGAL RISK BECAUSE OUR STAFF IS ADVISING US THAT STATE LAW GIVES THE APPELLANT VESTED RIGHTS AND WE ARE HEARING CONCERNS THAT EVEN THIS SYMBOLIC LANDMARKING AFFECTS THEIR ABILITY TO PROCEED WITH THE PROJECT. THEY HAVE ALREADY HAD A FOUR-MONTH DELAY AND I AM CONCERNED ABOUT HOW THIS COULD AFFECT FINANCING OR HOW IT MAY HAVE ALREADY AFFECTED FINANCING. FOR ME, THIS IS REALLY ABOUT PROCESS. YOU KNOW, I FIND IT ACTUALLY DISAPPOINTING THAT THIS

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EVEN CAME TO THE LANDMARKS PRESERVATION COMMISSION BECAUSE AS OUR PLANNING DIRECTOR NOTED, WE NEED TO DO THAT HISTORIC CONTEXT STATEMENT AND SURVEY SO THAT WE KNOW -- WE HAVE AN UNDERSTANDING OF WHICH STRUCTURES IN OUR CITY HAVE HISTORIC MERIT, WHICH ONES ARE CULTURAL RESOURCES SO THAT WE CAN JUST LEVEL SET THAT AND WE DON'T HAVE THESE SITUATIONS WHERE IT SEEMS TO ME IN THIS CASE AND IN THE NEXT CASE THAT WE ARE GOING TO BE LOOKING AT, AN APPELLANT SUBMITS -- AN APPLICATION FOR A USE PERMIT AND THEN WE HAVE OTHER FOLKS IN THE COMMUNITY WHO SEEM TO TAKE NOTICE AND WANT TO TRY TO LANDMARK THAT STRUCTURE. THAT'S NOT A GOOD PROCESS. I JUST WANT TO SAY THAT. IT'S -- ONE, IT DOESN'T TREAT ALL HISTORIC STRUCTURES AND CULTURAL RESOURCES FAIRLY. IT SEEMS THAT THE ONES THAT ARE SUBJECT OF THESE USE PERMITS GET HEIGHTENED SCRUTINY, SO THAT'S NOT FAIR. AND IT SLOWS DOWN THESE PROJECTS. YOU KNOW, I WANT TO PRESERVE OUR HISTORIC STRUCTURES AND CULTURAL RESOURCES. I THINK WE ALL DO, BUT WE HAVE TO DO IT FAIRLY. AND SO I JUST WANT TO EXPRESS MY COMMITMENT TO FUNDING THAT SURVEY BECAUSE WE HAVE TRIED TO FUND IT IN THE PAST. WE HAVE HAD DIFFICULT BUDGETS, BUT I THINK WITH THESE APPEALS TONIGHT, WHAT WE ARE SEEING IS THAT THERE ARE COSTS TO NOT FUNDING THE SURVEY. WE ARE HERE BECAUSE WE DIDN'T DO THE SURVEY AND WE HAVE THESE ONE OFF SITUATIONS THAT WE NOW HAVE TO ADJUDICATE. I AM DISAPPOINTED IN THAT AND I AM HOPING WE CAN FIX

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THAT MOVING FORWARD. SO WITH THAT, I WOULD LIKE TO MAKE A MOTION TO UPHOLD THE APPEAL AND REVERSE THE LANDMARKS PRESERVATION COMMISSION'S DECISION, FOR THE PURPOSES OF DISCUSSION, I WANTED TO MAKE THAT MOTION. I DO UNDERSTAND WE NEED TO HEAR FROM OR THE MEDICATION OF OUR COUNCIL.

>> SECOND.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: THANK YOU. I FIRST WANT TO SAY THAT I AGREE WITH OUR CITY ATTORNEY AND DISAGREE WITH THE APPELLANT THAT IS A LEGAL ISSUE. IN MY OPINION A BURDEN -- IT DOES NOT VIOLATE THE HAA SINCE THIS WOULD BE A SYMBOLIC DECISION. I DON'T WANT TO HIDE BEHIND A STATE LAW WHILE WE MAKE THIS DECISION HOWEVER, I DO WANT TO TIE MYSELF TO LOT OF COUNCILMEMBER HUMBERT'S COMMENTS. I ALSO AGREE WITH COUNCILMEMBER TAPLIN AND BARTLETT IN THAT IT'S REALLY FRUSTRATING THAT WE DECIDE TO CARE ABOUT HISTORIC PLACES AFTER A DEVELOPMENT IS PROPOSED. THIS BUILDING WHICH I HAVE WALKED BY HUNDREDS IF NOT THOUSANDS OF TIMES REGULARLY GETS LOST IN A LIVELY AND BEAUTIFUL NEIGHBORHOOD. THE BETTER NEXT DOOR I BELIEVE ENCOMPASSES THE SPIRIT AND HISTORY OF THE NEIGHBORHOOD. I JUST WANT TO SAY THAT I HEAR BOTH THE CURRENT TENET AND STUDENT RESIDENT THAT GAVE PUBLIC COMMENT EARLIER, AT THE SAME TIME I WANT TO SAY THERE ARE SO MANY THINGS THAT MAKE A NEIGHBORHOOD BEAUTIFUL AND I FUNDAMENTALLY DO NOT

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BELIEVE WE NEED TO FREEZE -- [ INDISCERNIBLE ] I WAS GOING TO MAKE THE MOTION, BUT COUNCILMEMBER KESARWANI BEAT ME TO IT. THOSE ARE ALL MY COMMENTS.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER BLACKABY.

>> B. BLACKABY: I WILL BE BRIEF. I WANT TO ASSOCIATE MYSELF WITH ALL THE COMMENTS OF MY COLLEAGUES, ESPECIALLY WITH COUNCILMEMBER HUMBERT WITH THE PROCESS AND LEGAL PROCESS OF THIS. WE SHOULD BE MUCH MORE STRATEGIC AND PROACTIVE ABOUT IDENTIFYING THE PROPERTIES THAT HAVE HISTORIC MERIT IN OUR CITY AND MAKE SURE THAT WE ARE PRESERVING THOSE AND NOT DOING IT AS AN AFTER THOUGHT AS NEW 20 PROJECTS ARE COMING TO THE FORE. AGAIN, I AGREE WITH COUNCILMEMBER KESARWANI AND OTHERS EVEN IN THIS FUNDING EVEN THOUGH WE ARE IN A TIGHT BUDGET ENVIRONMENT, TO AVOID THESE CONFLICTS DOWN THE ROAD AND ALSO BE MORE STRATEGIC AND THOUGHTFUL AND TAKE THE TIME TO DO THIS RIGHT. DOING THE HISTORIC CONTEXT SURVEY AND IDENTIFYING THOSE SIGNIFICANT PROPERTIES STARTING NOW AND GETTING AHEAD OF IT SO WE KNOW WHAT WE WANT TO PRESERVE AHEAD OF TIME IS SMART AND IS GOOD FOR THE COMMUNITY AND GOOD FOR PRESERVING THE HISTORICAL SITES OF SIGNIFICANCE IN OUR CITY. SO I APPRECIATE THE MOTION FROM COUNCILMEMBER KESARWANI.

>> MAYOR ISHII: WE LOST HIM, BUT I THINK WE CAN MOVE ON TO COUNCILMEMBER TAPLIN'S COMMENTS. WE STILL HAVE TWO MORE ITEMS

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LEFT FOLKS.

>> T. TAPLIN: I WILL BE BRIEF. I THINK IT'S IMPORTANT WHOSE HISTORY MATTERS AND WHY. THE MULTIPLEXES ARE PART OF A CITY'S HIT AND STUDENT HOUSING IN THE SOUTH SIDE AND DOWNTOWN AND ELSE WHERE ARE ALSO PART OF THE CITY'S HISTORY. I ALSO THINK IT'S A LITTLE SURPRISING THAT THIS HAS PROGRESSED SO FAR GIVEN THE CLEAR IMPLICATIONS OF STATE LAW, SO I DO THINK IT'S WARRANTIED TO BRING OUR LOCAL ORDINANCE INTO ALIGNMENT WITH THE STATE LAW. THANK YOU.

>> MAYOR ISHII: OKAY. I JUST WANT TO SAY THAT I AGREE WITH MY COLLEAGUES AND I AM ALSO IN THIS CITYWIDE HISTORIC CONTEXT STATEMENT. I THINK THAT MAKES SENSE COUNCILMEMBER KESARWANI. I AM GLAD THAT YOU BROUGHT THAT BACK UP AGAIN. I KNOW WE HAVE A MOTION ON THE FLOOR I WOULD LOVE TO MOVE FORWARD.

>> BLACKABY SAYS HE LOST POWER AND IS RETURNING SHORTLY.

>> CITY CLERK: TREGUB.

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE IS ABSENT. COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: MAYOR ISHII.

>> MAYOR ISHII: YES.

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>> AND I DON'T SEE BARTLETT ON YET. BLACKABY, THANK YOU. HE WILL BE NOTED AS ABSENT.

>> MAYOR ISHII: OKAY. I THINK THE MOTION CARRIES.

>> CITY CLERK: YES.

>> MAYOR ISHII: OKAY. VERY GOOD. THANK YOU. THANK YOU ALL FOR COMING AND THANK YOU TO STAFF FOR YOUR PRESENTATION, BUT DON'T GO ANYWHERE BECAUSE WE HAVE ANOTHER ONE. WE ARE MOVING ON TO NUMBER 2 WHICH IS THE LANDMARK PRESERVATION APPEAL #LMIN2024-0006. AND I AM GOING TO OPEN THE PUBLIC HEARING STARTING WITH THAT PRESENTATION FROM STAFF. I AM SORRY, DO YOU MIND COULD YOU PLEASE NOT SPEAK TO STAFF BECAUSE THEY ARE WORKING. THANK YOU. GO AHEAD.

>> STAFF: THANK YOU VERY MUCH, COUNCIL. THE NEXT APPEAL IS 2138 KITTREDGE STREET. THIS IS AN APPEAL OF A LANDMARKS PRESERVATION COMMISSION SIMILAR TO THE OTHER ONE TO DESIGNATE THE SUBJECT PROPERTY AT 2138 KITTREDGE AS A CITY LANDMARK. THE PROPOSED DESIGNATION PROVIDES PROJECT SPECIFIC DETAILS BEFORE ADDRESSING THE APPEAL. THE OCCUPYING SLIDES PROVIDE A SUMMARY OF THE RELEVANT PERMIT AND MILESTONES STARTING ON FEBRUARY 14TH, 2024, THE CITY RECEIVED A PRELIMINARY USE PERMIT APPLICATION PURSUANT TO SB330. ON APRIL 4TH, THE PRELIMINARY USE PERMIT APPLICATION WAS DEEMED COMPLETE AND VEST TODAY THAT DATE. ON AUGUST 6, THE APPELLANT SUBMITTED A USE PERMIT APPLICATION UNDER SB330. THE

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APPLICATION WAS DEEMED COMPLETE ON SEPTEMBER 5TH, 2024. OCTOBER 30TH, 2024 THE CITY RECEIVED A LANDMARK OR STRUCTURE MERIT APPLICATION. [ REFERRING TO SLIDE ]. ALTHOUGH PUBLIC HEARING WAS INITIALLY SCHEDULED FOR JANUARY 6TH, 2025, IT WAS POSTPONED TO FEBRUARY 6 TO ALLOW FOR -- TIME FOR PUBLIC NOTICE AND TO ADDRESS QUESTIONS RAISED BY INTERESTED PARTIES. ON JANUARY 2025, PUBLIC HEARING NOTICES WERE MAILED TO PROPERTY OWNERS AND OCCUPANTS WITHIN 300 FEET OF THE SITE AS WELL AS TWO INTERESTED NEIGHBORHOOD ORGANIZATIONS. THE LPC HELD THE PUBLIC HEARING ON FEBRUARY 6TH. AFTER REVIEWING THE RECORD AND RECEIVING PUBLIC COMMENT, THE COMMISSION VOTED TO DESIGNATE THE PROPERTY AS A CITY LANDMARK. ON MARCH 24TH, THE APPELLANT FILED AN APPEAL OF THE LPC'S DECISION, WHICH BRINGS US TO TODAY'S HEARING. THIS SLIDE SHOWS THE ZONING DESIGNATION AND LOCATION OF 2138 KITTREDGE. THE PROPERTY IS LOCATED IN THE CDMU ZONING DISTRICT, DOWNTOWN CORE SUBAREA, WHICH ALLOWS FOR A MIX OF THE RESIDENTIAL AND COMMERCIAL USES AND ENCOURAGES HIGHER DENSITY DEVELOPMENT IN DOWNTOWN BERKELEY. THE PRIMARY STRUCTURE ON THE SITE HISTORICALLY KNOWN AS THE FITZPATRICK HOUSE AND THEN LATER THE PEPPER TREE TEA ROOM IS SITUATED NEAR THE NORTHWEST CORNER OF THE LOT. FRONTING KITTREDGE STREET, A ONE STORY CARPORT STRUCTURE IS LOCATED AT THE REAR OF THE SITE OCCUPYING THE SOUTHWEST CORNER. IN TERMS OF HISTORIC CONTEXT, THE CITY IS

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LOCATED OUTSIDE THE HISTORIC BOUNDARIES OF THE BERKELEY HISTORIC CIVIC CITY DISTRICT. IT'S SURROUNDED BY MULTIPLE HISTORIC STRUCTURES. HERE'S A VIEW OF THE -- THE SUBJECT PROPERTY. IT SHOWS A STREET LEVEL VIEW OF THE FITZPATRICK HOUSE. THE BUILDING REFLECTS A HYBRID OF COLONIAL REVIVAL AND MODERN STYLES. HERE'S ANOTHER VIEW OF THE FACADE AND DECORATIVE WINDOWS. HERE ARE THE EASTERN AND WESTERN -- SHOWING THE HORIZONAL SHIP LAP SIDING AND THE DECORATIVE CORNICE FRAMES THAT FRAMES THE ROOF LINE. MOVING ON TO THE MAIN APPEAL ISSUE -- THIS IS A SUMMARY OF THE APPEAL ISSUES AND STAFF'S RESPONSE. A MORE DETAILED DISCUSSION CAN BE FOUND IN THE STAFF REPORT. THE APPELLANT CLAIMS THE LANDMARK DESIGNATION IS PROHIBITED BY SB330 AND THE HOUSING ACCOUNTABILITY ACT CLAIMING IT PLACES THE HOUSING PROJECT AT RICK BY IMPOSING NEW STANDARDS AFTER THE APPLICATION WAS DEEMED COMPLETE. UNDER STATE LAW ONCE A SB330 PERIMETER APPLICATION HOUSING PROJECT IS SUBMITTED AND DEEMED COMPLETE; IT'S PROTECTED THE LPC DEEMED THE LANDMARK STATUS. ANY SUBSEQUENT CHANGES TO ZONING OR OTHER LOCAL REGULATIONS INCLUDING DISCRETIONARY DECISIONS SUCH AS A LOCAL LANDMARK DESIGNATION ARE NOT APPLICABLE TO THE HOUSING DEVELOPMENT PROJECT. ACCORDINGLY STAFF RECOMMENDS REVERSING THE DESIGNATION BECAUSE IT CANNOT BE APPLIED TO THE PROPOSED PROJECT UNDER STATE LAW. STAFF RECOMMENDS THAT COUNCIL CONDUCT A PUBLIC HEARING AND ADOPT A

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RESOLUTION REVERSING THE LPC'S DECISION TO DESIGNATE THE PROPERTY AT 2138 KITTREDGE STREET AS A CITY LANDMARK. ARGUMENTATIVELY THE COUNCIL -- THIS CONCLUDES STAFF'S PRESENTATION AND I AM AVAILABLE FOR ANY QUESTIONS.

>> MAYOR ISHII: THANK YOU. CAN I HAVE THE APPELLANT COME FORWARD, PLEASE? YOU WILL HAVE FIVE MINUTES FOR YOUR PRESENTATION. AND AS YOU HAVE HEARD YOU ONLY NEED TWO, AS YOU HEARD, I AM A STICKLER FOR TIME, SO --

>> GOOD EVENING, MAYOR AND CITY STAFF, CITY STAFF AND COUNCIL. MY NAME IS BILL SCHRADER. I OWN THE AUSTIN GROUP, A DEVELOPMENT COMPANY, AND THE AFFILIATED ENTITY THAT OWNS THE STUDIO 1 PROPERTY BEFORE YOU TONIGHT. WE SUPPORT STAFF'S REPORT REVERSING THE LANDMARKING OF OUR PROPERTY AND WOULD ASK FOR YOUR YES VOTES THIS EVENING. I DID WANT TO TAKE A COUPLE OF MINUTES TO PROVIDE SOME CLARIFICATIONS FOR THE PUBLIC RECORD. THERE MAY BE AS YOU HAVE HEARD TONIGHT SOME LINGERING QUESTIONS REGARDING PROSPECTIVELY LANDMARKING PROPERTIES HERE IN TOWN. WHILE ON THE SURFACE, IT MAY APPEAR TO BE AN INNOCUOUS DECISION AND ONLY IMPACTS THE DEVELOPMENT IF THE INITIAL DEVELOPER FAILS TO BUILD THE APPROVED PROJECT. THIS IS NOT TRUE. AS A PROSPECTIVE LANDMARKING IMPACTS THE PROJECT LENDER'S COLLATERAL AND ALSO IMPACTS THE PROJECT'S TITLE AND CLEARLY, VIOLATES SB330 AND THE HOUSING ACCOUNTABILITY ACT AS POINTED OUT BOTH IN OUR APPEAL AND

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THE STAFF REPORT. SECOND, WE HAVE BEEN WORKING CLOSELY WITH THE STATE'S HOUSING AND COMMUNITY DEVELOPMENT DEPARTMENT SOMETIMES REFERRED TO AS HCD. THEY AGREE TO OUR POSITION. IN FACT AT HCD'S REQUEST, WE PROVIDED THEM A LIST OF ALL THE PREVIOUS PROJECTS THAT HAD PROPERTIES ALSO PROSPECTIVELY LANDMARKED. I WOULD HIGHLY RECOMMEND THAT THE CITY LOOK AT REVERSING THOSE DECISIONS AS I DO NOT BELIEVE ANY OF THOSE PROJECTS HAVE MOVED FORWARD. I HAVE ALSO LOOKED CLOSELY AT THE COST OF THIS APPEAL PROCESS TO OUR PROJECT. THE DELAYS AND LEGAL COSTS EXCEED A HALF A MILLION DOLLARS, RESULTING IN ME POTENTIALLY HAVE TO RAISE THE PROJECT REJECTS BY APPROXIMATELY $50 A MONTH PER UNIT ON OUR TENANTS IN THIS VERY SMALL PROJECT. IT ALSO COSTS THE CITY A YEAR'S WORTH OF PROPERTY TAXES AND OTHER REVENUE COLLECTIONS. LASTLY, AND I AM GOING TO TRY TO BE POLITE HERE, I DO NOT BELIEVE IT'S IN THE CITY'S BEST INTEREST TO HAVE A LANDMARK'S COMMITTEE THAT SEEMS TO OPERATE LIKE AN EXTENSION OF BAJA. FRANKLY, I BELIEVE THIS IS HOW WE ALL GOT HERE TONIGHT. IF THE CITY WANTS TO LANDMARK PARTICULAR BUILDINGS IN BERKELEY THAT IT CONSIDERS IMPORTANT HISTORIC RESOURCES, IT NEEDS TO HAPPEN BEFORE HOUSING DEVELOPERS IN GOOD FAITH DECIDE TO MOVE FORWARD ON A NEW PROJECT, NOT AFTER WE HAVE DONE PRELIMINARY DUE DILIGENCE, WE HAVE CHECKED ALL THE AVAILABLE RESOURCES ONLY TO HAVE BAJA FILE AN APPEAL WITH THE INTENDED GOAL OF STOPPING HOUSING DEVELOPMENT, WHICH IS EXACTLY

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WHAT HAPPENED IN THIS CASE. IN FACT, THEIR OPENING PARAGRAPH SPECIFICALLY STATED THIS. THEY FILED IT TO STOP THE DEVELOPMENT. WITH THAT, THANK YOU, AND I AM HAPPY TO ANSWER ANY QUESTIONS YOU MAY HAVE.

>> MAYOR ISHII: THANK YOU. PLEASE TURN OFF YOUR PHONES, FOLKS. THANK YOU. IS THERE AN APPELLANT HERE TO SPEAK? OR MAYBE ONLINE?

>> STAFF: I BELIEVE IT'S ISAAC AGAIN ONLINE.

>> MAYOR ISHII: THANK YOU, ISAAC I SEE YOUR HAND. YOU WILL HAVE FIVE MINUTES.

>> THANK YOU. I WOULD LIKE TO BARTLETT TO ADDRESS SOME OF THE ALLEGATIONS LEVELED BY THE APPELLANT ABOUT BAJA, BOTH BAJA'S INTENTIONS WITH REGARD TO HISTORIC PRESERVATION AND THE LPC'S RELATIONSHIP WITH BAJA. HISTORICALLY BAJA HAS BEEN VERY INVOLVED WITH HISTORIC PRESERVATION IN THE CITY PLATER BECAUSE THE MEMBERS OF BAJA WERE INVOLVED IN THE LANDMARKS PRESERVATION COMMISSION IN THE VERY BEGINNING. AND SECOND OF ALL, BAJA HAS UNDERTAKEN IN THE ABSENCE OF INVESTMENT BY THE CITY, MANY OF THE -- MANY OF THE FUNCTIONS THAT THE LPC WAS GIVEN IN THE LANDMARKS ORDINANCE. THAT INCLUDES GATHERING ARK ISAAC AND INFORMATION ABOUT THE HISTORIC BUILDINGS IN THE CITY. IT INCLUDES CONDUCTING SURVEYS OF HISTORIC PROPERTY. AND AS A RESULT BAJA HAS BECOME AN INDISPENSABLE RESEARCH FOR THE CITY OF THE HISTORIC RESOURCES IN THIS CITY. FURTHERMORE, BAJA'S MISSION

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IS NOT TO PREVENT ANY CHANGE IN THE CITY. AND I KNOW THE INTERESTS OF BAJA AND OF PEOPLE WHO ARE OPPOSED OF PARTICULAR DEVELOPMENTS HAVE AT TIMES COINCIDED, BUT IN THIS CASE I CAN SPEAK TO THE MOTIVES OF ANTHONY BRUCE AND THESE ARE BUILDINGS THAT HAVE BEEN ON THE RADAR OF ANTHONY ABUSE FOR MANY YEARS AND HE HAPPENS TO BE ONE MAN AND THERE ARE MANY BUILDINGS TO CONSIDER IN THE ENTIRE CITY, SO THE FACT THIS HAPPENED AT THE LAST MINUTE IS NOT A DESIRE TO GO AROUND AND STOPPING ALL DEVELOPMENTS THAT EVER COME UP HAPPENING IN THE CITY. IT COMES OUT OF A DESIRE TO DO THE THINGS THAT ARE MOST URGENT GIVEN LIMITED RESOURCES. BAJA IS READY AS ALWAYS TO COLLABORATE WITH THE CITY TO COLLABORATE WITH THE CITY. IT REQUIRES A SMALL AMOUNT OF INVESTMENT AND IT REQUIRES A SMALL AMOUNT OF PLANNING AND IT ALSO REQUIRES AN UNDERSTANDING IN A KIND OF PARTICIPATORY WAY WHAT IS IMPORTANT ABOUT THE HISTORY. AS AN UNDERGRAD I WAS AN ARCHEOLOGY MAJOR. AND I FOCUSED ON THE PREHISTORY OF NORTH AMERICA AND I UNDERSTAND THE HISTORY OF THE BAY AREA BEGINS LONG BEFORE THE SPANISH ARRIVES AND CERTAINLY LONG BEFORE THE UNIVERSITY WAS ESTABLISHED HERE. BUT I ALSO UNDERSTAND THAT IN THE ABSENCE OF ANY PRESERVATION PROTECTIONS VERY LITTLE PHYSICAL REMNANT OF PREHISTORIC SETTLEMENT IN BERKELEY REMAINS. AND IF WE ARE TO PROTECT ALL THE STORIES THAT BERKELEY CONTAINS, WE HAVE TO PURSUE PRESERVATION IN A SYSTEMIC WAY AND DO SO NOT JUST TO

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PROTECT WHAT SEEM TO BE GLEAMING ARCHITECTURAL EXAMPLES, THINGS THAT YOU NOTICE WHILE WALKING DOWN THE STREET, BUT ALSO PROTECT BUILDINGS THAT ARE NOT OBVIOUSLY REMARKABLE, BUT ARE IMPORTANT FOR UNDERSTANDING THE HISTORICAL DEVELOPMENT OF THE CITY SO THAT PEOPLE WHO ARE HERE CAN UNDERSTAND AT A CONSCIOUS OR A SUBCONSCIOUS LEVEL WHERE THE CITY HAS BEEN AND WHERE THEY ARE TRYING TO TAKE IT. SO BAJA DOES NOT COME AT THIS AS A PURELY NIMBY ORGANIZATION. I CAN SPEAK FOR MYSELF AS AN ARCHITECT WHO DESIGNS AFFORDABLE HOUSING FOR A LIVING, MY LIVED HOOD DEPENDS ON NEW HOUSING, BUT I AM INVESTED. FURTHERMORE, I WOULD LIKE TO INDICATE THAT KITTREDGE STREET HAS BEEN RECOGNIZED AS A HISTORIC RESOURCE OVER THE YEARS, AND LET ME SHOW A COUPLE OF SLIDES. SO IN THE SHATTUCK AVENUE COMMERCIAL CORRIDOR HISTORIC CONTEXT AND SURVEY IT WAS INDICATED AS A POSSIBLE CONTRIBUTING STRUCTURE TO PROPOSED HISTORIC DISTRICT. THIS HAS A CLEAR HISTORICAL MERIT AND IT WAS IDENTIFIED BY THE APPELLANT'S HISTORIC RESOURCE EVALUATION AS A POTENTIAL FOR LOCAL POTENTIAL PROPERTY FOR LOCAL DESIGNATION. FURTHERMORE, I WANT TO MAKE SURE THE CITY UNDERSTANDS THAT THIS PROPERTY FALLS UNDER AN EXCEPTION TO THE INFILL TO CEQA AND VERSIONS THAT WERE SENT TO THE CITY UNDER THE HISTORIC RESOURCE EVALUATION WOULD BE AN HISTORIC RESOURCE TO CEQA. THAT'S IMPORTANT TO GET OUT OF THE WAY. AND THEN SECONDLY I WOULD LIKE TO POINT OUT THAT THE CITY'S EIR FOR HOUSING

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DEVELOPMENT IS NOT SIMPLY ABOUT PRODUCING A CONTEXT STATEMENT. IT'S ABOUT PRODUCING A CULTURAL RESOURCES SURVEY OF THE ENTIRE CITY. AND SO FULFILLING THE EIR OBLIGATIONS UNDER CEQA -- BUT TO PROCEED WITH THE SURVEY OF THE ENTIRE CITY SO THAT WE CAN UNDERSTAND WHERE RESOURCES ARE AND PROACTIVELY TRY TO PROTECT THEM. AND LASTLY, ON BEHALF OF BAJA, I WOULD LIKE TO SUBMIT.

>> MAYOR ISHII: I AM SORRY, YOUR TIME IS UP, ISAAC. THANK YOU. THANKS FOR YOUR PRESENTATION. AT THIS TIME I WOULD LIKE TO SEE IF ANYONE HAS ANY EX PARTE AYE COMMUNICATIONS TO DISCLOSE? YES.

>> T. TAPLIN: I DID SPEAK WITH AN INTERESTED IN THE SPRING.

>> MAYOR ISHII: IN THE SPRING.

>> R. KESARWANI: I DID AS WELL.

>> I. TREGUB: IN MARCH OF 2025, MY TEAM AND I ATTENDED A TOUR OF THE PROPERTY PROVIDED BY THE APPELLANT.

>> MAYOR ISHII: ANYONE ELSE. COUNCILMEMBER BLACKABY.

>> B. BLACKABY: ON MARCH 21ST I HAD A MEETING WITH THE APPELLANT FOR THE PROPERTY. ALSO ON THE PREVIOUS ITEM I WOULD LIKE MY VOTE TO BE COUNTED AS YES.

>> MAYOR ISHII: COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: I SUBMITTED A FORM TO THE APPELLANT.

>> MAYOR ISHII: YES, MAKE SURE EVERYONE TURNS IN THEIR FORMS FOR THAT. DO WE HAVE COUNSEL QUESTIONS ON THIS ONE? JUST CHECKING IN WITH COUNCILMEMBER LUNAPARRA SINCE I CAN'T SEE YOU.

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>> C. LUNAPARRA: NO QUESTIONS.

>> MAYOR ISHII: VERY GOOD. CAN I TAKE PUBLIC COMMENT THEN PLEASE. IF YOU HAVE A PUBLIC COMMENT CAN YOU LINE UP HERE? ARE YOU ALL HERE FOR THREE? THAT'S GOOD TO KNOW. COME ON UP.

>> HI, EVERYONE. MY NAME IS STEVEN SCHUYLER. I LIVE AT THE OXFORD PLAZA APARTMENTS AT THE CORNER OF KITTREDGE STREET AND OXFORD. AND I HAVE BEEN THERE SINCE 2009. I AM AN ORIGINAL RESIDENT THERE RIGHT NEXT DOOR TO THE CALIFORNIA MOVIE THEATER AND RIGHT ACROSS THE STREET FROM THIS PROPERTY. WHAT I THINK IT'S IMPORTANT FOR EVERYBODY ON THE STAFF AND ACCOUNT IS THE HUMAN PART, THE PEOPLE PART, HOW THE EFFECTS THE PEOPLE WHO ALREADY LIVE IN HE'S NEIGHBORHOODS WHERE DEVELOPERS NEED TO TAKE RESPONSIBILITY FOR WHEN THEY BUILD THESE BUILDINGS AND ALL THE PEOPLE AND THE TRAFFIC FROM THE CONSTRUCTION AND ONCE THEY ARE BUILT, ALL THE PEOPLE AND EVERYTHING WHO ARE THERE COMING AND GOING FROM SCHOOL AND HOW IT AFFECTS THE DISABLED PEOPLE AND ALL OF THIS OTHER STUFF. NOBODY REALLY SPENDS A LOT OF TIME TALKING ABOUT THAT PART. RUBINS SPENT A LOT OF TIE TALKING ABOUT BUILDING AND CODES AND ALL OF THAT. I WOULD LIKE PEOPLE TO SPEND TIME TALKING ABOUT PEOPLE. I AM REALLY CONCERNED. NOW WE HEAR THE CALIFORNIA THEATER IS DEAD. OXFORD STREET AND CENTER STREET IS NOW TWO OR THREE YEARS HAVE JUST DECIDED TO HOLD AND IT'S ALL FENCED OFF AND BOARDED UP AND THEY DISCONNECTED THE UTILITIES,

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SO THEY CAN'T RE-OPEN FOR BUSINESS. SO THAT WILL SIT THERE ALL BODED UP LIKE A BAD PART OF TOWN IN THE MIDDLE OF CENTER STREET IN DOWNTOWN BERKELEY. THIS IS NOT OKAY. AND NOW THE BUILDER WILL BE RESPONSIBLE FOR WHATEVER HAPPENS IN OUR NEIGHBORHOOD. EVERYONE IS RESPONSIBLE FOR WHATEVER CHOICES YOU MAKE. THERE ARE PEOPLE BEHIND EVERY DECISION YOU MAKE. REMEMBER THAT.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. FOLKS, IF YOU HAVE A COMMENT, CAN YOU JUST MAKE SURE TO LINE UP SO I KNOW WHO ELSE IS SPEAKING? IS ANYONE ELSE SPEAKING FOR THIS ITEM? OKAY. GO AHEAD.

>> GOOD EVENING. I AM [ INDISCERNIBLE ] AND I WILL SPEAK ON MY OWN BEHALF BECAUSE I THOUGHT ISAAC DID SUCH A GOOD JOB FOR BAJA. I THINK THAT WHERE THIS COUNCIL IS MAKING A MISTAKE IS YOU ARE NOT LOOKING AT WHAT THE PROMISES WERE THAT WERE MADE BY THE STATE AND YOU ALL BELIEVED IT. AND I REALLY RECOMMEND YOU GO OUT AND TAKE A WALK AROUND THE DOWNTOWN AREA AND OTHER PARTS OF THE CITY AND LOOK HOW FAR THIS PROMISE HAS REALLY TAKEN ANYBODY. YOU KNOW, A CITY'S JOB IS NEVER TO ENCOURAGE BLIGHT, BUT I AM GOING TO TELL YOU IF THE THINGS I AM HEARING AND THE THINGS I AM SEEING ARE TRUE, THIS GENTLEMAN THAT JUST SPOKE, YOU NEED TO OPEN YOUR EYES AND YOU NEED TO START EVALUATING JUST HOW WELL YOU ARE DOING WITH THE PROMISE BECAUSE IT NEEDS TO HAVE SOME KIND OF RESULT THAT DOESN'T IN FACT AS PROMISED BY THE STATE,

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THAT DOES REDUCE HOMELESSNESS. THEY ARE ALL DOING, YOU KNOW, BETTER THAN THEY WERE BEFORE. THE HOUSING IS REALLY PRETTY GOOD ON THAT SCORE. YOU KNOW, YOU ARE TALKING ABOUT WELL, THE RENTS CAME DOWN, THE STUDENTS CAN'T AFFORD THOSE RENTS. THEY CAN'T AFFORD TO LIVE IN THOSE BUILDINGS THAT HAVE THE SWIMMING POOL AND ALL OF THAT OTHER KIND OF STUFF. AND YOU CAN'T HIDE BEHIND THE STATE BECAUSE WHEN THE STATE IS DONE WITH THE PROMISE THAT THEY HAVEN'T KEPT, YOU ARE LEFT HERE. THIS IS OUR CITY AND HERE YOU ARE. AND SO I AM JUST ENCOURAGING YOU TO LOOK AT THE OTHER SIDE OF THIS PROMISE THAT YOU COULD LEGISLATE YOUR WAY OUT OF EXPENSIVE HOUSING AND YOU COULD LEGISLATE YOUR WAY OUT OF HOMELESSNESS AND IT'S ALL BECAUSE OF THE PROMISE. I WILL PEEK ON THAT LATER.

>> MAYOR ISHII: THANK YOU. ARE THERE COMMENTS ONLINE?

>> CITY CLERK: NO MAYOR, THERE ARE NO HANDS RAISED ONLINE. I AM SORRY, A HAND JUST WAS RAISED. IF YOU WOULD LIKE TO SPEAK ON ZOOM, USE THE RAISED HAND FUNCTION. OUR SPEAKER IS TONI.

>> GOOD EVENING, EVERYONE. IT'S TONI IN DISTRICT 2. I WANT TO THANK MR. ISAAC WARSHAUER FOR HIS INSIGHTFUL COMMENTS ABOUT PLANNING FOR PRESERVATION RATHER THAN DOING IT BIT BY BIT, PIECE BY PIECE, A MORE COMPREHENSIVE VIEW. AND I AGREE WITH THAT VERY MUCH. YOU KNOW, I TURNED 82 RECENTLY, AND ONE OF THE GOOD THINGS ABOUT GETTING OLD IS YOU GET A SENSE OF HISTORY. YOU KNOW, YOU

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DEVELOP A SENSE OF HISTORY AND HISTORICAL TRENDS. AND I HAVE LIVED IN BERKELEY FOR OVER HALF A CENTURY. I CAME HERE IN 1972 AND I DO THINK WE ARE KIND OF SEEING A KIND OF DEATH BY A THOUSAND CUTS. THIS DEMOLITION HERE, THIS BUILDING ISN'T THAT IMPORTANT, AND THEN THERE IS THIS DEMOLITION OVER HERE AND IT'S ALL FOR A HIGHER CAUSE. AND THIS IS NOT GOING -- THIS IS NOT A GOOD THING. AND I WANT TO BEFORE I SIGN OFF TONIGHT, TO GIVE A SHOUT-OUT TO THE LATE JOHN ENGLISH WHO WAS A PROFESSIONAL PLANNER AND A PROFESSIONAL PRESERVATIONIST WHO BEFRIENDED ME, TAUGHT ME ABOUT THE DENSITY BONUS AND TOOK ME AROUND TOWN AND SHOWED ME WITH HIS EXPERT EYE WHAT BUILDINGS REPRESENTED HISTORICALLY, AESTHETICALLY AND WE NEED PEOPLE LIKE JOHN. UNFORTUNATELY, WE LOST HIM. HE WAS A WEREN'T MAN. THOSE PEOPLE WHO KNEW JOHN ENGLISH KNOW WHAT I AM TALKING ABOUT. WE NEED MORE PRESERVATIONISTS THAT CAN DEDICATE THEMSELVES TO SAVING WHAT'S IMPORTANT IN BERKELEY. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU, TONI.

>> CITY CLERK: MAYOR, THAT WAS OUR LAST RAISED HAND.

>> MAYOR ISHII: OKAY. COUNCILMEMBERS DO YOU HAVE COMMENTS? SHOULD WE CLOSE THE PUBLIC HEARING.

>> SECOND.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB. SORRY, WE NEED TO TAKE THE ROLL.

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>> CITY CLERK: KESARWANI.

>> R. KESARWANI: YES.

>> TAPLIN.

>> T. TAPLIN: YES.

>> TREGUB.

>> I. TREGUB: AY.

>> O'KEEFE IS ABSENT. BLACKABY.

>> B. BLACKABY: YES.

>> LUNAPARRA.

>> C. LUNAPARRA: YES.

>> HUMBERT.

>> M. HUMBERT: YES.

>> AND MAYOR ISHII.

>> MAYOR ISHII: YES. I AM GO AHEAD, COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU. I AM GOING TO TRY TO SEPARATE OUT THE ISSUES THAT WERE RAISED BY MEMBERS OF THE PUBLIC AND I REALLY DO APPRECIATE MEMBERS OF THE PUBLIC'S PARTICIPATION. SOME OF THEM I KNOW ARE MY CONSTITUENTS. AS THE REPRESENTATIVE FOR THIS DISTRICT, I CAN ASSURE YOU THAT I WALK THE STREETS OF MY DISTRICT EVERY DAY. I AM -- IF YOU ARE CONCERNED ABOUT THE INDICATIONS OF A LACK OF ACTIVATION IN SOME KEY STREETS, SO AM I. AND OUR OFFICE IS WORKING EVERY DAY TO TRY TO -- IN THE FACE OF A VERY CHALLENGING MACROECONOMIC CLIMATE, MOVE THE NEEDLE ON

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THAT. I WILL NOTE THAT THIS AGAIN IS A QUASI-JUDICIAL MART. I APPRECIATE WHAT THE COLLEAGUE OF MINE SAID ABOUT ON THE PREVIOUS APPEAL IF HE COULD WAVE A MAGIC WAND. I WISH I COULD WAVE A MAGIC WAND OR HAVE ONE AS WELL, BUT I DON'T. AND I REMEMBER WHEN I WAS ON THE ZONING BOARD AND WE DENIED AN APPROVAL OF SOMETHING THAT ENDED UP THEN BEING APPEALED IN COURT BASED ON STATE LAW AT THAT TIME. AND THE CITY LOST THAT CASE. SO NOT ONLY DID THAT BUILDING GET DEMOLISHED ANYWAY, NOT ONLY DID THE SITTING TENANT ON THAT PROPERTY GET DISPLACED ANYWAY, AND THIS IS BEFORE WE HAD THE STRONG DEMOLITION ORDINANCE THAT WE DO NOW, BUT THE CITY THEN HAD TO PAY A NOT INSIGNIFICANT AMOUNT OF MONEY TO THE APPLICANT. SO I REMEMBER THAT BECAUSE IT GUIDES ME IN TRYING MY BEST IN FACING QUASI-JUDICIAL DECISIONS LIKE THIS TO BALANCE DIFFERENT EQUITIES AND ALSO DO MY BEST TO UNDERSTAND WHAT THE STATE LAW IS SAYING, AND I VERY MUCH BELIEVE THAT -- AT LEAST I AM IN AGREEMENT WITH THE CITY ATTORNEY AND OUR STAFF. AND SO I WILL BE VOTING TO SUPPORT THE APPEAL. I AM, YOU KNOW, OBVIOUSLY, IT'S BITTERSWEET FOR ME TO DO THAT, BUT I ALSO HOPE THAT NOT ONLY IS MY VOTE TODAY IN CONFORMANCE WITH WHAT I UNDERSTAND STATE LAW TO BE, WHICH I THINK IS QUITE CLEAR ON THIS POINT, BUT ALSO WITH THE HOPE THAT WE WILL BE ABLE TO REALIZE OUR COMMUNITY CENTERED, PEOPLE CENTERED VISION, AND I WILL JUST NOTE THAT IN THE APPEAL ITSELF, THERE IS A STATEMENT FROM 1904 WHEN THIS

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BUILDING IN QUESTION WAS BEING PROPOSED. YEAH, ON JANUARY 4TH, 1904, THE BERKELEY BAILEY GAZETTE REPORTED PLANS TO ERECT A LARGE BUILDING AT SHATTUCK AVENUE AND KITTREDGE. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER HUMBERT.

>> M. HUMBERT: THANK YOU, MADAM MAYOR. THIS ONE WILL BE MUCH QUICKER. FOR SIMILAR REASONS TO THOSE THAT I GAVE FOR THE DURANT LANDMARKING APPLICATION, I FEEL THAT THE LANDMARK APPLICATION FOR 2131 KITTREDGE LACKS MERIT. 2138 IS NOT A STATE OR FEDERAL LANDMARK. I DON'T BELIEVE IT'S ARCHITECTURE OR ITS AESTHETICS MEET THE LEVELS NECESSARY FOR THE RELEVANT PRESERVATION CRITERION. IT'S SOME GEORGIAN REVIVAL FEATURES ON A BRICK BUILDING THAT'S APPLIED TOON OLDER BUILDING. I MEAN, THAT'S NOT THAT SIGNIFICANT. I SEE SNOW SIGNIFICANCE OF EDUCATIONAL OR CULTURAL VALUE AND I DON'T THINK BEING AN EXAMPLE OF A STOREFRONT ATTACHED TO A RESIDENTIAL HOME REPRESENTS A HISTORIC EMBODY WORTHY OF HISTORIC PRESERVATION IN THE NEIGHBORHOOD OR IN THE BROADER CONTEXT. I THINK DESIGNATING THIS AS A LANDMARK IT WAS A REAL MISTAKE AND IT WOULD CHEAPEN LANDMARK PRESERVATION IN BERKELEY IN GENERAL. AND ON THE ISSUE OF BURDEN, I HAVE GOT TO SAY THAT THE APPELLANT HERE CLEARLY DEMONSTRATED THAT WE ARE TALKING ABOUT VERY SIGNIFICANT DOLLARS THAT HAVE COST THE APPELLANT AS A RESULT OF THIS PROCESS, SO THERE IS A REAL BURDEN TO THIS SYMBOLIC DESIGNATION. I THEREFORE INTEND TO VOTE IN

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SUPPORT OF GRANTING THE APPEAL WITH RESPECT TO THIS HISTORIC PRESERVATION OF THIS BUILDING.

>> MAYOR ISHII: THANK YOU, OR THE COMMENTS? NOBODY? WELL, I WILL JUST BRIEFLY SAY IT WOULD HAVE BEEN NICE TO BE ABLE TO HEAR WHAT ABOUT THIS BUILDING MADE IT SO THAT IT SHOULD BE A LANDMARK BECAUSE I WOULD AGREE WITH COUNCILMEMBER HUMBERT TO HIS POINTS THAT HE MADE THERE. AND TO THE PEOPLE WHO COMMENTED ON PEOPLE AND CONSIDERING PEOPLE, I JUST WANT TO SAY THAT IS ONE OF THE REASONS WHY I AM GOING TO BE SUPPORTING THIS BECAUSE I KNOW THERE ARE MANY PEOPLE WHO DON'T HAVE HOMES AND WHEN WE TALK ABOUT DISABLED PEOPLE, WHILE THERE ARE PEOPLE WHO ARE DISABLED WHO ARE ALSO UNHOUSED IN OUR COMMUNITY AND NOT TO MENTION THAT A LOT OF THESE NEW BUILDINGS ARE MORE ACCESSIBLE FOR PEOPLE WHO HAVE DISABILITIES, SO I JUST FEEL THAT THAT REASONING IS NOT STRONG ENOUGH. AND SO ANYWAY, I AM GOING TO MOVE FORWARD AND SEE IF THERE IS A MOTION?

>> I. TREGUB: I WILL MOVE THE STAFF RECOMMENDATION.

>> T. TAPLIN: SECOND.

>> MAYOR ISHII: CLERK, CAN YOU TAKE THE ROLL PLEASE.

>> CITY CLERK: ON THE STAFF RECOMMENDATION, COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

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>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: AYE.

>> HUMBERT.

>> M. HUMBERT: YES.

>> AND MAYOR ISHII.

>> MAYOR ISHII: YES. OKAY. MOTION PASSES. THANK YOU ALL. WE ARE GOING TO TAKE A TEN-MINUTE BREAK. THANK YOU, STAFF. [ BREAK ]

>> MICS ARE ON.

>> MAYOR ISHII: OKAY. HI, EVERYONE. WE ARE COMING BACK. IF I COULD HAVE YOU TAKE YOUR SEATS, PLEASE, SETTLE DOWN. THANK YOU. ALRIGHT, WE ARE MOVING ON TO ITEM NUMBER 3, THE ZONING ADJUSTMENT BOARD'S APPEAL FOR 2655 SHATTUCK AVENUE USE PERMIT #ZP2024-0057. I WILL OPEN THE HEARING AND HAVE A PRESENTATION FROM STAFF.

>> THANK YOU, MAYOR.

>> STAFF: THE THIRD APPEAL IS 2655 SHATTUCK AVENUE. IT'S AN APPEAL OF THE ZONING ADJUSTMENT BOARD DECISION TO APPROVE A USE PERMIT TO DEMOLISH ONE STORY, 84,8,185 SQUARE FOOT NON-RESIDENTIAL BUILDING -- [ REFERRING TO SLIDE ]. I WILL PRESENT THE REVIEW HISTORY OF THE PROPOSED PROJECT AND PROVIDE PROJECT SPECIFIC DETAILS BEFORE ADDRESSING THE APPEAL ISSUES. THE UPCOMING SLIDES PROVIDE A SUMMARY OF THE PERMIT AND LANDMARK

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REVIEW MILESTONES BEGINNING ON DECEMBER 4TH, 2023 THE CITY RECEIVED A PRELIMINARY USE APPLICATION SB330. IT WAS DEEMED COMPLETE AND THEREBY VESTING RIGHTS ON DECEMBER 25TH. THE USE PERMIT WAS SUBMITTED ON MAY 22ND, 2024 AND AFTER A COUPLE ROUNDS WAS DEEMED COMPLETED ON AUGUST 18TH. ON FEBRUARY 6 THE LPC HAD A PUBLIC HEARING. ON FEBRUARY 20TH, THE DRC HELD A PUBLIC HEARING AND PROVIDED A FAVORABLE RESOLUTION TO THE ZAB. [ REFERRING TO SLIDE ]. THE CITY ALSO POSTED NOTICES AT THREE NEARBY LOCATIONS WITHIN THE NEIGHBORHOOD. THEN ON MARCH 13TH, 2025 THE ZAB HELD A PUBLIC HEARING AND VOTED TO APPROVE THE USE PERMIT. THE CITY RECEIVED AN APPEAL FROM NEIGHBOR RESIDENTS ON MARCH 26, 2025, WHICH BRINGS US TO TODAY'S HEARING. THE PROJECT SITE IS LOCATED ALONG THE NORTHEAST CORNER OF SHATTUCK AVENUE AND DERBY STREET WITHIN THE ADAVAN COMMERCIAL DISTRICT. A VACANT AUTO SALES SITE IS LOCATED DIRECTLY TO THE NORTH OF THE PROJECT SITE AND TO THE WEST OF THE SHATTUCK AVENUE IS MIXED COMMERCIAL USES AND BERKELEY FIRE STATION. THE SURROUNDING APARTMENTS AND MIXED USE BUILDINGS ARE BETWEEN FIVE AND SIX STORIES IN HEIGHT AND THERE ARE EXISTING SINGLE FAMILY RESIDENCES RAKING FROM ONE TO TWO STORIES LOCATED TO THE EAST BEHIND THE SITE AND TO THE SOUTH ALSO ACROSS DERBY. THE PROPOSED PROJECT WOULD DEMOLISH EXISTING COMMERCIAL BUILDING AND CONSTRUCT AN 84,399 SQUARE FOOT MIXED USE RESIDENTIAL BUILDING. APPROXIMATELY 2,000 SQUARE FEET OF

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GROUND FLOOR COMMERCIAL SPACE AND 41 PARKING SPACES ARE PROVIDED. THE PROPOSED PROJECT IS PROVIDING 48 BICYCLE PARKING SPACES AND NEW STREET TREES ON SHATTUCK AND DERBY. HERE SHOWN IS THE WEST ELEVATION FACING SHATTUCK AVENUE. SHOWN HERE IS THE SOUTH ELEVATION FACING DERBY STREET. AND THIS IS THE EAST ELEVATION FACING THE EXISTING RESIDENTIAL. THE PROPOSED PROJECT QUALIFIES AS A HOUSING DEVELOPMENT PROJECT UNDER SB330, AND IS ENTITLED TO DENSITY BONUS UNDER STATE LAW. THE DENSITY BONUS IS CALCULATED BASED ON THE SITE'S BASE DENSITY, WHICH IS THE MAXIMUM NUMBER OF UNITS ALLOWED ON-SITE WHILE FULLY COMPLYING WITH THE APPLICABLE DISTRICT'S DEVELOPMENT STANDARDS SUCH AS HEIGHT, SETBACKS, USABLE OPEN SPACE AND PARKING. THE DENSITY BONUS IS DETERMINED BY THE PERCENTAGE OF TOTAL UNITS DEDICATED AS AFFORDABLE, AND THEIR AFFORDABILITY LEVEL. FOR THIS SITE, THE BASE DENSITY OR MAXIMUM NUMBER OF UNITS ALLOWED IS 65 DWELLING UNITS. THE PROPOSED PROJECT IS PROVIDING 10 VERY LOW INCOME UNITS, WHICH IS 15% OF THE TOTAL UNITS, AND UNDER STATE LAW THAT PERMITS A 50% DENSITY BONUS. 50% OF THE 65 UNITS IS 33 UNITS, ADDED TO THE BASE DENSITY THAT'S A MAXIMUM TOTAL OF 98 UNITS. THE PROJECT IS PROVIDING 97 UNITS. MOVING ON TO THE APPEAL ISSUES -- THIS IS A SUMMARY OF THE APPEAL ISSUES AND STAFF'S RESPONSE. A MORE DETAILED DISCUSSION CAN BE FOUND IN THE STAFF REPORT. THE FIRST APPEAL ISSUE RELATES WITH PARKING

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REQUIREMENTS. THE APPELLANT REQUESTS TO ELIMINATE PARKING ENTIRELY IN ORDER TO SHORT THAN EASTERN WING. IF THAT'S NOT POSSIBLE THE PALE IS REQUESTING TO MOVE THE DRIVEWAY FROM DERBY STREET TO SHATTUCK AVENUE TO REDUCE TRAFFIC. PARKING MAXIMUMS ARE REGULATED BY BMC SECTION 23.322 THE RESIDENTS PROJECTS MAY NOT EXCEED AN .5 OFF-STREET PARKING SPACES OF PER DWELLING UNIT. THE MAXIMUM IS 49 PARKING SPACES AND IS PROPOSING 41 PATRICKS SPACES, WHICH IS CONSISTENT WITH THE REQUIREMENT. BECAUSE THIS IS AN SB330 PROJECT, THE CITY MAY NOT IMPOSE STRICTER PARKING LIMITATIONS AS THE DEVELOPMENT RIGHTS ARE CONSIDERED VESTED UNDER STATE LAW. HERE'S A CLOSER VIEW OF THE 41 PARKING SPACES PROVIDED. THE APPLICANT HAS INCLUDES DOUBLE STACKED PARKING SPACES TO PRESERVE SPACE. THE SECOND APPEAL RELATES TO GROUND FLOOR COMMERCIAL SPACE. REDESIGN THE PROJECT WITH REGARDS TO HEIGHT AND CIRCULATION. UNDER THE CAC ZONING DISTRICT REQUIREMENTS GROUND FLOOR COMMERCIAL WITH A DEPTH OF 30 FEET IS REQUIRED. THE PROJECT IS PROVIDING 27 FEET AND 10 INCHES AND IT'S REQUESTING A WAIVER TO REDUCE THIS REQUIREMENT. THE CITY DOES NOT HAVE THE AUTHORITY TO REQUIRE THE APPLICANT TO MODIFY A WAIVER REQUEST OR TO REDESIGN THE PROJECT AS IT IS AN SB330 PROJECT. THE THIRD APPEAL ISSUE RELATES TO SHADOW. IT WOULD CREATE SHADE IMPACTS EASTWARD ALONG THE DERBY STREET AND THE SHADOW STUDY SUBMITTED INDICATE NEW SHADOWS WOULD FALL ON NEARBY

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RESIDENTS. HOWEVER, THESE WOULD BE LIMITED IN DURATION AND EXTENT AND AFFECT ON THE PORTIONS OF THE BUILDING FOR A FEW HOURS OF THE DAY ONLY DURING CERTAIN TIMES OF THE YEAR. SUCH SHADOWS ARE INEVITABLE AND NOT CONSIDERED DETRIMENTAL TO THE SURROUNDING USES. TO ADDRESS SHADOW AND PRIVACY, THE PROPOSED PROJECT INCLUDES ADDITIONAL TREES AND SCREENING PLANTS AT THE GROUND LEVEL AS WELL AS A LANDSCAPE ROOF ON THE SECOND FLOOR AND FURTHER ALL STORIES ABOVE THE FIRST FLOOR ARE SET BACK 20 FEET FROM THE NEAREST RESIDENTIAL PROPERTY LINE TO FURTHER MINIMIZE POTENTIAL PRIVACY IMPACTS. APPEAL ISSUE 4 RELATED TO DENSITY BONUS, APPELLANTS CLAIM THE PROPOSED PROJECT WAS NOT PROPERLY NOTICED BECAUSE THE PUBLIC COULD NOT REVIEW THE BASE PROJECT. THE PROPOSED PROJECT WAS PROPERLY NOTICED AND REVIEWED IN ACCORDANCE WITH CITY AND STATE LAW. THE BASE PROJECT REFERS TO A THEORETICAL CALCULATION OF THE MAXIMUM ALLOW DENSITY PERMITTED AND IS NOT A SEPARATE PROPOSAL THAT REQUIRES DISCRETIONARY REVIEW. STAFF FOLLOWED ALL PROCEDURES FOLLOWED BY STATE LAW. AND THE LAST APPEAL ISSUE RELATES TO THE INCLUSIONARY HOUSING ORDINANCE AND IN-LIEU FEE. APPELLANTS CLAIM THE CITY AND THE ZAB ARE INCORRECT APPLYING THE HOUSING ORDINANCE AND IN-LIEU FEES ARE TOO LOW. THE PROPOSED PROJECT IS PROVIDING 15%, VERY LOW BELOW MARKET RATE UNITS ON-SITE AND PAY A PER RATE OF IN-LIEU FEE OF 5%. THE AFFORDABLE HOUSING IN-LIEU FEE WAS REASONABLY

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ANALYZED AND FOUND TO BE SIMILAR TO THE CITY'S TYPICAL CONTRIBUTION TO PROVIDING ON-SITE 100% AFFORDABLE HOUSING. STAFF RECOMMENDS THAT COUNCIL CONDUCT A PUBLIC HEARING AND ADOPT A RESOLUTION AFFIRMING THE ZAB'S DECISION. ARGUMENTATIVELY THE COUNCIL MAY CONTINUE THE PUBLIC HEARING OR REVERSE OR MODIFY THE LPC'S DECISION OR REMAND AND RETURN IT BACK TO THE LPC. THIS CONCLUDES STAFF'S PRESENTATION. WE ARE AVAILABLE FOR QUESTIONS.

>> MAYOR ISHII: THANK YOU VERY MUCH FOR THE PRESENTATION. CAN I HAVE THE APPELLANT COME FORWARD, PLEASE? YOU WILL HAVE FIVE MINUTES TO SPEAK. THANK YOU.

>> THAT'S A --

>> MAYOR ISHII: WERE YOU SAYING SOMETHING, ROBERT.

>> SORRY. I PULLED UP THE PRESENTATION EARLY. [ INDISCERNIBLE ]

>> MAYOR ISHII: SORRY. IS THE ISSUE THAT WE ARE HAVING TROUBLE WITH SCREEN SHARING OR? YEAH, OKAY. BECAUSE I THINK DO YOU HAVE THE SAME PRESENTATION? NO, DIFFERENT. [ INDISCERNIBLE ] I SEE.

>> I DON'T HAVE THE MIC ON?

>> MAYOR ISHII: SOMEONE IS UN-MUTED ONLINE, I THINK. WE ARE TRYING TO GET THE PRESENTATION ON FOR THE APPELLANT.

>> TECHNICALLY, WE TESTED THIS BEFORE AND IT WORKED AND NOW IT'S NOT.

>> MAYOR ISHII: OKAY. IT'S WORKING NOW OR NOT AT ALL?

>> WE ARE GOING TO TRY A WORK AROUND.

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>> MAYOR ISHII: OKAY.

>> I WILL PLAY THE SOUND OF THE COMPUTER AND PUT THE MICROPHONE NEXT TO IT.

>> MAYOR ISHII: GOT IT. WE WILL GIVE THIS A SHOT, EVERY. I THINK THE REVERB SOUNDS PRETTY BAD. IS IT A VIDEO? CAN IT BE SHARED WITH SOMEONE?

>> [ INDISCERNIBLE ] YES?

>> MAYOR ISHII: OKAY. I WANT TO GIVE YOU A COUPLE MORE MINUTES TO DO THIS, BUT I WANT TO GET GOING WITH OUR MEETING, SO, I WILL GIVE YOU TWO MORE MINUTES AND THEN WE NEED TO MOVE FORWARD.

>> IT'S NOT OUR FAULT.

>> MAYOR ISHII: NO, I AM SORRY.

>> [ INDISCERNIBLE ].

>> WE TESTED IT.

>> MAYOR ISHII: I AM SURE YOU TESTED IT. WHAT ARE YOU ASKING FOR?

>> CAN WE BRING IT UP AND SHOW IT TO YOU?

>> IT HAS TO BE VISIBLE TO EVERYONE.

>> MAYOR ISHII: CAN YOU TALK US THROUGH IT.

>> TO UNDERSTAND THE ISSUES YOU HAVE TO BE ABLE TO SEE IT AND THAT'S WHY WE FILMED IT AND WENT TO SOME EXTENT TO MAKE A 2 MINUTE 50 SECOND VIDEO TO SHOW IT BECAUSE IT'S MUCH MORE COMPREHENSIBLE IN ORDER TO SEE IT.

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>> MAYOR ISHII: WE CAN'T GET THAT VIDEO ON SOMEONE ELSE'S COMPUTER.

>> IT WAS WORKING FINE.

>> MAYOR ISHII: THAT'S FINE, BUT LET'S TRY TO FIGURE OUT A DIFFERENT WAY. CLERK, IS THERE ANOTHER WAY THAT IT CAN GET PLAYED ON SOMEBODY ELSE'S LAPTOP.

>> CITY CLERK: WE ARE NOT SURE IF IT'S A COMPATIBILITY CHALLENGE. IT WAS MENTIONING IT WAS A MAC DRIVE AND STAFF'S DEVICES ARE NOT MAC MACHINES.

>> CAN WE PLAY A VIMEO LINK?

>> MAYOR ISHII: DO YOU HAVE A VIMEO LINK.

>> SURE.

>> MAYOR ISHII: IT SEEMS THE PROBLEM IS RELATED TO YOUR COMPUTER, SO YOU CAN SHARE THE LINK OVER TO OUR CLERK AND THEY CAN PLAY IT FROM THE LAPTOP THERE. THERE WE GO. ALRIGHT, MILLENNIAL.

>> B. BLACKABY: COUNCILMEMBER LUNAPARRA PUT IT ON TIK TOK AND THEN DO IT THAT WAY.

>> C. LUNAPARRA: THAT'S INTERGENERATIONAL.

>> B. BLACKABY: SORRY.

>> THAT'S AGEIST. I DON'T THINK HE'S ACTUALLY ON TIK TOK. ARE YOU ON TIK TOK?

>> C. LUNAPARRA: YEAH.

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>> B. BLACKABY: I AM BARELY, THAT'S WHY I CAN SORT OF REFERENCE, BUT CAN'T DO IT.

>> MAYOR ISHII: IS IT ON YOUR -- ARE YOU HAVING TROUBLE EMAILING IT.

>> YES.

>> MAYOR ISHII: YOU EMAILED IT OR HAVING TROUBLE EMAILING IT? YOU JUST EMAILED IT. ALRIGHT, IT SEEMS LIKE WE ARE MOVING FORWARD. OKAY. I THINK WE HAVE GIVEN SUFFICIENT TIME TO TRY TO FIGURE THIS OUT AND UNFORTUNATELY, WE ARE HAVING TECHNICAL DIFFICULTIES AND WON'T BE ABLE TO SEE THIS VIDEO BUT IF YOU WOULD LIKE TO HAVE US PLAY IT AND THEN SPEAK OVER IT, THAT'S FINE. WE CAN SEE IT; THE PROBLEM IS THE SOUND. SO -- THAT'S WHAT I WAS SUGGESTING. I THINK WE SHOULD DO THAT AND THEN MOVE FORWARD. WE HAVE THE CLOCK SET FOR FIVE MINUTES. YOU WILL HAVE FIVE MINUTES TO SPEAK AND THEN WE WILL PLAY THE VIDEO AND START IT WHEN YOU ARE READY.

>> READY?

>> MAYOR ISHII: YEP.

>> ROLL IT. WELCOME TO DERBY STREET. A RESIDENTIAL STREET OF SMALL HOMES DENSELY POPULATED YET QUIET ENOUGH FOR THE CITY TO DESIGNATE IT AS A BIKE ROUTE. THIS BLOCK STARTS AFTER THE CURVE OF ADELEINE AND MANY FAST CARS JOIN SHATTUCK. THIS IS 2655 SHATTUCK THAT STRETCHES DEEP INTO DERBY PAST WALKER STREET. THE

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PROPOSED TWO BUILDING EIGHT STORY 97 UNIT PROJECT WANTS TO PUT THEIR DRIVEWAY FROM DERBY DIRECTLY ACROSS FROM WALKER STREET. THAT IDEA HAS BEEN JUDGED AS A PUBLIC SAFETY HAZARD. IN 1997 THE CITY COUNCIL VOTED TO PLACE THE DRIVEWAY TO THIS LARGE LOT, THEN A VIDEO STORE AND SAID IT SHOULD BE ON SHATTUCK. AND THEN AT THAT POINT THE CITY BUILT A LANE FOR VEHICLES TO ACCESS SHATTUCK AND ACCESS THE PROPERTY VIA A TWO-WAY DRIVER. THIS IS A DEDICATED LANE FOR VEHICLES TO EXITING THE PROPERTY TO MERGE SAFELY BACK ON TO SHATTUCK. THIS IS THE DEDICATED LEFT-TURN LANE AND THE CENTER DIVIDER FOR THE SOLE PURPOSE OF TURNING INTO THIS PROPERTY. BERKELEY CITY COUNCIL VOTED TO SPEND MONEY TO BUILD TRAFFIC INFRASTRUCTURE FOR THE PURPOSE OF KEEPING KIDS WALKING TO AND FROM THE JUNIOR HIGH SAFE, TO KEEP RESIDENTS, THEIR VEHICLES AND BIKES SAFE AND KEEP THE ADDED NOISE AND POLLUTION OFF OF DERBY. WE ADVISE THE DRIVEWAY FOR THIS PROPERTY REMAIN ON SHATTUCK. THE NEIGHBORS WILL BE SHADED EVERY DAY AT LEAST THREE HOURS BEFORE SUNSET MOST DAYS OF THE YEAR. ON JUNE 21ST, A HALF DOZEN HOUSES WILL BE DARKENED THREE HOURS BEFORE SUNSET, NOT TO MENTION DOZENS OF WINDOWS LOOKING INTO THEIR BACKYARD. IF THE DRIVEWAY REMAINS ON SHATTUCK, DEVELOPERS COULD PUT THEIR GARAGE WHERE A PORTION OF THE COMMERCIAL SPACE IS NOW LOCATED. THAT COULD LOWER THE BACK BUILDING BY A FULL STORY. COMMERCIAL SPACE SOUTH OF THE DRIVEWAY COULD PROVIDE ZONING AND PROVIDE A CAFE

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FOR ALL. THE NUMBER OF RESIDENTIAL UNITS. REMAIN THE SAME. THE PROJECT MUST BE DIRECTED TO PRESERVE A SET OF 100-YEAR-OLD BAS-RELIEF PANELS. THE OWNER AND DEVELOPER CURRENTLY RESIDES OVER A BLIGHTED PROPERTY, TRASH AND GRAFFITI. THIS PROJECT IS NOT SHOVEL READY. WE TOLD THERE IS NO MONEY. THEY HAVE TIME TO DESIGN A SAFER, MORE RESPECTFUL PROJECT. KEEP THE DRIVEWAY ON SHATTUCK AND MOVE THE PARKING OR GET RID OF IT, COMPENSATE AND MITIGATE THE DETRIMENTS TO THE SURROUNDING PROPERTIES. WE UNDERSTAND THE STATE LAW THAT INCREASINGLY DEPRIVED CITIZENS OF CONTROL OVER THEIR, LIKE, AND ENVIRONMENT AND OVER TO PUBLIC INTERESTS THE SB 330. IF A DRIVEWAY TO A LARGE PROPERTY ON DERBY WAS DEEMED DANGEROUS IN 1997, THAT DRIVEWAY WOULD STILL BE DANGEROUS 30 YEARS LATER. A COUNCILMAN CITED THE STANDARDS AND POLICIES THAT WERE IN EFFECT IS WHAT SHOULD TAKE IN EFFECT IN REGARDS TO SB330. NOR SHOULD STATE LAW REQUIRE A CITY TO ABANDON VALUABLE INFRASTRUCTURE THAT WAS BUILT FOR PUBLIC SAFETY. NOR SHOULD A CITY ALLOW A SPECULATIVE PROJECT OF 90% MARKET RATE HOUSING TO DESIGN A BUILDING THAT IS FLAWED. THIS ALLOWS FOR ONLY FIVE PUBLIC MEETINGS AND ONE OF THE MEETINGS WITH REGARD TO HISTORIC PRESERVATION WAS HELD IN SECRET WITHOUT NOTICE. WHEN THIS PROJECT WAS FIRST NOTICED OVER A YEAR AGO, BETSY AND I ASKED AT THE JORDAN KLEIN AT THE PLANNING DEPARTMENT TO KEEP US APPRISED, WE WERE NOT. OUR FIRST NOTICE WAS WHEN THE PROJECT

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WENT TO THE DRC. WHEN WE WERE ASKED WHY WE WERE NOT NOTICED, THE RESPONSE WAS SIMPLY SORRY IS. WE WERE GIVEN AN OUTSOURCED PERSON OF SOME SORT WHO WAS COORDINATING THE PROJECT BUT DID NOT HAVE ACCESS TO RECORDS OR EMAILS FROM THE DEPARTMENT. THESE ARE REASONABLE OBJECTIONS TO QUANTIFIABLE DANGERS AND RESIDENTS. STATE LAW CANNOT PROHIBIT YOU FROM PROTECTING PUBLIC SAFETY. WE COME TO YOU TO HELP US. WE ARE ASKING YOU TO STAND UP FOR THE PEOPLE WHO LIVE HERE NOW, THE PEOPLE WHO PAY TAXES AND LIVE AND VOTE IN BERKELEY. WE HAVE LEGITIMATE CONCERNS ABOUT ISSUES THAT IMPACT OUR REAL LIVES. THIS IS YOUR OPPORTUNITY TO STAND UP FOR THE REAL PEOPLE IN BERKELEY. [ APPLAUSE ]

>> MAYOR ISHII: THANK YOU. PERFECT TIMING. IS THE APPLICANT HERE TO SPEAK?

>> YES.

>> MAYOR ISHII: YOU WILL HAVE FIVE MINUTES TO SPEAK.

>> GOOD EVENING, STAFF, COUNCIL, MAYOR. BUDDY WILLIAMS FROM STUDIO DBA ARCHITECTS. I HAVE A FEW IMAGES BECAUSE HE GAVE A GREAT PRESENTATION EARLIER. I KNOW DESIGN IS NOT PART OF OUR REMIT THIS EVENING TOWARDS THIS APPEAL, BUT I CAN GIVE A FEW POINTERS AS TO HOW THE BUILDING TOOK ITS SHAPE AND WHY.

>> MAYOR ISHII: CAN YOU SPEAK UP A BIT AND MAYBE POSITION THE MIC. THANK YOU.

>> MAYOR ISHII: RIGHTO. NEXT SLIDE. AS WAS MENTIONED WE HAVE

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GOT A MAJORITY OF THE COMMERCIAL ASPECT ON THE WEST SIDE OF THE STREET ALONG SHATTUCK AND RESIDENTIAL ARE TO THE EAST. THIS LOT HAS A BIT OF A BEND ON THE WEST SIDE, AND GIVEN ITS SIZE AND SHAPE, IDEALLY, WE WOULD WANT TO PLACE DOUBLE LOADED CORRIDOR TYPE APARTMENT BUILDINGS AND WE OFTEN HAVE A MUCH MORE SKINNY SITE. ON THIS SITE WE HAD THE OPPORTUNITY TO TAKE MOST OF THE MASS AND PUT IT TO THE WEST PART OF THE SITE. LET'S DO THE NEXT SLIDE. I HAVE FIVE. THE MAJORITY OF BUILDING, EIGHT STORIES IS ALONG SHATTUCK. AS YOU CAN SEE IN THE TOP RIGHT PHOTO, THE REMAINDER OF THE BUILDING IS FIVE STORIES ON THE EASTERN SIDE. NEXT ONE, I THINK IT'S THE LAST ONE. ON THE RIGHT SIDE, THERE IS A BLUE DASHED LINE WHICH IS WHERE WE WERE ALLOWED TO PUT THE BUILDING. IT'S IMPORTANT TO NOTE ON THE RIGHT SIDE OF THE BUILDING COULD HAVE BEEN EIGHT STORIES, BUT AS IT IS NOW, WE HELD THE BUILDING BACK FURTHER AT THE SECOND AND THIRD FLOOR AND ALSO TOOK THAT THREE FLOORS AND TOOK THE MASS AND PUSHED IT TOWARDS THE WEST SIDE OF THE BUILDING AND PUT COMMERCIAL WHICH IS NOT ONLY BY CODE, BUT DESIRABLE ON THE WESTERN PORTION OF THE BUILDING THERE ON THE GROUND FLOOR. ANY OTHER QUESTIONS IN TERMS OF SITUATIONAL ASPECTS OF THE PROJECT?

>> MAYOR ISHII: SURE, YOUR PRESENTATION IS COMPLETE?

>> UH-HUH.

>> MAYOR ISHII: OKAY. THANK YOU. COUNCILMEMBERS, DO YOU HAVE

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ANY QUESTIONS? YES, COUNCILMEMBER -- I AM GOING TO LET COUNCILMEMBER BARTLETT GO FIRST SINCE THIS IS HIS DISTRICT. I KNOW YOU ARE TRYING TO UN-MUTE AND THEN COUNCILMEMBER TREGUB.

>> B. BARTLETT: THANK YOU FOR YOUR PRESENTATION. MY QUESTIONS FOR YOU ARE WHEN YOU WERE DESIGNING THE DRIVEWAY, WHY THE IMPETUS TO MOVE IT FROM SHATTUCK TO DERBY?

>> BY CODE, IT IS SUPPOSED TO BE OFF OF DERBY, SO WE WERE FOLLOWING PLANNING CODE. WHEN WE DO THIS IN OTHER LOCATIONS, IT'S IMPORTANT TO TAKE THE ACCESS TO THE DRIVEWAY OFF OF THE MOST BUSY STREET WHERE A MAJORITY OF PEOPLE ARE WALKING ALONG THE AVENUE. THAT'S WHAT WE DO IN OR THE LOCATIONS THROUGHOUT THE CITY, ESPECIALLY ON SAN PABLO. WE ALWAYS GO OFF THE SIDE STREETS SIMILAR TO SHATTUCK BECAUSE THERE IS LESS POPULATION WALKING ACROSS THAT DRIVEWAY ENTRY THAN THERE IS ON THE BUSIER STREET AND ON SHATTUCK AND UNIVERSITY OF SAN PABLO IS KIND OF THE SAME THING.

>> B. BARTLETT: DOES THAT DEAD INTERSECT WITH OUR BICYCLE ROUTE CODE AS WELL?

>> THIS CODE COMES FROM THE ADELEINE CORRIDOR SPECIFIC PLAN, WHICH WAS APPROVED IN 2020. THE SPECIFIC PLAN HAS DESIGN STRATEGIES FOR PARKING AND ACTIVATION OF THE PRIMARY STREET FRONTAGES, INCLUDING LOCATING PARKING AT THE REAR OF THE SITE AND PROMOTING ACTIVE GROUND FLOOR COMMERCIAL -- [ INDISCERNIBLE

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] WHICH IS SUPPOSED TO INCREASE PEDESTRIAN ACTIVITY AND CREATE A MORE COMFORTABLE EXPERIENCE FOR THE PEDESTRIAN.

>> B. BARTLETT: OKAY AND ALSO I AM WONDERING -- THIS IS FOR THE DESIGNER AS WELL. WHY THE PARKING? THE CITY HAS TAKEN STEPS TO MAKE THE CITY REALLY MORE BIKE AND PEDESTRIAN FRIENDLY TO REDUCE THE NUMBER OF CARS IN THE STREETS AND THIS DISTRICT HAS A TREMENDOUS NUMBER OF PEDESTRIAN AND BICYCLE INJURIES AND FATALITIES INTERACTING WITH CARS. SO, YOU KNOW, WE HAVE WORKED HARD TO REDUCE THE NEED FOR PARKING, AND REALLY, WHEN WE CAN, NOT REQUIRE NEW BUILDINGS SPECIFICALLY ON TRANSIT CORRIDORS LIKE THIS ONE CLOSE TO THE CAMPUS, CLOSE TO DOWNTOWN, CLOSE TO BART, CLOSE TO BUS LINES, TO REQUIRE PARKING, SO WHAT'S YOUR THINKING AROUND REQUIRING PATRICKS?

>> YEAH, IT WAS A CLIENT CALL FOR TWO REASONS. ONE, THEY FELT IT WAS FAR ENOUGH WAY FROM CAMPUS TO WARRANTY THE PARKING. THIS IS SET UP AS A CONDO. EXPECTATION FOR A CONDO DEVELOPMENT TO INCLUDE PARKING. WE ARE TECHNICALLY AS MENTIONED UNDER PARKED FOR MAXIMUM, BUT FOR THIS PARTICULAR DEVELOPMENT THAT WAS THE CLIENT'S CALL. THAT WAS THE BEST MIX FOR THEM TO BE ABLE TO MOVE THOSE UNITS.

>> B. BARTLETT: OKAY. THANK YOU.

>> MAYOR ISHII: DO YOU HAVE ANYMORE QUESTIONS COUNCILMEMBER BARTLETT?

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>> B. BARTLETT: NOT AT THIS TIME.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU. ONE OF MY QUESTIONS WAS ACTUALLY GOING TO BE ABOUT PARKING, SO MAYBE THIS IS NOW A QUESTION TO STAFF. THE -- CAN YOU SPEAK MORE TO THE STAFF CONTENTION THAT THE CITY MAY NOT IMPOSE STRICTER PARKING LIMITATIONS UNDER STATE LAW? WHAT I AM BASICALLY, WONDERING ABOUT IS DOES THIS PART OF THE -- OF STATE LAW HAVE THE SAME POWER AND EFFECT AS THE HOUSING ACCOUNTABILITY ACT?

>> STAFF: THE PART ABOUT STATE LAW WHERE IT -- IT'S SIMILAR TO THE HISTORIC DESIGNATIONS WHERE THEY ARE VESTED TENANT RIGHTS AND UNDER STATE LAW, WHAT THE RULES THAT WERE IN PLACE WHEN THE APPLICATION WAS DEEM VESTED IS WHAT IS BEING APPLIED REGARDLESS IF IT'S A PARKING MINIMUM OR A PARKING MAXIMUM, THE CITY DOESN'T HAVE A PARKING MINIMUM FOR THIS SITE BECAUSE IT'S WITHIN A TRANSIT WARRANTED DEVELOPMENT, BUT THE PARKING MAXIMUM IS SET AT AND WE WOULDN'T BE ABLE TO CHANGE OR ALTER THAT MAXIMUM REQUIREMENT AND IT WOULD BE AGAINST, YOU KNOW, SB330 AND THE VESTED TENANT RIGHTS.

>> I. TREGUB: OKAY. AND CAN YOU REMIND ME AGAIN, IS THIS JUST, LIKE -- IS THIS BASICALLY, WITHIN THE LIMIT OF WHAT THE PARKING MAXIMUM IS OR, YEAH.

>> STAFF: CORRECT, YEAH.

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>> I. TREGUB: OKAY. WHAT THEY ARE PROPOSING IS THE MAXIMUM AMOUNT OF PARKING ALLOTTED FOR THIS SITE?

>> STAFF: THE MAXIMUM WAS 45 AND THEY ARE PROPOSING 41, I THINK.

>> YEAH, 41.

>> STAFF: UNDER THE MAXIMUM.

>> I. TREGUB: OKAY. THANK YOU I WANTED TO -- THIS MAY BE FOR THE APPLICANT, BUT IT MIGHT ALSO BE FOR STAFF. I AM JUST TRYING TO -- I AM LOOKING AT THE SOUTH ELEVATION FACING DERBY ON THE SLIDES AND I JUST WANT TO CONFIRM THAT FIFTH STORY, THE EDGE ON THE EASTERN SIDE WHERE, YOU KNOW, THE -- THE KIND OF THE END OF THE STEP BACK ABOVE THE LITTLE STUMP, IS THAT ABOUT 60 FEET OR SO FROM LOOKING AT THE ELEVATION DRAWINGS, BUT IT DOESN'T PROVIDE A SPECIFIC ELEVATION FOR THAT?

>> ARE YOU TALKING ABOUT AT THE TOP OF THE FIFTH FLOOR?

>> I. TREGUB: YES.

>> [ INDISCERNIBLE ].

>> I. TREGUB: SO ABOUT 60. THANK YOU. AND THEN I DIDN'T SEE THIS AS AN APPEAL POINT, BUT SINCE THIS WAS BROUGHT UP BY THE APPELLANT, STAFF, COULD YOU PROVIDE SOME CONTEXT ABOUT THAT INITIAL MEETING, AND THE CONTENTIONS THAT WERE MADE BY THE APPELLANT ABOUT NOTICING?

>> STAFF: ARE YOU REFERRING TO THE LPC MEETING? THE ZAB

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MEETING?

>> I. TREGUB: I GUESS. WELL, IT'S JUST WHAT I HEARD ON RECORD NOW. I GUESS IT WAS THE LPC MEETING THAT WAS BEING REFERRED TO. I AM NOT SURE.

>> STAFF: OKAY.

>> STAFF: I CAN'T SPEAK TO THE SPECIFIC CONTENTIONS THAT WERE MADE, BUT I CAN SAY THAT ALL OF OUR REQUIRED NOTICING PROCEDURES WERE FOLLOWED.

>> I. TREGUB: OKAY. THANK YOU. THOSE ARE ALL OF MY QUESTION.

>> MAYOR ISHII: THANK YOU. OR QUESTIONS FROM COUNCILMEMBERS? COUNCILMEMBER BLACKABY, I SEE YOUR HAND.

>> B. BLACKABY: THANKS, MADAM MAYOR. I JUST HAD TWO QUESTIONS, FIRST FOR THE APPLICANT. WE HEARD FROM THE APPELLANTS? QUESTIONS ABOUT THESE BODILY FEATURES. WE HAVE CERTAINLY SEEN OTHER DESIGNS OF OTHER NEW DEVELOPMENTS IN RECENT PAST WHERE SOME OF THOSE FEATURES HAVE BEEN MAINTAINED IN THE NEW DESIGN. JUST CURIOUS IF YOU HAVE ANY INTENTION OR THOUGHTS ABOUT WHAT YOU MIGHT OR MIGHT NOT DO WITH THE BAS-RELIEF ELEMENTS OF THE BUILDING?

>> SURE, DEEPER IN THE PACKET THERE WERE IMAGES WE CREATED AFTER WE HAD OUR MEETING WITH LPC. WHEN WE WENT TO DRC, WE GAVE THAT AS AN EXAMPLE HOW TO SAVE THOSE TWO MURALS THAT ARE A PART OF THE NEW BUILDING NAMED ARE REALLY NIFTY. WE ORIGINALLY SHOWED

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THEM THE GATE ENTRY WITHIN THE COURTYARD. THE PREFERENCE AT THAT TIME WAS TO PLACE IT ON THE BUILDING PROPER. WE MADE IT A RECOMMENDATION TO MAKE IT PART OF THE BUILDING PROPER. WE WANT TO SAVE THEM AND WE ARE COOL WITH THAT AND WE SHOWED IT AS ONE POTENTIAL IN THE DRAWINGS AND IT WAS TALKED ABOUT AND WE DECIDED WE WOULD PLACE THEM ON SHATTUCK INSTEAD. THAT'S FINE WITH US IN TERMS OF TO EXHIBIT THOSE AND MAKE A PLAQUE AND A STORY ABOUT IT AS WELL.

>> B. BLACKABY: AWESOME. I APPRECIATE THAT, THANK YOU. THE SECOND QUESTION FOR STAFF, I NOTICE ON APPEAL ISSUE 3 QUESTIONS ABOUT THE POTENTIAL SHADE IMPACTS AND YOU HAVE SORT OF DONE THE ANALYSIS AND HAD CHARACTERIZED IT'S A TYPICAL IMPACT IN A BUILD URBAN ENVIRONMENT NOT CONSIDERED DETRIMENTAL. JUST CURIOUS HOW DO YOU MAKE THAT DETERMINATION? IS THERE A LEVEL OF SHADE WHERE THE SCALES MIGHT BE TIPPED?

>> STAFF: YEAH, THE ZONING CODE DOESN'T HAVE AN OBJECTIVE STANDARD FOR SHADE. IT'S LARGELY SUBJECTIVE. THERE AREN'T ANY, YOU KNOW, MEASUREMENTS OR -- BUT A SHADE STUDY WAS CONDUCTED AND FOUND TO BE TYPICAL WITH THE AVERAGE SHADE THAT COMES ACROSS IN AN URBAN ENVIRONMENT. SB330, UNFORTUNATELY, WITHOUT OBJECTIVE STANDARDS, THERE ISN'T A THRESHOLD THAT WE COULD ENFORCE ON THE PROJECT WITHOUT HAVING SOME OBJECTIVE STANDARDS FOR SHADE AND SHADOW, SO IT'S A LARGELY SUBJECTIVE DETERMINATION.

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>> B. BLACKABY: DO YOU HAVE ENVISION A SCENARIO WHERE YOU ARE, LIKE, WOW, THAT IS EXTREME? I AM JUST CURIOUS IF YOU CAN ENVISION SOMETHING TO JUST HELP ME THINK THROUGH THAT. NOT FOR THIS PROJECT NECESSARILY, I AM JUST SAYING IN GENERAL. COULD YOU IMAGINE A PROJECT PROPOSED WITH DETRIMENTAL EXTREME IMPACTS THAT'S TOO MUCH.

>> STAFF: YEAH, IT MIGHT BE BASED ON LUMENS. WHAT THAT LOOKS LIKE AS WE ALL KNOW THE SUN AND ANGLE OF THE SHADE CHANGES DURING THE YEAR, SO IT WOULD REALLY HAVE TO BE SOME SORT OF ANALYSIS WITH UNDERLYING FINDINGS TO CREATE THAT KIND OF METRIC.

>> B. BLACKABY: OKAY. JUST THINKING, YOU KNOW, SOMETIMES THINKING OF WHAT THE MOST EXTREME CASES AND WORKING BACK IS HELPFUL TO KNOW MAYBE WHERE THAT LINE GETS DRAWN, SO I JUST ENCOURAGE US TO BE THINKING ABOUT THAT, BUT I APPRECIATE THE CONTEXT. THAT'S ALL I HAVE GOT. THANK YOU.

>> MAYOR ISHII: THANK YOU. OTHER QUESTIONS? OKAY. IN THAT CASE, FIRST OF ALL, I JUST WANT TO SEE IF FOLKS HAVE ANY EX PARTE COMMUNICATIONS THAT THEY NEED TO DISCLOSE? DID I ASK THAT ALREADY? I AM SORRY, WE HAD A BIG BREAK AND I WANT TO MAKE SURE.

>> B. BARTLETT: I DON'T HAVE A HAND RAISED BUTTON ON THE PHONE I AM USING. BUT I HAVE A FOLLOW UP QUESTION.

>> MAYOR ISHII: SURE, GO AHEAD.

>> B. BARTLETT: BUILDING OFF COUNCILMEMBER BLACKABY'S QUESTION,

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SO TO DETERMINE WHETHER IS TOO MUCH BEYOND A SORT OF OBJECTIVE ANALYSIS, YOU WOULD NEED TO DO AN OBJECTIVE STUDY. IS THAT WHAT YOU ARE SAYING?

>> STAFF: I THINK THAT WE ARE SAYING THAT COUNCIL COULD CONSIDER ADOPTING OBJECTIVE STANDARDS RELATED TO SOLAR ACCESS, BUT ABSENT AN OBJECTIVE STANDARD, WE CANNOT MAKE A DETERMINATION OF DETRIMENT THAT WE WOULD USE TO DENY A PROJECT. THAT'S NOT PERMITTED UNDER STATE LAW.

>> B. BARTLETT: OKAY. BECAUSE IT SEEMS A BIT CONFUSING BECAUSE IN YOUR -- IN THE STATEMENT WE HAVE HERE, IT MAKES IT SEEM LIKE YOU MADE A DETERMINATION THAT IT WAS MINIMAL AND IT WAS NORMAL, WHEN IN ACTUALITY, I HAVE BEEN TO THE SITE AND I HAVE SEEN THE HOUSES NEXT DO TO AND, YOU KNOW, IT'S PRETTY EASY TO IMAGINE THEY WILL BE ENCASED IN SHADOWS AND THEIR SOLAR PANELS WILL BE RENDERED USELESS, SO MAYBE YOU WANT TO RESTATE THAT AND SAY WE CAN'T MAKE A DETERMINATION DUE TO OUR INABILITY TO DO SO BECAUSE THAT SEEMS TO BE MORE ACCURATE, RIGHT?

>> STAFF: YEAH, I APPRECIATE THAT INPUT, COUNCILMEMBER.

>> MAYOR ISHII: OKAY. COUNCILMEMBER TREGUB, DID YOU HAVE A DISCLOSURE?

>> I. TREGUB: YES, ON JULY 17TH, MY STAFF HAD A PHONE CONVERSATION WITH THE APPELLANT.

>> MAYOR ISHII: OKAY. SO NOW LET'S MOVE ON TO PUBLIC COMMENTS.

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YOU ARE WELCOME WRITE IT DOWN IF YOU WOULD LIKE.

>> THANK YOU.

>> MAYOR ISHII: THANKS. DO FOLKS HAVE PUBLIC COMMENT? PLEASE LINE UP HERE.

>> B. BLACKABY: I MEAD TO REPORT ONE EX PARTE.

>> MAYOR ISHII: COUNCILMEMBER.

>> B. BLACKABY: ON JULY 17TH, I MET WITH THE APPELLANTS WITH RESPECT TO THIS PROJECT.

>> MAYOR ISHII: GREAT. EVERYONE MAKE SURE YOU SUBMIT YOUR DISCLOSURES TO THE CLERK'S OFFICE. OKAY. IS THIS EVERYONE WHO WANTS TO SPEAK? OKAY. GO AHEAD COME ON UP, FOR FOLKS ONLINE, IF YOU WOULD LIKE TO SPEAK TO THIS, PLEASE GO AHEAD AND RAISE YOUR HAND NOW.

>> GOOD EVENING. I WANT TO SAY THANK YOU FOR HAVING US HERE AND HAVING THIS MEETING. I LIVE IN THE PROPERTY OF RIGHT BEHIND THIS PROPERTY WHERE IT WILL BE DEVELOPED, SO THIS IMPACTS ME DIRECTLY, KIND OF KITTY CORNER. WE DID RECEIVE NOTICE THAT THERE WAS GOING TO BE DEVELOPMENT ON THIS PROPERTY AND MY WIFE AND I ARE ACTUALLY VERY SUPPORTIVE OF MORE HOUSING AND DEVELOPMENT THAT IS HARMONIOUS OF WHAT IS ALREADY HAPPENING. OUR OBJECTION IS THE HEIGHT OF THE BUILDING IS HOW TALL IT IS. THE OTHER ISSUE THAT CAME UP, PEOPLE WERE TALKING ABOUT FOOT TRAFFIC INTERSECTING WITH THE STREET. I KNOW HE WAS SAYING THEY WERE

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TRYING TO MOVE THE CARS AWAY FROM THE SHATTUCK. I USED TO WORK IN THE OLD BERKELEY BULLOCK BUILDING WHERE THE HONDA DEALERSHIP IS NOW, I DON'T KNOW THE DETAILS, BUT THEY MOVED THE DRIVEWAY ACCESS TO THE GRADUATION FROM SHATTUCK AVENUE TO A SIDE STREET.

>> MAYOR ISHII: THANKS. I APPRECIATE YOUR COMMENT. THANK YOU.

>> GOOD NIGHT.

>> MAYOR ISHII: HI, I AM MICHAEL. I WAS TOLD THAT THERE WERE TWO MINUTES OR TOO MANY SPEAKERS.

>> MAYOR ISHII: SO WE HAVE A LOT OF SPEAKERS, SO YOU WILL HAVE ONE MINUTE. GO AHEAD YOUR TIME IS RUNNING.

>> SO I WOULD LIKE TO ASK FOR A COUPLE OF VOLUNTEERS TO EXTEND MY TIME.

>> MAYOR ISHII: SURE, YOU CAN HAVE UP TO FOUR MINUTES.

>> LET'S GET GOING.

>> MAYOR ISHII: I WILL TAKE THEM FROM THE THREE PEOPLE WHO ARE RIGHT HERE SO I AM CLEAR.

>> THAT WAS PROCESS, SO I WOULD LIKE TO START THE CLOCK AGAIN. I WAS ASKING A PROCESS QUESTION.

>> MAYOR ISHII: I AM SORRY THIS IS STILL PART OF YOUR TIME, SO GO AHEAD AND USE YOUR TIME.

>> OKAY. THANK YOU VERY MUCH. 20 YEARS AGO I WAS PRESENT WHEN THE HOLLYWOOD VIDEO CHAIN WANTED TO LOCATE AT THIS SAME ADDRESS. OUR GROUP SOUTH SHATTUCK NEIGHBOR'S ASSOCIATION WORKED WITH CITY

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STAFF, ZAB, AND THE CITY COUNCIL FOR SOME TIME, SPECIFICALLY WE WORKED TO PUT THE ENTRANCE AND EXIT FROM THIS PROPERTY ON SHATTUCK AVENUE. I JUST WANT TO INTERJECT HERE THAT THIS IS NOT A COOKIE CUTTER APPROACH TO DEVELOPMENT. AND THE FIRST SPEAKER WHO PRESENTED IN OPPOSITION DOESN'T UNDERSTAND THAT WE ARE NOT LIKE ANY OTHER STREET IN THE COUNTRY. IN FACT, WE HAVE A BICYCLE ROUTE GOING UP THAT STREET, AND WE HAVE MANY SCHOOL CHILDREN WHO ARE WALKING AND PLAYING ON THAT STREET ON THEIR WAY TO WILLERT. WE ALSO HAVE A WOMAN WHOSE MOTHER WAS HIT BY A CAR AT THAT INTERSECTION AND NONE OF THAT HAS BEEN CONSIDERED.

>> KILLED BY IT.

>> KILLED AT THAT INTERSECTION. AND NO STUDY WAS DONE TO CONTRADICTORY THE STUDY THAT WAS DONE IN 1995, WHICH RECOMMENDED STRONGLY THAT THE ENTRANCE BE ON SHATTUCK FOR SAFETY REASONS. AND THAT STUDY SHOULD STAND. THE TRAFFIC ENGINEER MET WITH US AND TOLD US THAT HE WAS GOING TO PUT THAT -- OR HE WAS GOING TO ADVISE THE COUNCIL TO PUT IT ON SHATTUCK AND THE COUNCIL AGREED WITH HIM. SO I THINK THAT SHOULD BE CONSIDERED AND WHAT WE ARE ASKING IS THAT SOUTH SHATTUCK NEIGHBORHOOD ASSOCIATION, IS THAT THIS GO BACK TO ZAB FOR RECONSIDERATION. THERE HAS ALREADY BEEN A REPORT FROM THE TRAFFIC ENGINEER THAT RECOMMENDED THAT THAT ENTRANCE BE ON SHATTUCK AND THAT IS OUR MAJOR CONCERN. IT'S A SAFETY CONCERN AND IT'S WORTH NOT RUSHING AND SENDING IT BACK TO

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ZAB SO THEY CAN LOOK AT THAT REPORT, AND THE DEVELOPER CAN PRESENT CONTRADICTORY EVIDENCE, BUT THE CITY HAS ALREADY MADE A DECISION THAT THAT NEEDS TO BE ON SHATTUCK, AND IN FACT IT WAS PUT ON SHATTUCK AS THE SLIDE SHOW DEMONSTRATES. WE REACHED AN AGREEMENT WITH THE OWNER OF THE PROPERTY AND WITH THE CITY, AND THE MOST IMPORTANT PART OF THAT AGREEMENT WAS THAT ENTRANCE BE PLACED ON SHATTUCK TO PROTECT THE SAFETY OF OUR NEIGHBORS, PARTICULARLY OUR CHILDREN. IN 1995, THE CITY'S ZONING ADJUSTMENT BOARD ISSUED ITS FINDINGS, WHICH YOU HAVE IN YOUR PACKAGE THERE BECAUSE I SENT THEM IN. THEY RECOMMENDED SERIOUS MITIGATION ON THE PROJECT. TWO YEARS LATER BECAUSE WE STARTED THIS IN 1995. TWO YEARS LATER, THE CITY MANAGER WROTE US UNDER ITEM 1 IN YOUR PACKET, AND I CAN QUOTE HIM. THE -- SO LET'S SEE HERE. SORRY. A LITTLE ANXIOUS HERE. IN ORDER TO CLOSE THE DERBY STREET ENTRANCE, YOU AND I MUST DO EVERYTHING, HE'S ADDRESSING THAT TO US -- TO MINIMIZE RISKS TO PEDESTRIANS AND AUTOS. I UNDERSTAND THAT CHUCK -- HE'S A TRAFFIC ENGINEER, HAS FOUND A SAFE WAY TO CLOSE DERBY STREET AND I WILL DO WHATEVER IS NECESSARY TO MAKE IT WORK. THAT'S IN YOUR PACKET. ON THE SECOND PAGE HE SAYS I UNDERSTAND --

>> MAYOR ISHII: SORRY.

>> HAS MET WITH YOU.

>> MAYOR ISHII: I AM SORRY YOUR TIME IS UP.

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>> OKAY. MY TIME IS UP.

>> MAYOR ISHII: THANKS FOR YOUR COMMENT.

>> I AM ASKING THIS GO BACK TO ZAB FOR FURTHER CONSIDERATION.

>> MAYOR ISHII: I AM SORRY, THANK YOU. SORRY, FOLKS, YOU KNOW, YOU HEARD ME. I AM STRICT ON TIME. GO AHEAD.

>> SINCE I ONLY HAVE A MINUTE I WILL SHORTEN WHAT I WANT TO SAY. I HAVE BEEN IN BERKELEY SINCE 1969 AND THE VERY AREA WE ARE TALKING ABOUT NOW BUILDING AFFORDABLE HOUSING AND AT BATTER USED TO BE OWNED BY MILE HIGHS AFRICAN AMERICANS. IT'S DOWN TO 7% AND YOU KEEP SAYING YOU ARE BUILDING AFFORDABLE HOUSING AVERAGE RENT IN THIS CITY IS $4700, THAT'S NOT AFFORDABLE. WE CAN'T DO AUDITS HOW DO I KNOW, WE WERE ON THE SOLAR TASK COMMISSION AND ASKED FOR AN AUDIT. THE SYSTEM YOU HAVE IS NOT KEEPING UP WITH WHAT WE REALLY NEED. WE DO NEED MORE AFFORDABLE HOUSING, BUT WE DON'T NEED TO BUILD A SIX-STORY, EIGHT-STORY, NINE-STORY BUILDINGS. YOU NEED TO FILL THE VACANCIES OF THE PLACES THAT YOU HAVE NOW. THE BIGGER PROBLEM FOR THE CITY ARE ALL THE SMALL BUSINESSES THAT ARE CLOSED ON SHATTUCK. WHAT ARE YOU DOING ABOUT THAT?

>> MAYOR ISHII: THANKS, JOY. [ APPLAUSE ]

>> HI, MY NAME IS CHARLOTTE. IS SOMEONE WILLING TO GIVE ME A MINUTE.

>> YES, OR TWO.

>> MAYOR ISHII: GENTLEMAN'S HERE.

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>> OKAY. I WANT TO SAY THAT 30 YEARS AGO THAT DRIVEWAY ON SHATTUCK WAS APPROVED JUST LIKE MICHAEL SAID. IT'S IN YOUR SUPPLEMENTAL PACKET. WE WORKED ON THIS PROJECT FOR TWO DAMN YEARS TO MAKE SURE THAT THE CITY AND THE NEIGHBORHOOD WAS IN AGREEMENT AND THEY SAID IT MUST BE ON SHATTUCK. IT'S STILL THERE. IT'S WORKED FOR ALMOST 30 YEARS. THE NEXT THING THE PERSON WHO WANTS TO BUILD THIS EIGHT-STORY BUILDING, IF THEY PUT THAT DRIVEWAY ON SHATTUCK, YOU ARE GOING TO -- EXCUSE ME ON DERBY, YOU ARE GOING TO HAVE A DRIVEWAY ON DERBY, WHICH IS THERE NOW, WHICH THAT'S THAT BUILDING ON THE FIVE-STORY APARTMENT BUILDING THAT'S ACROSS THE STREET, IT ALREADY HAS A DRIVEWAY ON SHATTUCK --

>> DERBY.

>> AND THEN YOU HAVE WALKER STREET, EXCUSE ME, DERBY, AND THEN YOU HAVE ON WALKER STREET, WHICH IS JUST 100 FEET FROM THE OTHER DRIVEWAY ON DERBY, YOU HAVE GOT ANOTHER STREET WHERE CHILDREN ARE PLAYING THERE. IF YOU PUT A THIRD DRIVEWAY THERE ON DERBY, IT'S CRAZY. IT'S CRAZY. AND THEN IT'S A BIKE LANE AND THEN YOU HAVE GOT 41 CARS COMING IN AND OUT OF THERE AND THEN YOU HAVE GOT CHILDREN GOING UP TO MARTIN LUTHER KING. I AM TELLING YOU THAT DRIVEWAY ON SHATTUCK AS WORKED FOR 30 YEARS. ANOTHER THING ABOUT THE SHADE, YOU NEED TO STUDY THIS MORE BECAUSE I THINK THAT YOUR COMPASS ON THE STUDIES WAS WONKY. I DON'T THINK IT WAS

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VERY CORRECT. I STOOD IN FRONT OF THE EXISTING APARTMENT HOUSE ON THE CORNER THERE, WHICH IS ALREADY BUILT AT 445 TO KNOW FOR, WE ARE TALKING ABOUT TODAY, JULY AND IT WAS ALREADY IN SHADE.

>> MAYOR ISHII: SORRY, YOUR TIME IS UP.

>> IT WAS ALREADY IN SHADE AT 4:45.

>> MAYOR ISHII: I AM SORRY YOUR TIME IS UP.

>> LOOK AT THE SUPPLEMENTAL PACKET.

>> MAYOR ISHII: THANK YOU, YOUR TIME IS UP, THOUGH. FOLKS, COME ON, PLEASE BE RESPECTFUL OF YOUR TIME HERE. WE HAVE A LOT OF FOLKS, WE WANT TO MAKE SURE WE HERE FROM EVERYONE. I AM SURE WE HAVE PEOPLE ONLINE, TOO. ARE YOU BETSY? YOU WILL HAVE TWO MINUTES, A THIRD MINUTE FROM THIS WOMAN BACK HERE.

>> I ONLY NEED TWO MINUTES.

>> MAYOR ISHII: SAVE YOUR MINUTE FOR SOMEONE ELSE. GO AHEAD.

>> HI. PULL THE MIC DOWN SO WE CAN HEAR YOU BETTER.

>> I AM BETSY. I AM THE NEIGHBOR WITH THE HOUSE AND YARD THAT'S DUE EAST OF THE PROJECT. MY SON DOESN'T LIKE IF I JOKE ABOUT SURVIVOR THE CONSTRUCTION, SO INSTEAD I WILL MAKE A SMALL POINT ABOUT THE SHATTUCK SIDE AND THEN READ FROM LETTERS SUBMITTED BY NEIGHBORS UP THE STREET, MARK, AND LIZA, FOR A LARGER OVERVIEW. ON THE RETAIL SPACE, IF YOU AGREE THAT WE SHOULD HAVE A CAFE ON THAT CORNER, SHATTUCK, AND DERBY, PLEASE DON'T MAKE THE MISTAKE THAT WAS APPARENTLY MADE ELSEWHERE OF FORGETTING TO INCLUDE THE

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NECESSARY INFRASTRUCTURE, PIPING, VENTING, ETC. IT WOULD BE GREAT TO USE THE HISTORIC BAS-RELIEFS, ETC., TO FRAME THE CAFE, JUST AN IDEA. NOW, THE TWO LARGER PERSPECTIVES, LIZA WRITES -- WE URGENTLY NEED SMART COMMUNITY-FOCUSED DEVELOPMENT IN THIS AREA, DEVELOPMENT THAT REVITALIZES OUR STREETS, RESPECTS THE CHARACTER OF THE NEIGHBORHOOD AND MEETS THE REAL NEEDS OF BERKELEY RESIDENTS. UNFORTUNATELY, THE PROPOSED EIGHT-STORY BUILDING CURRENTLY UNDER CONSIDERATION FAILS TO MEET THAT STANDARD. MARK ADDS, AS WE ALL KNOW, A DEVELOPER'S ROLE IS TO MAXIMIZE PROFIT, WHILE ADHERING TO THE APPLICABLE RULES AND REGULATIONS. FROM WHAT I CAN TELL THE CURRENT PROPOSAL MEETS THE LETTER OF THE LAW; HOWEVER, I SEE THIS PARTICULAR PROJECT AS A KIND OF HOSTILE TAKE OVER OF THE CENTURY OLD NEIGHBORHOOD. ITS SCALE IS COMPLETELY OUT OF STEP OF THE SURROUNDING NEIGHBORHOOD. IT WILL INTRODUCE SIGNIFICANT LIGHT AND SURROUND POLLUTION, FUNDAMENTALLY ALTERING THE DAILY EXPERIENCE OF THOSE OF US WHO LIVE HERE. AS BERKELEY EMBRACES MUCH NEEDED NEW HOUSING, THIS IS A PIVOTAL MOMENT TO ENSURE OUR SATE BECOMES A HAVEN FOR THOUGHTFUL, INNOVATIVE DESIGN AND NOT JUST A CANVAS FOR MAXIMIZING PROFIT.

>> MAYOR ISHII: THANK YOU. TWO MINUTES SHE KEPT IT.

>> A MINUTE OR MAYBE TWO. IF WE HAVE THEM.

>> MAYOR ISHII: YES. SO IF YOU GAVE A MINUTE ALREADY, THEN YOU

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CAN'T GIVE ANOTHER ONE, BUT THERE IS SOMEONE HERE IN THE FRONT SO DID YOU WANT ONE OR TWO MORE?

>> THREE MINUTES TOTAL.

>> MAYOR ISHII: I WILL TAKE ONE FROM THIS WOMAN FROM IN THE FRONT. GO AHEAD.

>> I WANT TO START OUT BY THANKING ASSEMBLY MEMBERS BLACKABY AND -- FOR HIS QUESTION ABOUT THE OBJECTIVE STANDARDS FOR SHADE. I AM JUST CURIOUS ABOUT OBJECTIVE STANDARDS THAT EXIST FOR TRAFFIC BECAUSE I JUST REALLY WANT TO HAMMER THIS POINT PUTTING THE DRIVEWAY WHERE IT IS CURRENTLY PROPOSED TO BE IS RIGHT OPPOSITE A CUL-DE-SAC STREET WHERE I PLAYED WHEN I WAS A LITTLE KID. DECADES OF CHILDREN HAVE PLAYED. I WAS HIT BY A BIKE GOING FAST ON THAT STREET. I CAN ONLY THINK OF WHAT HAPPENED WHERE EIGHT STORIES OF PEOPLE ARE ORDERING AMAZON PACKAGES AND EVERY SINGLE ONE OF THEM ARE TURNING AROUND IN THAT NARROW CUL-DE-SAC. IT'S A DANGEROUS PROPOSITION. IT'S ON A BIKE LANE. I SEE EVERYDAY DOZENS AND DOZENS OF KIDS WALKING UP TO THAT INTERSECTION. WE SHOULDN'T INTRODUCE THE DANGER OF SHATTUCK INTO THE NEIGHBORHOOD. ON THE LAST MEETING I DON'T KNOW IF IT WAS BINDING, BUT A SUGGESTION TO MAKE THE DRIVEWAY OF THE RIGHT TURN ONLY. I REALLY APPRECIATE THE COMMENTS OF THE FAMILY TO OUR NORTH. THAT PROPOSAL WOULD MEAN THAT EVERY CAR COMING OUT OF THE DRIVEWAY WOULD TURN ON TO CARLTON IF THEY ARE TRYING TO GO EAST,

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BECAUSE THEY WOULD GO UP A BLOCK AND TURN ON TO CARLTON. THAT INTRODUCES DANGER TO THAT NEIGHBORHOOD. THEY SAID THAT KIND OF THING HAS ALREADY HAPPENED WITH OTHER ONE-WAY DRIVEWAYS. IT MAKES SO MUCH SENSE FOR THE CITY TO TAKE THE SIGNIFICANT INVESTMENT THAT YOU ALL MADE WHEN YOU PUT A DEDICATED LEFT TURN LANE OFF OF SHATTUCK AND DEDICATED RIGHT TURN LANE OUT OF THIS PROPERTY. THAT'S AN EXPENSIVE THING TO BUILD WHICH WOULD BE ORPHANED IF IT PROCEEDS THE WAY IT'S CURRENTLY PROPOSED TO DO. I AM CURIOUS IF YOU COULD ASK YOUR STAFF IF YOU HAVE TO BE LISTENING TO THESE OBJECTIVE STANDARDS, THERE ARE OBJECTIVE STANDARDS FOR PUBLIC SAFETY? BECAUSE I THINK THIS WOULD VIOLATE THEM. I WOULD REALLY LIKE SOMEONE TO SPEAK TO THAT. THE LAST THING I WANTED TO SAY WAS, YOU KNOW, THE STAFF GAVE YOU OTHER OPTIONS THAN JUST APPROVING THIS. YOU COULD MODIFY IT OR MODIFY THE ZAB APPROVAL. YOU COULD SEND IT BACK TO THE LPC. WE ARE NOT TRYING TO STOP THIS FROM HOUSING FROM GETTING BUILT. WE ARE TRYING TO HELP YOU GUYS KNOW WHAT THE NEIGHBORHOOD NEEDS TO HAVE SAFE HOUSING IN THE NEIGHBORHOOD, AND A BIG PART OF THAT IS TAKING MORE TIME TO CONSIDER THIS. IF YOU VOTE ON THIS PROPOSAL AND APPROVE IT TONIGHT, WE REALLY HOPE THAT ALL OF YOU WILL CONTINUE TO APPLY THE KIND OF SOFT PRESSURE AND AUTHORITY THAT YOU HAVE AS COUNSEL PEOPLE TO HELP US WORK WITH THE DEVELOPER TO MAKE THIS BETTER. AND IF YOU SEE A WAY TO SENDING THIS BACK TO

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THE LPC OR SENDING THIS BACK TO ZAB WITH MODIFICATIONS, WE WOULD REALLY LIKE YOU TO EXPLORE THAT. THANK YOU. [ APPLAUSE ]

>> MAYOR ISHII: THANK YOU. NEXT SPEAKER.

>> HI. I JUST WANTED TO SAY ONCE AGAIN AS YOU CAN TELL THERE ARE PEOPLE BEHIND EVERY DECISION YOU MAKE BEHIND ALL OF THESE PEOPLE BEHIND ME. THIS GOES ON TO THIS ISSUE BY PUTTING THIS ENTRANCE, ALL OF THESE PEOPLE ARE GOING TO BE INSTEAD OF WHERE IT SHOULD BE ON SHATTUCK AVENUE WHERE THERE IS MORE SPACE. AND I WANT TO CLARIFY A POINT THAT I MADE THAT I THINK WAS MISSED. WHEN I TALKED ABOUT ACCESS FOR DISABLED PEOPLE, I AM NOT TALKING ABOUT THE ENTRANCE AND EXIT OF A BUILDING. I AM TALKING ABOUT THE SIDEWALK ITSELF. THAT'S WHAT I AM TALKING ABOUT. WHEN YOU START PUTTING A WHOLE BUNCH OF PEOPLE ON A SIDEWALK THAT IS NOT MEANT TO HAVE A BUNCH OF PEOPLE ON IT, YOU CREATE A PROBLEM FOR PEOPLE WHO ARE BLIND AND IN WHEELCHAIRS. I KNOW A COUPLE OF PEOPLE WHO ARE BLIND AND WHO ARE IN WHEELCHAIRS, THEY ALREADY HAVE A PROBLEM AND WHEN YOU PUT A BUILDING THAT SIZE, YOU WILL MAKE A BIGGER PROBLEM AND YOU WILL BE RESPONSIBLE FOR WHATEVER DECISION YOU MAKE.

>> GOOD EVENING. MY NAME IS LOUISE ROSENCRANTZ AND I LIVE ON DERBY STREET AND I WAS PART OF THAT 1995 DISCUSSION, DECISION OF PUTTING THAT LOVELY ENTRANCE ON SHATTUCK AND THE VICE MAYOR AT THE TIME WAS OUR REPRESENTATIVE AND WORKED HARD ON THIS AND WE

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WOULD LIKE THAT TO BE REMEMBERED. IF YOU LOOK ON PAGE 3 OF YOUR SITE PLAN, YOU CAN SEE HOW BEAUTIFULLY IT'S DESIGNED SO THAT YOU CAN GO IN ON SHATTUCK. YOU CAN PARK. YOU CAN UNLOAD YOUR LUGGAGE. THERE IS A BIG COMMERCIAL SPACE THERE. THEY CAN GET THEIR TRUCKS UNLOADED THERE. THAT'S WHAT IT'S DESIGNED FOR. DERBY STREET IS NOT DESIGNED FOR TRUCKS OR PEOPLE TO BE UNLOADING AND LOADING. IF YOU TAKE A LOOK YOU CAN SEE YOU CAN ENTER AND EXIT. IT WAS BUILT THAT WAY. IT WAS A STRUCTURE THAT WAS BUILT SO THAT THE DECISIONS WOULD BE MADE ON SHATTUCK NOT ON DERBY. THANK YOU. [ APPLAUSE ]

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, I HAVE THREE QUICK POINTS TO MAKE THAT HAVEN'T BEEN MADE. ONE IS ABOUT THE OBJECTIVE STANDARDS. I JUST HAVE TO SAY THE CITY SPENT A LOT OF MONEY ON THE JSISHL PROJECT AND A LOT OF TIME WAS SPENT ON THAT AND NO OBJECTIVE STANDARDS CAME OUT OF THAT AND NOW YOU ARE USING THAT TO SAY WE CAN'T USE THESE THINGS. THE SECOND THING I WANT TO SAY ABOUT THE PARKING, 41 CARS COMING OUT, THEY COME OUT IN THE MORNING WHEN PEOPLE LEAVE FOR THEIR COMMUTE. THAT IS WHEN THE CHILDREN ARE GOING UP DERBY ON THEIR BIKES AND WALKING TO SCHOOL. YOU HAVE TO THINK ABOUT THE TIMING OF THAT. AND THE THIRD THING I WANT TO SAY IT'S BEEN SAID THAT THIS PROJECT HAS TO HAVE PARKING BECAUSE IT'S SO FAR FROM CAMPUS. I LIVE THREE BLOCKS FURTHER SOUTH THAN THIS

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PROJECT, I WALK DOWNTOWN ALL THE TIME. MY HUSBAND WORKS AT THE UNIVERSITY AND WALKS EVERYDAY BACK AND FORTH TO SCHOOL. SO PARKING IS NOT NEEDED BECAUSE IT'S TOO FAR FROM CAMPUS. OTHER PROJECTS ARE BEING BUILT WITHOUT PARKING.

>> MAYOR ISHII: THANK YOU.

>> THANK YOU. [ APPLAUSE ]

>> OKAY. I AM FROM A NEIGHBORHOOD -- OKAY. I AM FROM A NEIGHBORHOOD THAT'S PRETTY SAFE. I LIVE IN THE CLAIREMONT AND WE DON'T HAVE THE MIDDLE HOUSING PRESSURES THAT THE REST OF BERKELEY HAS AND IT'S INCREDIBLE HOW YOU, WHEN YOU HEAR THE PEOPLE, IT'S LIKE YOU ARE A SOLID COUNCIL THAT'S DETERMINED TO BUILD, BUILD, BUILD. AND WHY AREN'T YOU SEEING THAT THE BUILDING NOW HAS DIMINISHED THE DOWNTOWN, TELEGRAPH AVENUE, ALL OVER TOWN, SMALL BUSINESSES, THE BUILDINGS THAT ARE BEING BUILT THAT YOU ARE SO PROUD OF TO BUILD MORE OF, IT'S DESTROYING THE STRUCTURE AND THE FABRIC AND THE HUMANITY OF OUR TOWN AND EVEN THE COMMERCE SO WHERE ARE YOU MAKING THE MONEY? ARE YOU MAKING THE MONEY FROM THE UNIVERSITY, DEPARTMENT OF THE UNIVERSITY, CITY OF BERKELEY OR -- ARE YOU MAKING THE MONEY FROM THE DEVELOPER FEES?

>> MAYOR ISHII: SORRY YOUR TIME IS UP. FOR THE RECORD, WE ARE NOT GETTING MONEY FROM ANYBODY. WE ARE GETTING PAID BY THE CITY, AND ANYWAY, I AM NOT EVEN GOING TO GO INTO THAT. ARE THERE

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COMMENTS ONLINE?

>> CITY CLERK: YES, WE HAVE SPEAKERS ONLINE. THE FIRST SPEAKER IS TEEN. YOU SHOULD BE ALLOWED TO UN-MUTE.

>> GOOD EVENING, IT'S TONI AGAIN. WITH JUST ONE MINUTE I WILL SPEAK TO THE DRIVEWAY ISSUE. I DON'T BELIEVE THAT IT IS -- I BELIEVE YOU HAVE THE POWER FOR HEALTH AND SAFETY REASONS TO CHANGE THE DRIVEWAY. AND IF YOU LOOK TOWARDS A DECISION THAT THE COUNCIL MADE, I THINK IT WAS LAST YEAR, PERHAPS IT THE YEAR BEFORE, ON HARRISON AND SAN PABLO AVENUE, THE COUNCIL DID CHANGE THE DRIVEWAY FROM HARRISON STREET TO SAN PABLO AVENUE. SO I DON'T BELIEVE YOU HAVE THE POWER IF YOU FIND HEALTH AND SAFETY ISSUES. I AM NOT A LAWYER, BUT I HAVE IN MY MEMORY THE HEALTH AND SAFETY ISSUE GIVES YOU THE LEEWAY TO MAKE THAT DECISION. AND THERE IS ANOTHER OPTION YOU HAVE, WHICH IS NOT TO CLOSE THE PUBLIC HEARING, BUT TO CONTINUE THE PUBLIC HEARING TO GET MORE INFORMATION IF YOU NEED IT. THANK YOU.

>> MAYOR ISHII: THANK YOU, TONI. OTHER FOLKS ONLINE?

>> CITY CLERK: NEXT SPEAKER IS CHERYL. CHERYL, YOU SHOULD BE ABLE TO UN-MUTE.

>> CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> OKAY. CHERYL DAVILA, FORMER COUNCILMEMBER TO THE CITY OF BERKELEY. THIS HAS BEEN ON THE COUNCIL, IN FRONT OF THE COUNCIL

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FOR QUITE SOME TIME, EVEN WHEN I WAS ON COUNCIL AND I REMEMBER THE PEOPLE ALL WANTED THE DRIVEWAY NOT TO BE ON DERBY STREET. THERE IS A LOT OF ISSUES THERE. AND YEAH, THAT'S A GOOD QUESTION THAT THE LAST PERSON ASKED ABOUT WHO IS GETTING THE MONEY? YEAH, MAYBE YOUR SALARY IS COMING FROM THE CITY OF BERKELEY, BUT WHO KNOWS WHERE THAT OTHER MONEY IS BECAUSE THE DEVELOPERS ARE TOTALLY CAPITALIZING ON THESE BUILDINGS. LOOK AT THE AQUATIC PARK [ INDISCERNIBLE ]

>> EMPTY, EMPTY.

>> CITY CLERK: OUR NEXT SPEAKER IS KELLY. KELLY, YOU SHOULD BE ABLE TO UN-MUTE.

>> THANK YOU. I WON'T USE MY TOTAL MINUTE. I HOPE YOU ALL WILL LISTEN TO THE NEIGHBORS ON THE DERBY STREET ISSUE, AND IT WASN'T TOO LONG AGO THAT I WAS GOING THROUGH SOME OLD PAPERWORK FROM BERKELEY, AND CALLED BERKELEY DECLARED THAT YOU WANTED TO HAVE A SOLAR, ROOFTOP SOLAR AND TO PROTECT THAT AND THAT WAS PART OF YOUR CLIMATE GOAL, AND IT'S JUST REALLY SUCH A SHAME THAT THAT IS GONE. THAT'S IT. BYE.

>> MAYOR ISHII: THANK YOU, KELLY.

>> CITY CLERK: NEXT SPEAKER IS RAYMOND. RAYMOND, YOU SHOULD BE ABLE TO SPEAK. RAYMOND, YOU SHOULD BE ABLE TO SPEAK. PLEASE UN-MUTE IF YOU WOULD LIKE TO PROVIDE COMMENTS. RAYMOND YOU SHOULD BE ABLE TO SPEAK. IT LOOKS LIKE YOU HAVE UN-MUTED. THAT'S

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OUR LAST RAISED HAND.

>> MAYOR ISHII: OKAY. THANK YOU. SO NOW THAT WE HAVE TAKEN PUBLIC COMMENT, IS THERE A MOTION TO CLOSE THE PUBLIC HEARING.

>> SO MOVED.

>> SECOND.

>> MAYOR ISHII: CLERK, COULD YOU TAKE THE ROLL PLEASE?

>> CITY CLERK: COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> TAPLIN. LUNAPARRA.

>> C. LUNAPARRA: YES.

>> HUMBERT.

>> M. HUMBERT: YES.

>> MAYOR ISHII.

>> MAYOR ISHII: YES. THANK YOU, COUNCILMEMBERS, COUNCILMEMBER TAPLIN HAS COMMENTS.

>> T. TAPLIN: THANK YOU. I ACTUALLY HAVE A QUESTION IF THAT'S OKAY FOR STAFF DURING YOUR PRESENTATION, YOU MENTIONED THE ADELEINE CORRIDOR PLAN. I WAS WONDERING IF YOU COULD ELABORATE ON THAT AND ITS APPLICABILITY TO THIS PROJECT.

>> STAFF: SURE. THE PLAN WAS ADOPTED IN 2020 AND THE SITE WAS I WOULD THE SPECIFIC PLAN BOUNDARIES. THE SPECIFIC PLAN HAS DESIGN STRATEGIES FOR PARKING AND ACTIVATION OF THE PRIMARY STREET FRONTAGE. THE PRIMARY STREET FRONTAGE BEING SHATTUCK AVENUE IN

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THIS CASE. THE SPECIFIC PLAN INCLUDES POLICIES THAT LIMIT PARKING ON PRIMARY STREETS, MINIMIZING VISUAL IMPACT OF PARKING, INCLUDING PARKING GARAGE ENTRANCES ON PRIMARY STREETS AND PROVIDING ACTIVE GROUND FLOOR USES ON THAT FRONTAGE TO ENSURE THAT THE AREA HAS AN ACTIVE PEDESTRIAN FRONTAGE AND PEDESTRIAN EXPERIENCE. AND THAT'S WHAT'S CONSISTENT WITH WHAT'S PROPOSED. THE APPLICANT HAS LOOKED AT RELOCATING THE DRIVEWAY, BUT DECIDED THAT IT WASN'T SUFFICIENT USE OF SPACE. AND INCOORDINATION WITH OUR COLLEAGUES FROM THE DEPARTMENT OF TRANSPORTATION, THE PREFERENCE WAS TO PUT THE DRIVEWAY ON DERBY STREET AWAY FROM THE MORE ACTIVE PEDESTRIAN AND VEHICLE CONGESTION ON SHATTUCK.

>> T. TAPLIN: THANK YOU. THE LAST THING YOU SAID YOU MENTIONED THE PEDESTRIAN, VEHICLE CONGESTION ON SHATTUCK. OKAY, THAT'S WHAT I HEARD, THANKS. THANK YOU VERY MUCH. I KNOW -- [ INDISCERNIBLE ] WE CAN'T REALLY DISCUSS IT, BUT I DID WANT TO SAY WE ARE UPDATING OUR BICYCLE PLAN. I LOOK FORWARD TO THAT.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB.

>> I. TREGUB: YEAH, I ALSO HAVE A QUESTION FOR STAFF. I RECALL ON ZAB ON SEVERAL OCCASIONS BEING ABLE TO RELOCATE THE DRIVEWAY, PARTICULARLY WITHIN THE SAN PABLO CORRIDOR, SO CAN YOU JUST CLARIFY IF STATE -- IF THERE HAVE BEEN ANY CHANGES TO STATE LAW ON THE POINT AROUND OUR DISCRETION IF WE CHOOSE TO BE ABLE TO DECIDE ON WHAT WE BELIEVE IS THE MOST PROMOTE LOCATION OF A

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DRIVEWAY?

>> STAFF: CAN I FIELD THIS ONE? THANK YOU FOR -- THANK YOU FOR THE QUESTION. I APPRECIATE IT. I ALSO WANT TO JUST ACKNOWLEDGE THE COMMENTS FROM THE NEIGHBORS, AND CERTAINLY SYMPATHIZE WITH THE DESIRE TO MINIMIZE VEHICULAR TRAFFIC ON THEIR NEIGHBORHOOD STREET. ROBERTS NOTED THE TRANSPORTATION STAFF REVIEWED THIS, AND DID NOT COMMENT TO REQUIRE MOVING IT OFF OF DERBY AND IT'S OUR UNDERSTANDING THAT THEIR PREFERENCE IS THAT IT BE ON DERBY. NOTABLY, THE -- ROBERT HAS CITED THE -- THE CONSISTENCY WITH AN ADOPTED PLAN BY THE CITY OF BERKELEY THAT THE -- LIKE THE GOALS AND POLICIES IN AN ADOPTED PLAN, AND I BELIEVE THAT THAT LIMITS COUNCIL'S THE OTHER TO ATTACH A CONDITION OR REQUIRE THE AMENDMENT OF THE PROJECT OR DENY, WHICH WOULD EFFECTIVELY BE DENYING THE PROJECT AS PROPOSED, WHICH IS COMPLIANT WITH ESTABLISHED STANDARDS IN AN ADOPTED PLAN.

>> [ INDISCERNIBLE ]

>> MAYOR ISHII: FOLKS, PLEASE. IT'S NOT YOUR TIME TO SPEAK.

>> I. TREGUB: THANK YOU, JORDAN. I APPRECIATE THAT AND I WANT TO CLARIFY; I CERTAINLY DID NOT MEAN TO QUESTION THE KNOWLEDGE OF THE TRAFFIC ENGINEER. I AM TRAINED AS AN ENGINEER. I AM NOT A TRAFFIC ENGINEER. I WILL DEFER SUCH THINGS TO THE EXPERTS. MY QUESTION WAS ABOUT THIS QUESTION, SO I APPRECIATE THAT. IS THERE ANYTHING IN STATE LAW THAT YOU WOULD INTERPRET OR THE CITY

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ATTORNEY WOULD INTERPRET AS LIMITING OUR DISCRETION ON THIS PLAN?

>> I AM NOT SURE IF I CAN SPEAK TO THAT SPECIFICALLY, ACTUALLY. FROM WHAT I JUST HEARD FROM JORDAN, IT SOUNDS LIKE THERE WAS A SPECIFIC PLAN THAT WAS DOMINATED AND THERE IS SOME INDICATION THAT WE DON'T WANT TO IMPOSE CONDITIONS THAT ARE INCONSISTENT WITH THAT. IS THAT SORT OF WHAT THE -- I HAVEN'T PERSONALLY STUDIED THAT DOCUMENT CLOSELY, SO I AM NOT PREPARED RIGHT NOW AS WE SIT HERE TO -- [ INDISCERNIBLE ] ON THAT IN AN AD HOC WAY, BUT I CAN TAKE A LOOK AT IT AND COME BACK.

>> I. TREGUB: UNDERSTOOD, THANK YOU SO MUCH.

>> MAYOR ISHII: OKAY. OTHER COMMENT. COUNCILMEMBER BARTLETT, DID YOU HAVE A COMMENT? I KNOW YOU CAN'T RAISE YOUR HAND ON THE PHONE.

>> B. BARTLETT: YES, THANK YOU, MADAM MAYOR. THOSE ARE REALLY THE CRUX OF MY QUESTIONING HERE, TOO IS ALSO THE CITY ATTORNEY -- SO DOES THE ADELEINE CORRIDOR PLAN TRUMP OUR DISCRETION FOR PUBLIC SAFETY? BECAUSE HAVING SPENT MUCH TIME RIGHT HERE, I WALK BY HERE EVERY DAY, THERE IS A NEW BUILDING WITH A DRIVEWAY RIGHT THERE ON DERBY AND THERE IS NOW THIS LARGER BUILDING WITH A DRIVEWAY ACROSS THE STREET FROM IT IN THE MIDDLE OF THIS BIKE PATH IN MY DISTRICT WHERE WE HAVE BIKE TO WORK DAYS WHERE WE KEEP PEOPLE SAFE AND IT SEEMS

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INCOMPREHENSIBLE THAT WE WOULD SUBJECT THAT MANY BICYCLE AND KIDS TO THE FLOW OF DELIVERIES. IT SEEMS COMPLETELY UNREASONABLE. WE KNOW THERE IS A BASIS FOR THIS BECAUSE WE DID A STUDY FOR THIS YEARS AGO AND THAT'S WHY IT'S ON SHATTUCK. BY THE WAY THAT DRIVEWAY ON SHATTUCK IS BEING USED BY THE CITY RIGHT NOW AS A LOADING AREA FOR ITS SEWAGE STUFF ACROSS THE STREET. THE GUY WHEN I TALKED TO HIM HE SAID IT'S A PERFECT LOCATION FOR THIS BECAUSE YOU CAN SET UP AND LOAD AND UNLOAD QUITE SAFELY. IT SEEMS LIKE I AM NOT CONVINCED THAT WE COMPONENT HAVE THE POWERS TO MAINTAIN A SAFE CONDITION WHEN OUR RESIDENTS ARE AT STAKE SPECIFICALLY, WHEN WE ARE SPECIFICALLY DEDICATED ENERGY AND LEGISLATION AND LITIGATION TO PROTECT BICYCLISTS AND PEDESTRIANS IN THIS DISTRICT. SO I THINK IN KEEPING WITH THAT SPIRIT AND THAT TRAJECTORY OF SAFETY, I THINK WE ARE IN BAD FORM TO GO AGAINST IT NOW.

>>  YES. [ APPLAUSE ]

>> MAYOR ISHII:  COUNCILMEMBER TAPLIN.

>> T. TAPLIN:  THANK YOU. I DO WANT TO POINT OUT THAT WE DID ADOPT THIS PLAN IN 2020. IT WAS A COUNCIL ADOPTED PLAN. IT'S NOT QUITE CLEAR TO ME THESE CONCERNS WEREN'T RAISED THEN. BUT I DO HAVE QUESTIONS ABOUT THE TRAFFIC THE PROJECT IS PROPOSING IF SOMEONE COULD SPEAK TO THAT.

>> STAFF:  DO YOU HAVE A SPECIFIC MITIGATION.

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>> REQUIREMENTS TO THE PROJECT.

>> STAFF: THAT ARE REQUIRED THAT YOU WOULD LIKE TO EXPLORE.

>> T. TAPLIN: NOT REQUIRING, I WAS JUST WONDERING WHAT MITIGATIONS WERE BEING CONTEMPLATED FOR THE PROJECT?

>> STAFF: SO THE PROJECT WOULD BE SUBJECT TO THE STANDARD TRANSPORTATION DEMAND MANAGEMENT PROGRAM. THAT'S THE BRIEFING THERE THAT HELPS THE GENERATION AND THE MANAGEMENT ON-SITE.

>> T. TAPLIN: SO TBM.

>> STAFF: TBM.

>> T. TAPLIN: THANK YOU.

>> B. BARTLETT: LET ME CONTINUE, SO I GUESS TO THE ARCHITECT HERE, I DON'T KNOW IF YOU HAVE THE CAPACITY TO MAKE DECISIONS, YOU KNOW, I AM WONDERING A COUPLE OF POINTS HERE, ONE, WOULD YOU VOLUNTARILY CONSIDER KEEPING THE DRIVEWAY WHERE IT IS, SO YOU CAN BE MERCIFUL AND SAFE TO THE PEDESTRIANS AND BICYCLISTS IN THIS DISTRICT, THIS NEIGHBORHOOD? I HAVE A FOLLOW UP AS WELL.

>> MAYOR ISHII: SORRY, YOU HAVE A QUESTION FOR KDA, IS THAT WHAT YOU ARE SAYING?

>> B. BARTLETT: YEAH.

>> MAYOR ISHII: COME ON UP TO ANSWER THE QUESTION.

>> THIS SB330 PROJECT DOESN'T ALLOW FOR RULES TO BE CHANGED AFTER THE APPLICATION HAS BEEN SUBMITTED. WE PLAYED BY THE RULES THAT WERE IN PLACE AT THE TIME OF OUR APPLICATION, WHICH IS TO

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PLACE IT UPON DERBY AS EVIDENCED BY SPECIFIC PLANS, AND AS CONFIRMED BY THE TRAFFIC ENGINEER. WE DON'T WANT -- AND THE REASON WHY THE ADELEINE CIVIC PLAN WAS DRAWN -- WE DON'T WANT AN 18-FOOT DRIVEWAY AND GARAGE AND GATE ON SHATTUCK AND WE DON'T THINK WHAT IS A MARGE OF PEOPLE AND BICYCLES ON SHATTUCK, NOT ON DERBY.

>> MAYOR ISHII: FOLKS, PLEASE.

>> THERE ARE MULTIPLE BICYCLE PATHS AND THE APARTMENT BUILDINGS ACROSS THE STREET ALSO EXIT ON THE SIDE STREETS. WE ARE DOING WHAT THE OTHER APARTMENT BUILDINGS ARE IN THAT LOCALITY. SO REPEATING -- WE PLAYED BY THE RULES THAT WERE IN PLACE AT THE TIME OF OUR APPLICATION.

>> MAYOR ISHII: I THINK YOU HAVE ANSWERED THE QUESTION. THANKS. COUNCILMEMBER BARTLETT, ARE YOU FINISHED WITH YOUR COMMENTS?

>> B. BARTLETT: NO. SO REGARDING ANOTHER ONE AND AGAIN, I GUESS WE ARE GOING TO VOLUNTARY TERRITORY HERE, THIS IS A HUGE REQUEST, BUT I THINK AGAIN IT'S A ONE OF MERCY, NOT JUST TO THE NEIGHBORS, BUT AGAIN TO PEOPLE WHO WILL LIKELY BE STRUCK BY THESE CARS AS THEY BIKE AND WALK UP THAT STREET -- WOULD YOU FOREGO THE PARKING SINCE WE REALLY DON'T WANT PARKING AND I ASSURE YOU YOU DON'T NEED IT. YOUR CLIENTS, WHETHER THEY ARE CONDO OWNERS OR RENTERS, WILL NOT NEED CARS. SO WOULD YOU AMELIORATE SOME OF THE CONCERNS BY ELIMINATING SOME OR ALL OF

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THE PARKING ON-SITE?

>> THE ANSWER WOULD BE NO. IT WAS A REASONABLE DEVELOPER WHO HAS EXPERIENCE IN THIS AREA THOUGHT THAT WAS THE BEST COMBINATION FOR THAT PROJECT. IT'S UNDER THE MAXIMUM ALLOWED, AND 30 YEARS AGO WHEN THAT ORIGINAL ENTRY WAS THERE, I WASN'T PROVIDING ENOUGH PARKING. THAT'S AN IRONY, SO THAT'S THE DESIRE OF THIS APPLICANT AT THE TIME THAT THE APPLICATION WAS MADE.

>> B. BARTLETT: THANK YOU.

>> MAYOR ISHII: ANYTHING ELSE?

>> B. BARTLETT: THOSE ARE ALL MY COMMENTS. THAT'S IT.

>> MAYOR ISHII: SORRY, THERE IS A BIT OF A LAG, I APOLOGIZE FOR CUTTING YOU OFF. OKAY. COUNCILMEMBER KESARWANI.

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR. THANK YOU PLANNING STAFF FOR YOUR PRESENTATION. THANK YOU TO EVERYONE WHO GAVE PUBLIC COMMENTS. YOU KNOW, I WANT TO SAY THAT, YOU KNOW, I AM SYMPATHETIC TO THE CONCERNS EXPRESSED BY FLAVORS RELATED TO TRAFFIC, AND, YOU KNOW, I THINK IT'S BEEN MADE CLEAR THAT WE DO NOT HAVE THE OTHER TO MAKE A SHIFT OF THE DRIVEWAY A CONDITION OF APPROVAL. I UNDERSTAND THERE IS GOING TO BE TRANSPORTATION DEMAND MANAGEMENT STRATEGIES THAT ARE USED. I WAS CURIOUS, YOU KNOW, WITH THE DRIVEWAY PROPOSED ON DERBY, DID OUR TRANSPORTATION STAFF CONSIDER ANY SORT OF IMPROVEMENTS TO THE STREET TO ENCOURAGE PEOPLE TO EXIT THE DRIVEWAY TOWARDS SHATTUCK

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AND AWAY FROM THE NEIGHBORHOOD? I KNOW THAT'S SOMETIMES A STRATEGY THAT'S USED. I THINK OF THE TRADER JOE'S BUILDING THAT ACTUALLY HAS THE GATE SO THAT PEOPLE CANNOT TAKE A SHORTCUT FROM THE NEIGHBORHOOD. I WAS WONDERING IF YOU COULD SPEAK TO ANY OF THOSE STRATEGIES HAD BEEN CONSIDERED?

>> STAFF: THAT'S NOT SOMETHING WE CAN SPEAK TO NOW; HOWEVER, I THINK IT'S SOMETHING THAT TRANSPORTATION STAFF ABSOLUTELY WOULD TAKE A LOOK AT DURING THE POST ENTITLEMENT PHASE. ONCE THE PROJECT IS ACTUALLY LOOKING AT CONSTRUCTION, TRANSPORTATION STAFF WOULD CONSIDER, FOR EXAMPLE, A RIGHT TURN REQUIREMENT OUT OF THE DRIVEWAY OR OTHER MITIGATION MEASURES OR INVESTMENTS IN THE STREET TO MITIGATE ANY POTENTIAL IMPACTS.

>> R. KESARWANI: OKAY. SO OBVIOUSLY, WE CANNOT TIE THAT TO THE VOTE TONIGHT, BUT WE ARE HEARING THAT THE TRANSPORTATION STAFF IN THEIR REGULAR COURSE OF DOING BUSINESS RELATED TO THIS PROJECT WILL LOOK AT THAT. I JUST WANT TO EXPRESS MY SUPPORT TO MAKE SURE THAT WE CONSIDER HOW WE DIRECT THE TRAFFIC FLOW FROM THAT DRIVEWAY. YOU KNOW, WE DON'T HEAR NEIGHBORS REQUEST THAT, BUT I THINK THAT WOULD BE PREFERRED IF THOSE CARS WERE SORT OF DIRECTED TO SHATTUCK AND AWAY FROM THE NEIGHBORHOOD. IF THEY WANT TO GO INTO THE NEIGHBORHOOD, OF COURSE, THEY CAN GO AROUND. AND THEN I DON'T KNOW IF THERE IS ANYTHING ELSE WE CAN DO IN THE STREET. YOU KNOW, I AM THINKING OF THE INTERSECTION AT

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SACRAMENTO AND VIRGINIA WHERE WE HAVE ALL OF THOSE IMPROVEMENTS AND TRYING TO DIRECT TRAFFIC FLOW IN CERTAIN WAYS, SO I AM HOPING WE COULD CONSIDER THAT FOR THIS AREA. THE OTHER ISSUE I WANTED TO MENTION, SOMEBODY ASKED ABOUT THE MONEY. WHERE IS THE MONEY GOING AND WHAT'S GOING ON? SO I JUST WANT TO CLARIFY, SO WHEN THIS SITE IS REDEVELOPED, THE PROPERTY TAX RESETS, CORRECT, TO A MUCH HIGHER LEVEL BASED ON THE ASSESSED VALUE OF THIS NEW PROPERTY? SO THAT WOULD LIKELY BE -- DO YOU HAVE ANY ESTIMATE OF WHAT THAT ANNUAL PROPERTY TAX BILL WOULD BE?

>> STAFF: WELL, I IMAGINE THE NEW VALUATION WOULD BE IN THE TENS OF MILLIONS, AND SO THE NEW PROPERTY TAX BILL MIGHT BE IN THE HUNDREDS OF THOUSANDS, LOW HUNDREDS OF THOUSANDS WOULD BE MY GUESS.

>> R. KESARWANI: OKAY. SO LOW HUNDREDS OF THOUSANDS IN PROPERTY TAX. I ALSO WANTED TO NOTE THAT THIS DEVELOPMENT WOULD HAVE TEN VERY LOW INCOME UNITS, AND BUT OUR REQUIREMENT IS HIGHER. BE ACTUALLY ASK FOR 20%, SO MY UNDERSTANDING IN ADDITION TO THOSE TEN VERY LOW INCOME UNITS ON SITE THEY WOULD ALSO HAVE TO PAY THE INCLUSIONARY FEE. DO YOU HAVE AN ESTIMATE HOW MUCH THEY WOULD HAVE TO PAY? IT'S ROUGHLY 85,000 SQUARE FOOT BUILDING, I KNOW WE GIVE A DISCOUNT ON FIRST 1,000 SQUARE FEET. THAT'S A HIGH FIGURE. IF YOU ARE ABLE TO GIVE US THAT NUMBER, I WILL GIVE YOU A BIT OF TIME. WHILE YOU CALCULATE THAT THERE IS THE

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BERKELEY UNIFIED SCHOOL DISTRICT FEE THAT THIS PROPERTY WOULD BE SUBJECT TO.

>> STAFF: THAT'S CORRECT.

>> R. KESARWANI: THAT'S ROUGHLY $5 PER SQUARE FOOT. THAT'S ROUGHLY $22,000 GOING TO SCHOOL DISTRICT TO SUPPORT OUR PUBLIC SCHOOLS. THERE IS ALSO AN ARTS FEE. THOSE ARE THE MAJOR FEES THAT I KNOW OF. THERE ARE OTHER FEES THAT THIS PROJECT WOULD BE REQUIRED TO PAY.

>> STAFF: I THINK YOU COVERED THEM COUNCILMEMBER.

>> R. KESARWANI: OKAY. SO I WANT TO GET THAT FIGURE OF WHAT'S GOING INTO THE AFFORDABLE HOUSING TRUST FUND TO DEVELOPMENT 100% AFFORDABLE HOUSING ELSEWHERE.

>> STAFF: SO THEY PROVIDING 15% AVAILABLE, THE REQUIRED IS 20% BMLR AND THAT'S CALCULATED ON THE RESIDENTIAL SIMILAR AREA AND THAT WOULD BE 5% OF THAT. AND I THINK ROUGHLY THE FEE, WHICH WAS RECENTLY UPDATED IS APPROXIMATELY $62 PER SQUARE FOOT, SO WE ARE LOOKING AT SOMETHING LIKE $260,000.

>> R. KESARWANI: SO I GOT IT WRONG, IT'S 15% IS THE TEN UNITS THAT ARE VERY LOW INCOME, THAT'S WHY IT'S ON THE 5% MORE FOR THE FEE. YES, I THINK THE BIGGEST THING IS PROPERTY TAX REVENUE RESETTING AND THAT'S NOT TO MENTION THE 97 DWELLING UNITS THAT ARE GOING TO HAVE NEW RESIDENTS IN THIS NEIGHBORHOOD. SOME OF THEM WILL BE OWNERSHIP UNITS, CORRECT? HOW MANY CONDOS ARE

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PROPOSED? DO YOU KNOW?

>> DON'T QUOTE ME, LIKE, 15.

>> R. KESARWANI: SO THOSE ARE 15 OWNERSHIP UNITS AND THEN THE BALANCE ARE RENTAL UNITS. THOSE RESIDENTS, YOU KNOW, MY EXPECTATION IS THAT THEY ARE GOING TO EAT, SHOP AND PLAY IN THIS DOWNTOWN AREA AND THERE WILL BE A MULTIPLIER EFFECT IN TERMS OF THE SALES TAX REVENUE THAT THE CITY GETS, THE ECONOMIC STIMULUS TO OUR DOWNTOWN AND SMALL BUSINESSES. I JUST WANT US TO LOSE SIGHT OF THAT AND I DO RECOGNIZE I DIDN'T HEAR ANYBODY SAY THEY WERE AGAINST THIS PROJECT. I DO RECOGNIZE THAT YOU HAVE SOME SPECIFIC CONCERNS RELATED TO CERTAIN THINGS. THE WAY THAT THESE -- I AM GOING TO I AM GOING TO WRAP UP.

>> MAYOR ISHII: THANK YOU.

>> R. KESARWANI: THE WAY THESE STATE LAWS ARE STRUCTURED, I THINK IT'S CLEAR WE DON'T HAVE THE AUTHORITY TO CHANGE THE PROPOSAL. WE CANNOT ADD ANY CONDITIONS OF APPROVAL TO THIS, BUT HAVING SAID THAT, I DO WANT TO RECOGNIZE THAT THE BULK OF THE MASSING IS ON SHATTUCK. THEY DIDN'T HAVE TO DO THAT. CORRECT? YOU COULD HAVE DONE EIGHT STORIES RIGHT UP AGAINST THE HOME ON DERBY IF YOU WANTED TO.

>> CORRECT.

>> R. KESARWANI: AND WE COULD HAVE SAID NOTHING TO THAT BECAUSE WE DON'T HAVE THE AUTHORITY TO CHANGE THE DESIGN. SO I DO

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APPRECIATE. I THINK YOU HAVE BEEN LARGELY SENSITIVE TO THE BUILT ENVIRONMENT THAT THERE IS GREATER HEIGHT, AND COMMERCIAL ACTIVITY ON SHATTUCK, SO THEREFORE YOU PUT THE BULK OF THE MASSING THERE AND HAVE LESS ON DERBY, AND, YOU KNOW, I HOPE THAT WE CAN ADDRESS SOME OF THE TRAFFIC ISSUES POST ENTITLEMENT. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. THANKS COUNCILMEMBER HUM BEFORE THE. EXCUSE ME FOLKS BYE-BYE COME ON, THAT'S VERY INAPPROPRIATE. EXCUSE ME, I AM SORRY. YOU ARE WELCOME TO WRITE A LETTER AFTERWARDS, BUT IT'S COMPLETELY INAPPROPRIATE FOR YOU TO SPEAK OUT DURING THIS MEETING. COUNCILMEMBER HUMBERT.

>> M. HUMBERT: THANK YOU, MADAM MAYOR. WITH THE APOLOGIES TO THE APPLICANTS AND APPELLANTS MY COMMENTS WILL BE BRIEF ON THIS. WITH RESPECT TO ISSUES ONE AND TWO AND PROVISION AND MASSING OF THE RETAIL SPACE, THE PROJECT APPEARS TO BE MEETING ALL THE OBJECTIVE STANDARDS IN PLACE AT THE TIME THAT THE APPLICATION WAS SUBMITTED. WE HEARD THAT. I AM COMPLETELY SYMPATHETIC TO THE NEIGHBOR'S CONCERNS ABOUT TRAFFIC AND I AM HOPING CONSISTENTLY -- CONSISTENT WITH THE COMMENTS WITH COUNCILMEMBER KESARWANI, THAT OUR PUBLIC WORKS TRANSPORTATION DIVISION REALLY BEARS DOWN AND REALLY TRIES TO DO SOME WORK HERE TO MAKE SURE THAT THE EXIT IS AS SAFE AS POSSIBLE, THE EXIT AND ENTRANCE FOR CARS. BUT CONSISTENT WITH STAFF'S FINDING AND STATE LAW, THE

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CITY REALLY CAN'T REQUIRE ANYTHING DIFFERENT. WITH RESPECT TO ISSUE 3 RELATING TO SHADOWS, WE DON'T HAVE THE DISCRETION TO DO ANYTHING ABOUT THAT. REGARDING ISSUE NUMBER 4, I DON'T SEE ANY EVIDENCE THE PROJECT WAS IMPROPERLY NOTICED OR LACKED LEGALLY REQUIRED PUBLIC HEARINGS. AND THIS NOTION OF A SEPARATE BASE PROJECT HEARING STRIKES ME AS LEGAL FICTION. BASE PROJECT IS A MATHEMATICAL CALCULATION. ON ISSUE NUMBER 5, I SEE NO CONVINCING EVIDENCE THAT STAFF INCORRECTLY INCLUDED THE IN-LIEU FEE AND I APPRECIATE COUNCILMEMBER KESARWANI KIND OF GOING INTO HOW THAT WORKS IN SOME LEVEL OF DETAIL. I FEEL LIKE I HAVE NO CHOICE BUT TO VOTE TO REJECT THE APPEAL AND IT AFFIRM THE ZAB'S DECISION REGARDING THE PROPOSED 2555 --

>> MAYOR ISHII: THANK YOU. I HAVE A COUPLE OF QUESTIONS. I AM CURIOUS IF THERE ARE LOADING ZONES AROUND THAT BUILDING SO I HAVE A SENSE OF THAT.

>> NO.

>> STAFF: BULB OUT ON SHATTUCK.

>> MAYOR ISHII: THAT'S SOMETHING I THINK DOES HELP IN PROVIDING A SAFE SPACE FOR PASSENGERS TO GET IN AND OUT AND ALSO FOR DELIVERS TO BE MADE AS WELL. THANK YOU, THAT'S GOOD TO KNOW. I JUST WANT FOLKS TO KNOW I HEAR YOUR CONCERNS ABOUT THE SAFETY PIECE AND I ALSO HEARD WHAT IS MY UNDERSTANDING IS THAT IT'S SAFER ACTUALLY, TO GO OUT ON A QUIETER STREET. I HEARD YOU SAY

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THAT. I HEARD OUR STAFF SAY THAT. AND SO ON I WANT TO CLARIFY FOR FOLKS I DON'T THINK WE ARE PREVENTED FROM MAKING THE DECISION WHETHER TO MOVE IT FROM SHATTUCK ON TO DERBY, BUT THERE ARE STUDIES THAT ARE DONE TO WHAT IS SAFE AND WHAT IS NOT. I KNOW SOMETIMES IT'S CONTRADICTORY TO HOW WE SEE AN ISSUE, AND I THINK THAT'S MAKES IT HARD. WE HAVE STAFF THAT ARE PROFESSIONALS IN THIS AND I AM INCLINED TO FOLLOW OUR STAFF FIREFIGHTERS RECOMMENDATION ON THIS AND THEIR INFORMATION TELLS US IT'S SAFE. I WILL COMMIT TO FOLLOWING UP ON THE RIGHT TURN ONLY PIECE. I THINK THAT'S REALLY IMPORTANT. I KNOW I HEAR FOLKS CONCERNS AND I KNOW THIS CAN GET REALLY CONFUSING, AND I JUST WANT TO ACKNOWLEDGE THAT. THERE ARE A LOT OF PIECES TO AND SO I THANK YOU ALL FOR YOUR COMMENTS AND FOR STAFF'S PRESENTATION. WITH THAT, I THINK THERE ARE NO MORE COMMENTS, SO I WILL SEE IF THERE IS A MOTION.

>> B. BARTLETT: I HAVE A QUICK COMMENT.

>> MAYOR ISHII: OKAY. COUNCILMEMBER BARTLETT.

>> B. BARTLETT: THANK YOU. SO THE NEIGHBORS, I WANT YOU TO KNOW I HEAR YOU. AND, YOU KNOW, I REALLY UNDERSTAND WHERE YOU ARE COMING FROM. UNFORTUNATELY, THE OBJECTIVE DESIGN STANDARDS WON'T COME BACK TO US UNTIL 2026. HOWEVER, BUT THEY ARE UNDERWAY, SO I UNDERSTAND THIS IS GOING TO IMPACT YOUR ECONOMIC UTILITY OF YOUR SOLAR PANELS, AND ANYONE WHO GOES THERE TO VISIT THIS WILL SEE

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THE DRIVEWAYS ACROSS FROM EACH OTHER WILL CREATE A DANGEROUS CONDITION, SO IT'S UNFORTUNATELY THAT WE CAN'T MAKE ANY CONDITIONS TO MITIGATE THAT RISC AND THAT DANGER THERE, BUT I SUSPECT WE WILL BE BACK HERE THROUGH COURT THROUGH LIABILITY ANYWAY AS HAS HAPPENED MULTIPLE TIMES SINCE I HAVE BEEN IN OFFICE. THAT BEING SAID, I SEE -- I HAVE NO LEGAL OPTION TO VOTE AGAINST THIS PROJECT, ANY REAL LEGAL BASIS, BUT I UNDERSTAND THAT THE MITIGATIONS WILL COUPLE SOONER OR LATER.

>> MAYOR ISHII: OKAY. IS THERE A MOTION?

>> R. KESARWANI: YES, I MOTION -- TO APPROVE USE PERMIT #ZP2024-0057. TO DEMOLISH A ONE STORY NON-RESIDENTIAL BUILDING AND CONSTRUCT AN EIGHT-STORY MIXED USE RESIDENTIAL BUILDING, ETC., AS IT'S STATED IN THE STAFF REPORT.

>> M. HUMBERT: SECOND.

>> MAYOR ISHII: CLERK, CAN YOU TAKE THE ROLL PLEASE.

>> COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> TAPLIN.

>> T. TAPLIN: AYE.

>> BARTLETT.

>> B. BARTLETT: YES.

>> TREGUB.

>> I. TREGUB: AYE.

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>> O'KEEFE IS ABSENT. BLACKABY.

>> B. BLACKABY: YES.

>> LUNAPARRA.

>> LUNAPARRA: YES.

>> HUMBERT.

>> M. HUMBERT: YES.

>> MAYOR ISHII.

>> MAYOR ISHII: YES. THANK YOU. IS THERE A MOTION TO ADJOURN?

>> SO MOVED.

>> SECOND.

>> MAYOR ISHII: TAKE THE ROLL TO ADJOURN.

>> COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> TAPLIN.

>> T. TAPLIN: AYE.

>> BARTLETT.

>> B. BARTLETT: YES.

>> TREGUB.

>> I. TREGUB: AYE.

>> O'KEEFE IS ABSENT. BLACKABY.

>> B. BLACKABY: YES.

>> LUNAPARRA.

>> LUNAPARRA: YES.

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>> HUMBERT.

>> M. HUMBERT: YES.

>> MAYOR ISHII.

>> MAYOR ISHII: YES. ALRIGHT, MEETING IS ADJOURNED. THANK YOU ALL VERY MUCH.

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